

THE UTTAR PRADESH MOTOR VEHICLE RULES, 1998¹

(As Amended)

In exercise of the powers under section 28, 38, 65, 95, 96, 107, 111, 138, 176 and 213 of the Motor Vehicles Act, 1998 (Act 59 of 1988) read with Section 21 of the General Clauses Act, 1987 (Act X of 1897) and in supersession of all existing of all existing rules on the subject the Governor is pleased to make the following rules after their previous publication, *vide* Government Notification No. 659-T/30-4-67-89, dated March 21, 1995 published in the Official Gazette of Uttar Pradesh, dated April 22, 1995 as required under sub-section (1) of Section 212 of the said Act.

CHAPTER I

Preliminary

1. **Short Title—** These Rules shall be called **The Uttar Pradesh Motor Vehicles Rules, 1998.**
2. **Definitions—** In these Rules, unless here are many things repugnant in the subject or context—
 - (i) "Act" means, the Motor Vehicles Act, 1988 (Act 59 of 1988);
 - ²[(i-a) "*Accident*" means an accident involving use of any motor vehicle at a public place;]
 - (ii) "*Additional Transport Commissioner*" means an officer appointed as such by the State Government and posted at Lucknow;
 - (iii) "*Approved Agent*" means a person authorised by the principal to do an act or acts on his behalf and appointed as such by means of a writing executed by the principal in the presence of either a Magistrate or Notary Public appointed under the Notaries Act, 1952 and includes a legal practitioner authorised by him in this behalf;
 - ³[(iv) ****]
 - (v) "*Assistant Regional Transport Officer*" means an officer appointed as such by the State Government and posted at the Headquarters of each region or sub-region;
 - (vi) "*Assistant Transport Commissioner*" means an officer appointed as such by the State Government and posted at Lucknow;
 - (vii) "*Central Rules*" means the Central Motor Vehicles Rules, 1989;
 - (viii) "*Deputy Transport Commissioner*" means an officer appointed as such by the State Government and posted at Lucknow;

1. Vide Notification No. 2207/30-4-98/67/89, dated 7th September, 1998.

2. Clause (i-a) inserted by Noti. No. 777/XXX-4-2011-4(3)-2010, dated 26th September, 2011 (Eleventh Amendment) Rules, 2011, Published in U.P. Gazette Extra., Part 4, Section (ka), dated 26th September, 2011 (w.e.f. 26-9-2011).

3. Clause (iv) in Rule 2 omitted by Noti. No. 1513/XXX-4-2013-88-99, dated 31st October, 2013 (Fifteenth Amendment) Rules, 2013, Published in U.P. Gazette Extra., Part 4, Section (ka), dated 31st October, 2013 (w.e.f. 31-10-2013).

- (ix) "*Deputy Transport Commissioner (Zone)*" means an officer appointed and posted as such by the State Government at the headquarters or each zone;
- (x) "*Form SR*" means a Form appended to these rules;
- (xi) "*Goods Tax Officer*" means an officer appointed as such by the Transport Commissioner and posted at the Headquarters of each region or sub- region;
- (xii) "*Goods Tax Superintendent*" means a person appointed as such by the Transport Commissioner;
- ¹[(xiii)****]
- ²[(xiii-a)"*Investigating Police Officer*" means the Station House Officer of a Police Station or any other Police Officer subordinate or superior to him, entrusted with investigation relating to accident.]
- (xiv) "*Non-resilient*" in relation to a tyre of motor vehicle, means a tyre which is neither "pneumatic" nor "resilient";
- ³[(xiv-a) "*Operator*" means the holder of permits granted in pursuance of sub-section (1) of Section 74 and issued in terms of Rule 124-E in respect of each vehicle and is in possession of not less than ten radio taxis;]
- (xv) "*Passenger*" means a person travelling in a public service vehicle, but shall not include the operator, the driver or the conductor or an employee of the operator of the public service vehicle travelling in the *bona fide* discharge of his duties in connection with the public service vehicle;
- (xvi) "*Passenger Tax Officer*" means an officer appointed as such by the Transport Commissioner and posted at the Headquarters of each region or sub-region;
- (xvii) "*Passenger Tax Superintendent*" means a person appointed as such by the Transport Commissioner;
- ³[(xvii-a)"*Permit*" means a permit granted in pursuance of sub-section (1) of Section 74 and issued or renewed in terms of Rule 124-E to radio taxi to operate on the fare prescribed by the State Government;]
- (xviii) "*Pneumatic tyre*" means a tyre containing air inserted by mechanical pressure;
- ³[(xviii-a)"*Radio Taxi*" means the motor cab equipped with necessary specifications;]
- (xix) "*Region*" means the territorial jurisdiction of a Regional Transport Authority as specified by the State Government under sub-section (1) of Section 68;
- (xx) "*Senior Motor Vehicles Inspector*" means a person appointed as such by the Transport Commissioner and posted at the headquarters of each region or sub region.
- (xxi) "*Regional Transport Officer*" means an officer appointed as such by the Government and posted at the headquarters of each region under the Transport Department;

1. Clause (xiii) in Rule 2 Omitted by Noti. No. 1994/XXX-4-2009-67-89TC, dated 9th November, 2009 (Seventh Amendment) Rules, 2009, Published in U.P. Gazette Extra., Part 4, Section (ka), dated 9th November, 2009 (w.e.f. 09-11-2009).

2. Clause (xiii-a) inserted by Noti. No. 777/XXX-4-2011-4(3)-2010, dated 26th September, 2011 (Eleventh Amendment) Rules, 2011, Published in U.P. Gazette Extra., Part 4, Section (ka), dated 26th September, 2011 (w.e.f. 26-9-2011).

3. Clauses (xiv-a), (xvii-a) and (xviii-a) inserted by Noti. No. 1237/XXX-4-2013-346-95-T.C., dated 10 July, 2013 (Fourteenth Amendment) Rules, 2013, Published in U.P. Gazette Extra., Part 4. Section (ka), dated 10th July, 2013 (w.e.f. 10-7-2013).

- (xxii) "*Resilient*" in respect of tyre of a motor vehicle or trail or, means a tyre not being a pneumatic type made of India-rubber;
- (xxiii) "*Schedule*" means a schedule appended to these rules.
- (xxiv) "*Section*" means a section of the Act;
- ¹[(xxiv-a) "*Sleeper Bus*" means an omni bus covered by stage carriage permit or contract carriage permit designed or constructed to provide facility to passengers to either sleep or sit or both having two tier arrangement with berth necessarily on the upper tier shall have 1 x 1 or 2 x 1 berth arrangement. The lower tier may have either of the following arrangements—
- (i) Having berth arrangement of 1 x 1 or 2 x 1 along the chassis.
 - (ii) Having seating arrangement of 1 x 1 or 2 x 1 along the chassis.
 - (iii) Any other arrangement subject to approval of the State Transport Authority.]
- (xxv) "*State Government*" means the State Government of Uttar Pradesh;
- (xxvi) "*Sub-region*" means the territorial limits of a revenue district;
- ²[(xxvi-a) "*Taximeter*" means a measuring instrument, either mechanical or electronic, which totalizes continuously and indicate at any moment of the journey, the charges payable by the passenger of a motor cab, in accordance with the authorized rated.]
- (xxvii) "*Transport Commissioner*" means an officer appointed as such by the State Government;
- (xxviii) "*Zone*" means the territorial jurisdiction of a Deputy Transport Commissioner (Zone) as specified by the State Government.

Words and expressions used in the Act and the Central Rules and not defined in these rules shall have the meaning assigned to them in the Act and the Central Rules.

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1. Clause (xxiv-a) in Rule 2 inserted by Notification No. 249/XXX-4-2014-8(19)-2013, dated 28th February, 2014 (Sixteenth Amendment) Rules, 2014, Published in U.P. Gazette Extra., Part 4, Section (ka), dated 28th February, 2014 (w.e.f. 28-02-2014).
 2. Clauses (xxvi-a) in Rule 2 inserted by Noti. No. 1513/XXX-4-2013-88-99., dated 31st October, 2013 (Fifteenth Amendment) Rules, 2013, Published in U.P. Gazette Extra., Part 4. Section (ka), dated 31st October, 2013 (w.e.f. 31-10-2013).

CHAPTER II

LICENSING OF DRIVERS OF MOTOR VEHICLES

3. Licensing Authority— The licensing authority shall be the Regional Transport Officer or the Assistant Regional Transport Officer or such Regional Inspector or the Assistant Regional Inspector of the Transport Department as is authorised by the Regional Transport Officer or the Assistant Regional Transport Officer to perform the duties of a licensing authority under this chapter.

4. Fee payable for the issue of a medical certificate— The fee payable for the issue of a medical certificate under sub-section (3) of Section 8 shall be rupees ten. In case any Doctor duly empowered to issue such certificate requires any specialist opinion for the purpose and takes it from any other Doctor empowered to issue such certificate, the fee for such specialist opinion shall in addition be rupees ten for each specialist.

5. Appellate Authority— The authority empowered under sub-section (8) of Section 9, sub-section (2) of Section 17 and sub-section (3) of Section 19 to hear appeals against the order of the licensing authority shall be the Deputy Transport Commissioner (Zone) of the Zone concerned.

6. Appeals: Conduct and hearing of— (1) An appeal under Chapter II of the Act shall be preferred in duplicate in the form of memorandum, one copy of which shall bear non-refundable fee of rupees twenty-five in non-judicial stamps, setting forth concisely the grounds of objection to the order of the licensing authority appealed against and shall be accompanied by a certified copy of that order.

(2) When an appeal is preferred, a notice shall be issued to the authority against whose order the appeal is preferred, in such form as the appellate authority may direct.

(3) The appellate authority after giving an opportunity to the parties to be heard and after such further enquiry, if any, as it may deem necessary, may, confirm, vary or set aside the order from which the appeal is preferred and shall make an order accordingly.

7. Maintenance of State Register of Driving Licenses— (1) The licensing authority shall send quarterly return in Form No. 10 of the Central Rules, to an officer of the Transport Department of the State nominated in this behalf by the Secretary to Government in Transport Department from time to time on or before 7th April, 7th July, 7th October and 7th January of every year covering the details for the preceding period of three calendar months.

(2) The officer nominated under sub-rule (1) shall maintain the State Register of Driving Licenses and send to the Director (Transport/Research), Ministry of Surface Transport, New Delhi, a printed copy or copy in such other form as the Central Government may require of that register.

8. Licenses lost or destroyed procedure— (1) If at any time a driver's license is lost by the holder or is destroyed, the holder shall forthwith intimate the facts in writing in Form SR-1 to the licensing authority by whom the license was issued or last renewed.

(2) Upon the receipt of intimation as aforesaid the Licensing authority after making such enquiries as he thinks fit, shall, if satisfied that a duplicate may properly be issued, issue a duplicate license and send intimation to the authority by whom the license was issued or last renewed.

(3) The licensing authority may, in case of doubt, ask the applicant to file an affidavit or a declaration that the driving license in respect of which the application has

been made is actually lost and has not been impounded by any competent authority prescribed under the Act, and, if the applicant is unable to do so, the licensing authority may refuse to issue a duplicate license.

(4) Where a photograph is required to be affixed to a duplicate license issued under the provisions of these rules, the holder of the license shall furnish to the licensing authority with two clear copies of a recent photograph of himself one of which shall be affixed to the duplicate license and the other copy shall be retained for record the authority issuing the duplicate license.

¹[(5) The fee for a duplicate license to be issued under this rule shall be as prescribed in Rule 32 of the Central Motor Vehicles Rules, 1989 in respect of issue of a driving license in Form 7.]

(6) When a duplicate license has been issued upon representation that a license has been lost and original license is afterwards found by the holder, it shall be delivered to the licensing authority, who issued the duplicate license.

(7) Any other person finding a license shall deliver it to the holder of the license or deposit it at the nearest police station.

9. License defaced or torn— (1) If at any time it appears to a licensing authority that the driving licence held by a person is so torn or defaced in any way as to cease to be reasonably legible, the licensing authority may impound the license and issue a duplicate.

(2) If a license impounded as aforesaid is required to have a photograph of holder affixed thereto, then—

- (i) if the photograph on the impounded license is in the opinion of the licensing authority satisfactory and conveniently transferable to the duplicate license, the licensing authority may so transfer, affix, and seal the photograph to the duplicate license;
- (ii) if the photograph affixed to a license impounded under the provisions of sub-rule (1) is not in the opinion of the licensing authority such as can be transferred to the duplicate license, the holder of the license shall, on demand by the licensing authority, furnish three clear copies of a recent photograph of himself one of which shall be affixed to the duplicate license and sealed, one shall be forwarded to the authority by whom the license was issued and the remaining copy shall be retained for record.

²[(3) The fee for a duplicate license to be issued under this rule shall be as prescribed in Rule 32 of the Central Motor Vehicles Rules, 1989 in respect of issue of a driving license in Form 7.]

1. Sub-rules (5) in Rule 8 Subs. by U.P. Motor Vehicles (Sixteenth Amendment) Rules, 2014, Published in U.P. Gazette Extra., Part 4. Section (ka), dated 28th February, 2014 (w.e.f. 28-02-2014).

2. Sub-rules (3) in Rules 9 Subs, by U.P. Motor Vehicles (Sixteenth Amendment) Rules, 2014 (w.e.f. 28-2-2014).

10. License : Replacement of Photograph— (1) If at any time it appears to a Licensing authority that the photograph affixed to the license has ceased to be a clear likeness of the holder, the licensing authority may require the holder to surrender the license forthwith and to furnish three clear copies of a recent photograph of himself and the holder shall, within such time as the licensing authority may specify, appear in person before the licensing authority and present the photographs accordingly.

(2) If the holder fails to comply with a requisition by the Licensing authority under sub-rule (1) the license shall cease to be valid from the expiry of the said period.

(3) Upon the receipt of the copies of the photograph as provided in sub-rule (1) the licensing authority shall remove the old photograph from the license and affix and seal thereto one copy of the new photograph and return the license to the applicant and shall, if he is not licensing authority by whom the license was Issued or last renewed, forward the second copy of the photograph to that authority and retain the remaining copy for record:

Provided that if the holder of the license so desires, the Licensing Authority shall issue a duplicate license with the new photograph affixed thereto and shall destroy the original license. In such a case if the licensing authority is not the authority by whom the license was issued or that last renewed, he shall inform the licensing authority which issued the license or last renewed it.

(4) When a new photograph is affixed to a license, a note shall be made upon the photograph of the date of affixture.

¹[(5) The fee for a duplicate license to be issued under this rule shall be as prescribed in Rule 32 of the Central Motor Vehicles Rules, 1989 in respect of issue of a driving license in Form 7.]

11. License: Issue of duplicate— (1) When a duplicate license is issued under Rules 8, 9 or 10 it shall be clearly marked "Duplicate" in red and shall be marked with the date of issue of the duplicate with the seal of the licensing authority.

(2) If the licensing authority who issues a duplicate license is not the authority by whom the license was issued or last renewed, he shall intimate the fact to the authority which issued the license or last renewed it.

12. Transport Vehicles Driver's Badge— (1) The driver of a transport vehicle shall display on the left side of his chest a metal or plastic badge issued by the authority by which authorization to drive a transport vehicle has been granted. Such badge shall be in Form SR-2. On such badge shall be inscribed the word "Driver" together with an identification number and the name of the issuing authority.

(2) A driver of a transport vehicle shall not hold more than one such badge issued by an authority in the State.

(3) The fee for the issue of a badge as aforesaid shall be rupees ten. If the badge is lost or destroyed, a duplicate badge on payment of rupees twenty shall be issued by the authority by which it was issued earlier. Upon the return to the issuing authority of a badge or duplicate badge the driver shall be entitled to a refund of rupees ten.

1. Sub-rules (5) in Rules 10 Subs. by UP. Motor Vehicles (Sixteenth Amendment) Rules, 2014 (w.e.f. 28-2-2014).

(4) If at any time the authorization on a driver's license entitling him to drive a transport vehicle is suspended or revoked by any authority or by any Court or ceases to be valid by the efflux of time, the driver shall within seven days of such suspension, revocation or cessation, as the case may be, surrender the badge to the authority by which it was issued.

13. Badge not to be transferred— (1) No driver shall lend or transfer his badge to any other person.

(2) Any person finding a driver's badge shall, unless he returns the same to the person whom he knows to be the holder, forthwith hand it over to the authority by which it was issued or to the Licensing authority of the area where it was found or deposit the same at the nearest police station.

14. Transport Vehicle Driver's Uniform— A driver of a transport vehicle other than a motor cab shall wear the following uniform—

- a. Khaki bush-shirt or coat with four pockets flap;
- b. Khaki full pants; and
- c. Khaki cap or turban.

15. Exemption of certain persons from driving license or test of competence fee— No fee shall be charged for the issue or renewal of a driving license or learner's license or for a test of competence to drive from a person in the employment of Government as a driver or in the employment of Government and selected for training to become a driver.

16. Exemption of drivers of road-roller from driving license— Nothing contained in Chapter II of the Act shall apply to the driver of a road-roller.

17. Drivers of Transport Vehicles, duties, functions and conduct of—

(1) The driver of transport vehicle shall—

- (i) as far as may be reasonably possible having regard to his duties, be responsible for the due observance of the provisions of the Act and the rules made there under;
- (ii) not smoke while on duty or drive the vehicle in a drunken state or under the influence of a drug to such an extent as to be incapable of exercising proper control over the vehicle;
- (iii) behave in a civil and orderly manner with passengers and intending passengers;
- (iv) wear clean uniform while on duty;
- (v) maintain the vehicle, including its furniture and fittings, in a clean and sanitary condition and in reasonable state of repairs;
- (vi) not solicit custom save in civil and quiet manner;
- (vii) not interfere with any person mounting or preparing to mount upon any other vehicle;
- (viii) not allow any person to be carried in the transport vehicle in excess of the seating capacity specified in the certificate or registration of the vehicle and any additional number permitted under the terms of the permit to be earned standing in the vehicle;
- (ix) not allow any goods to be carried in the transport vehicle in excess of

the permitted load capacity specified in the certificate of registration of the vehicle;

- (x) not, save for good and sufficient reason, refuse to carry any person tendering the legal fare or to let his vehicle for hire on demand;
- (xi) where goods are carried in addition to passengers, take all reasonable precautions to ensure that passengers are not endangered or unduly inconvenienced by the presence of the goods;
- (xii) not, save for good and sufficient reason, require any person who has paid the legal fare to alight from the vehicle before the conclusion of the journey;
- (xiii) not, loiter or unduly delay upon any journey but shall proceed to his destination as near as may be in accordance with the timetable, pertaining to the vehicle, or where there is no such timetable with all reasonable despatch;
- (xiv) in the event of a stage carriage being unable to proceed to its destination on account of mechanical breakdown or other cause beyond the control of the driver, arrange to convey the passengers to the destination in some other similar vehicle, or, if, unable so to arrange within a period of half an hour after the failure of the vehicle, shall on demand return to each passenger a proper portion of the fare relating to the completion of the journey for which the passenger has paid the fare;
- (xv) not, in the case of a stage carriage, cause or allow anything to be placed in the vehicle in such a manner as to obstruct the entry or exit of passengers;
- (xvi) not, demand or accept from any passenger or hirer any fare or hire for the carriage of goods more than the fare or hire fixed by the State Government from time to time;
- (xvii) assist the passenger, if necessary, in mounting upon or alighting from the vehicle and in loading and unloading their luggage;
- (xviii) in the case of a stage carriage, be responsible for the carriage of a complaint book in the stage carriage;
- (xix) not cause or allow any person, animal, or thing to be placed or to be in the space reserved for the driver's seat, so as to impede him in having a clear vision of the road or proper control of the vehicle;
- (xx) not shout in order to attract passengers;
- (xxi) subject to any rules or regulations made under the Act and in force prohibiting the taking up or setting down of passengers at, or except at certain specified places, bring vehicle to rest for a sufficient period of time in a safe and convenient position upon the demand or signal of the conductor or of any passenger desiring to alight from the vehicle and unless there is no room in the vehicle, upon the demand or signal of any person desiring to become a passenger;
- (xxii) not, cause or allow any such vehicle to stand or loiter in any public place for the purpose of collecting passengers or goods save in such place and in such manner as may be approved by competent authority;

- (xxiii) not, wrongfully obstruct or attempt to obstruct the driver, conductor or other person in charge of any other transport vehicle in the transaction of his business.
- (xxiv) not, when bringing his vehicle to rest for the purpose of picking or setting down any passenger at or near the place where another public service vehicle is at rest for the same purpose, drive the vehicle so as to endanger, inconvenience or interfere with the driver or the conductor of the other vehicle or any person mounting or preparing to amount thereon or alighting there from, and shall bring his vehicle to rest in front of or behind the other vehicle and on the left and side of the road or place,
- (xxv) at all times exercise all reasonable care and diligence to maintain his vehicle in a fit and proper condition and shall not knowingly drive the vehicle when it or any brake, tyre or lamp thereof is in a defective condition or likely to endanger any passenger or other person or when there is not sufficient fuel in the tank of the vehicle to enable him to reach the next petrol filling station on the route, and
- (xxvi) the driver of a goods vehicle shall keep and maintain in English or in Hindi a record in Form SR-3, and shall on demand made by any officer of the Transport Department mentioned in sub-rule (1) of Rule 227 produce it for inspection.

(2) A driver of a motor cab in addition to the duties mentioned in sub-rule (1) shall also (i) in absence of reasonable cause proceed to the destination for which the vehicle is hired by the shortest and quickest route, and (ii) neither allow his cab when disengaged to remain at a place other than the stand appointed for the purpose nor loiter for the purpose in or upon any public street, road or place for the purpose of his vehicle being hired.

(3) A copy in Hindi version of the list of duties of the driver enumerated in clauses (i) to (xxvi) of sub-rule (1) shall be carried in a prominent place in every transport vehicle.

18. Change of Residence— The holder of a driver's license shall, except in the case of a temporary absence not involving a change of residence for a period exceeding three months, report any change, of his temporary or permanent address as given in the license to the licensing authority by whom the license was issued or last renewed.

¹[18-A. Documents for the Proof of Address and Age— For issue of Motor Driving License and Vehicle Registration Certificate the following documents, other than those specified in Rule 4 of the Central Motor Vehicles Rules, 1989, may also be accepted by the Licensing Authority as evidence of address and age, namely—

- (1) Voter Identity Card,
- (2) Pension Pass Book,
- (3) Arms License,
- (4) An Identity Card (in case of Central Government or State Government employees, issued by the employer).
- (5) Aadhar card.]

1. New Rule 18-A, Subs. by Notification No. 20/2016/915/XXX-4-2016-1(Sa)-2016, dated 6th July, 2016 (Twenty Fourth Amendment) Rules, 2016 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 6th July, 2016 (w.e.f. 06-07-2016)

CHAPTER III
Licensing of Conductor of Stage Carriages

19. Licensing Authority— The licensing authority under Chapter III of the Act shall be the Regional Transport Officer or the Assistant Regional Transport Officer or such Regional Inspector or the Assistant Regional Inspector of the Transport Department as is authorized by the Regional Transport Officer or the Assistant Regional Transport Officer to perform the duties of a licensing authority.

20. Minimum educational qualification for grant of conductor's license— The minimum educational qualification for the grant of conductor's license shall be High School or any equivalent examination recognised by the State Government:

Provided that this rule shall not apply to a person who has obtained a conductor's license before the date of coming into force of these rules.

21. Condition for exemption from holding a conductor's license— (1) Where in an emergency it becomes difficult for the permit-holder to provide a licensed conductor for his stage carriage or where a licensed conductor on duty, for reasons beyond his control, cannot perform his duties, the driver of a stage carriage may, for a period not exceeding one month, act as a conductor of a stage carriage without holding a conductor's license.

(2) Any person other than driver of a stage carriage may act as a conductor without holding a conductor's license for a period not exceeding one month, if—

- (i) he intimates his intention to do so in Form SR-4 to the licensing authority within whose jurisdiction he intends to act as a conductor;
- (ii) he is not disqualified for holding a conductor's license; and
- (iii) he has not on previous occasions acted as a conductor without a license for a total period exceeding one month.

22. Conductor: Licensing of— (1) No person shall work as a conductor of a stage carriage, and no employer shall so employ any person, unless such person holds a conductor's license in Form SR-5 granted by the licensing authority.

(2) A conductor's license issued shall be valid for three years from the date of issue or renewal and shall be effective throughout the State.

(3) A conductor's license issued by any other State with which reciprocity on the point has been arrived at, shall be deemed to be a valid license under these rules.

(4) Application for a conductor's license shall be made in writing in Form SR-6 to the licensing authority of the district wherein the applicant resides.

(5) The fee for a conductor's license shall be as specified in sub-section (5) of Section 30.

(6) The medical certificate required by sub-section (3) of Section 30 shall be in Form SR-7.

23. Change of Residence— The holder of a conductor's license shall, except in the case of a temporary absence not involving a change of residence for a period exceeding three months, report any change in his temporary or permanent address as notified on the license, to the licensing authority by whom the license was granted or was last renewed.

24. Renewal of conductor's license— (1) An application for the renewal of a conductor's license shall be made in Form SR-8 and shall be accompanied by the

conductor's license, three clear copies of his recent passport size photograph, the medical certificate required by sub-section (3) of Section 30 and the fees as required under sub-section (5) of Section 30 and shall be addressed to the licensing authority having jurisdiction in the area in which he ordinarily resides or carries on business.

(2) A licensing authority renewing a conductor's license, if the license was not issued by the authority, shall intimate the fact of renewal in Form SR-9 to the licensing authority by whom the license was issued or last renewed.

25. Appellate Authority— The authority empowered under Section (2) of Section 33 and under sub-section (4) of Section 34 to hear appeals against the order of the licensing authority shall be the Deputy Transport Commissioner (Zone) of the zone concerned.

26. Appeals: Conduct and hearing of— (1) An appeal under Chapter III of the Act, shall be preferred in duplicate in the form of a memorandum; one copy of which shall bear a non-refundable fee of rupees twenty-five in non-judicial stamps, setting forth concisely the grounds of objection to the order of the licensing authority appealed from, and shall be accompanied by a certified copy of that order.

(2) When an appeal is preferred, a notice shall be issued to the authority against whose order the appeal is preferred in such form as the appellate authority may direct.

(3) The appellate authority after giving an opportunity to the parties to be heard and after such further enquiry, if any, as it may deem necessary, may confirm, vary or set aside the order from which the appeal is preferred, and shall make an order accordingly

(4) The Regional Transport Officer or Assistant Regional Transport Officer may in his discretion, give any person interested in an appeal preferred under Chapter III of the Act, copies of any document connected with the appeal on payment of a fee of rupees five per copy of each document and a stamp-duty payable under the Stamp Act.

(5) The Deputy Transport Commissioner of the Zone or the Regional Transport Officer or Assistant Regional Transport Officer may allow any person interested in an appeal to inspect the files connected with such appeals on payment of a fee of rupees ten for every hour or part thereof and a court-fee of rupees two on the application payable under the Stamp Act.

27. License lost or destroyed: Procedure— (1) If at any time a license issued under the provisions of Chapter III of the Act, is lost by the holder or is destroyed, the holder shall forthwith intimate the facts in writing in Form SR-10 to the licensing authority by whom the license was issued or last renewed.

(2) Upon the receipt of intimation as aforesaid, the licensing authority after making such enquiries as he thinks fit, shall, if satisfied that a duplicate may properly be issued, issue a duplicate license and send intimation to the authority by whom the license was issued or last renewed.

(3) The licensing authority may, in case of doubt, ask the applicant to file an affidavit or a declaration that the license in respect of which the application has been made is actually lost and has not been impounded by any competent authority prescribed under the Act, and if the applicant is unable to do so, the licensing authority may refuse to issue a duplicate license.

(4) Where-a photograph is required to be affixed to a duplicate license issued under the provisions of these rules, the holder of the license shall furnish the licensing authority with two clear copies of a recent photograph of himself, one of which shall be

affixed to the duplicate license and the copy shall be retained for record by the authority issuing the duplicate license.

(5) The fee for a duplicate license issued under this rule shall be rupees ten.

(6) When a duplicate license has been issued upon representation that a license has been lost and original license is afterwards found by the holder it shall be delivered to the licensing authority which issued the duplicate license.

(7) Any other person finding a license shall deliver it to the holder of the license or deposit it at the nearest police station.

28. License: Defaced or Torn— (1) If at any time it appears to a licensing authority that the license held by any person is so torn or defaced in any way as to cease to be reasonably legible, the licensing authority may impound the license and issue a duplicate.

(2) If a license impounded as aforesaid is required to have a photograph of holder affixed thereto then—

- (i) if the photograph on the impounded license is in the opinion of the licensing authority satisfactory and conveniently transferable to the duplicate license, the licensing authority may so transfer, affix and seal the photograph to the duplicate license; or
- (ii) if the photograph affixed to a license impounded under the provision of sub- rule (1) is not in the opinion of the licensing authority such as can be transferred to the duplicate license, the holder of the license shall on demand by the licensing authority, furnish three clear copies of a recent passport size photograph of himself, one of which shall be affixed to the duplicate license and sealed, one shall be forwarded to the authority by whom the license was issued and the remaining copy shall be retained for record by the authority issuing the duplicate license.
- (iii) The fee for a duplicate license issued under this rule shall be rupees ten.

29. License : Replacement of photograph— (1) If at any time it appears to a licensing authority that the photograph, affixed to the license has ceased to be a clear likeness of the holder the licensing authority may require the holder to surrender the license forthwith and to furnish three clear copies of a recent passport size photograph of himself and the holder, shall, within such time as the licensing authority may specify appear in person before the licensing authority and present the photograph accordingly.

(2) If the holder fails to comply with a requisition by the licensing authority under sub-rule (1) the license shall cease to be valid from the expiry of the said period.

(3) Upon the receipt of the copies of the photograph as provided in sub-rule(1), the licensing authority shall remove the old photograph from the license and affix, and seal thereto one copy of the new photograph and return the license to the applicant and shall, if he is not licensing authority by whom the license was issued or last renewed, forward the second copy at the photograph to that authority and retain the remaining copy thereof for his record :

Provided that if the holder of the license so desires, the licensing authority shall issue a duplicate license with the new photograph affixed thereto and shall destroy the original license. In such a case if the licensing authority is not the authority by whom the license was issued, he shall inform the original licensing authority.

(4) The fee for a duplicate license issued under the proviso to sub-rule (3) shall be rupees ten.

30. License: Issue of duplicate— (1) When a duplicate license is issued under Rules 27, 28 or 29, it shall be clearly marked 'Duplicate' in red and shall be marked with the date of issue of the duplicate with the seal of the licensing authority;

(2) If the licensing authority who issues a duplicate license is not the authority by whom the license was issued, he shall intimate the fact to that authority.

31. Conductor's Badge— (1) The conductor of a stage carriage shall display on the left side of his chest, a metal or plastic badge issued by the authority by which conductor's license has been granted. Such badge shall be in Form SR-11. On such badge shall be inscribed the word 'Conductor' together with an identification number and the name of the licensing authority. The conductor to stage carriage displaying a badge issued by the other State with whom reciprocity on the point has been arrived at, shall be deemed to be displaying a badge issued under this rule.

(2) A conductor shall not hold more than one such badge issued by an authority in the State.

(3) The fee for the issue of a badge as aforesaid shall be rupees ten. If the badge is lost or destroyed, a duplicate badge on payment of rupees twenty shall be issued by the authority which issued it earlier. Upon the return to the issuing authority of a badge or a duplicate badge the conductor shall be entitled to a refund of rupees ten.

(4) If at any time a conductor's license is suspended or cancelled by competent authority or by any Court, or ceases to be valid by the efflux of time, the conductor shall, within seven days of such suspension, cancellation or cessation surrender the badge to the authority by which it was issued.

32. Badge not be transferred— (1) No conductor shall lend or transfer his badge to any other person.

(2) Any person finding a conductor's badge shall, unless he returns the same to the person whom he knows to be the holder, forthwith send it to the authority by which it was issued or to the licensing authority of the area, where it was found or deposit the same at the nearest police station.

33. Conductor's Uniform— A conductor of a stage carriage shall wear the following uniform—

- a. Salatee bush-shirt or coat with four pocket flap;
- b. Salatee full pants; and
- c. Salatee cap or turban.

34. Conductor of stage carriage: Duties, functions and conduct of— (1) The conductor of a stage carriage, shall—

- a. as far as may be reasonably possible having regard to his duties, be responsible for the due observance of the provisions of the Act and the rules made thereunder;
- b. not smoke while on duty or conduct the vehicle in a drunken state or under the influence of a drug to such an extent as to be incapable of exercising proper control over himself;

- c. behave in a civil and orderly manner with passengers and intending passengers;
- d. wear clean uniform on duty;
- e. maintain the vehicle in a clean and sanitary condition;
- f. not solicit custom save in a civil and quiet manner;
- g. not interfere with persons mounting or preparing to mount upon any other vehicle;
- h. not allow any person to be carried in any stage carriage in excess of the seating capacity specified in the certificate of registration of the vehicle and any additional number permitted under the terms of the permit to be carried standing as specified in the certificate of registration of the vehicle;
- i. not allow any goods to be carried in any stage carriage in excess of the permitted load capacity specified in the certificate of registration of the vehicle;
- j. not, save for good and sufficient reasons, refuse to carry any person tendering the legal fare or to let his vehicle for hire on demand;
- k. where goods are carried on the vehicle in addition to passengers, take all reasonable precautions to ensure that passengers are not endangered or unduly inconvenienced by the presence of the goods;
- l. not save for good and sufficient reason, require any person who has paid the legal fare to alight from the vehicle before the conclusion of his journey;
- m. not loiter or unduly delay upon any journey but shall proceed to his destination as near as may be in accordance with the time-table pertaining to the vehicle, or, where there is no such time-table, with all reasonable dispatch;
- n. being unable to proceed to its destination on account of mechanical breakdown or other cause beyond the control of the driver or the conductor arrange to convey the passengers to the destination in some other similar vehicle, or if unable so to arrange within a period of half an hour after the failure of the vehicle, shall on demand refund to each passenger a proper portion of the fare respecting the unfinished journey for which the passenger has paid the fare;
- o. not cause or allow anything to be placed in the vehicle in such a manner as to obstruct the entry or exit of passengers;
- p. not demand or accept from any passenger or hirer any fare or hire for the carriage of goods other than the fare or hire prescribed by the competent authority;
- q. assist the passengers where necessary, in entering and leaving the vehicle and in loading and unloading their luggage, while loading, the conductor would go up and the passenger or his agent would lift his luggage which would be kept properly by the conductor on the top of the vehicle. While unloading, the conductor would lower down the luggage for the

passenger or his agent, who would take it from him standing on the ground;

- r. after the driver has stopped the vehicle at an unmanned railway crossing, get down there and after ensuring that no railway train or other railway vehicle is coming on the railway track, shall give a signal to the driver to cross it;
- s. be responsible for the carriage of a complaint book in the stage carriage;
- t. not, cause or allow any person, animal or thing to be placed or to be in the space reserved for the driver's seat so as to impede him in having a clear vision of the road for proper control of the vehicle;
- u. subject to any rules or regulations in force prohibiting the taking up or setting down of passengers at or except at certain specified places, signal the driver to bring the vehicle to rest for a sufficient period of time in the event of any passenger desiring to alight from the vehicle and, unless there is no room in the vehicle, upon the demand or signal of any person desiring to become a passenger;
- v. not cause or allow any such vehicle to stand or loiter in any public place for the purpose of collecting passengers save in such place and in such manner as may be approved by competent authority;
- w. not wrongfully obstruct or attempt to obstruct the driver, conductor or other person in-charge of any other public service vehicle in the transaction of his business;
- x. issue ticket immediately on payment of legal fare by a passenger unless the maximum passenger capacity of the vehicle has already been reached;
- y. at the conclusion of any journey, make reasonable search in the vehicle for any articles left by any passenger and shall take into his custody any article so found and upon the first reasonable opportunity, within 24 hours at the latest, make over the same to a responsible person at any office or station of the holder of the permit for the vehicle, or to an officer at a police station and shall likewise take into his custody and dispose of any articles so found by any other person;
- z. assist the driver and be on the lookout for other motor vehicles approaching from behind and effectively signal their approach to the driver;
- aa. not, while he is on duty, permit the vehicle to be used for illegal or immoral purposes;
- bb. not permit any fuel to be poured into fuel tank while the engine is in motion;
- cc. in the event of an accident to the vehicle make reasonable efforts to help the injured persons and to inform the nearest police station immediately;
- dd. help the infants, disabled, pregnant ladies, old aged passengers and the ladies with child in arm, to board or alight the vehicle;
- ee. when the driver is taking the vehicle in reverse, get down from the

vehicle and be on the lookout for other motor vehicle or any other obstacle in the track of the vehicle and effectively give sign alto the driver;

- ff. not, allow any explosives or dangerous inflammable substances to be carried in the vehicle;
- gg. take all reasonable precautions to prevent the luggage being miscarried or lost on the way;
- hh. not, cause or allow to enter into or carried in the vehicle any person whom he knows or has reason to believe to be suffering from an infectious or contagious disease;
- ii. not, shout in order to attract a passenger.

(2) A copy in Hindi version of the list of duties of the conductor enumerated in clauses (i) to (xxxv) of sub-rule (1) above shall be carried in a prominent place in every stage carriage.

CHAPTER IV
Registration of Motor Vehicle

35. Appellate Authority— (1) The authority to hear appeals under Section 57 shall be the Deputy Transport Commissioner (Zone) of the zone concerned.

(2) The Transport Commissioner or Additional Transport Commissioner empowered in this behalf by the Transport Commissioner, on the application of a party, may transfer any appeal from one appellate authority to another Appellate Authority.

36. Appeals—Conduct and hearing of— (1) An appeal under Section 57 shall be preferred in duplicate in the form of a memorandum, one copy of which shall bear a fee of rupees twenty-five in non-judicial stamps, setting forth concisely the grounds of objection to the order of the registering authority appealed from and shall be accompanied by a certified copy of that order.

(2) When an appeal is preferred, a notice shall be issued to the registering authority in such form as the appellate authority may direct.

(3) The appellate authority, after giving an opportunity to the parties to be heard and after such further enquiry, if any, as it may deem necessary, may confirm, vary, or set aside the order of the registering authority and shall make an order accordingly.

(4) Any person preferring an appeal under the provisions of the Act shall be entitled to obtain a copy of any document filed with the registering authority in connection with any order, against which he has preferred an appeal, on payment of a fee of rupees five in respect of each such document.

(5) Subject to the provisions of sub-rule (4) the appellate authority or the registering authority may in its discretion, give to any person interested in an appeal preferred under Chapter IV of the Act, copies of any document connected with appeal, on payment of a fee of rupees five per copy of each document.

(6) The appellate authority or the registering authority may allow any person interested in an appeal to inspect the file connected with such appeal on payment of a fee of rupees ten per hour or part thereof.

37. Registering Authority— (1) The registering authority shall be the Regional Transport Officer or Assistant Regional Transport Officer or such Regional Inspector of the Transport Department as is authorised by the Regional Transport Officer or Assistant Regional Transport Officer to perform the duties of the registering authority under the provisions of the Act and the rules made there under.

(2) *Special Registering Authority.*—The State Government may by an order notified in the Official Gazette appoint any individual from amongst the persons engaged in the manufacture or sale of new motor vehicles as the special registering authority to act as the prescribed authority under sub-section (1) of Section 43 for issuing temporary certificate of registration and a temporary mark in respect of new motor vehicles which are sold and released by the firms engaged in the manufacture or sale of motor vehicles and are proceeding immediately on registration to a place outside the premises of the firm.

38. Transport vehicles particulars to be painted on— (1) The following particulars in respect of a transport vehicle other than a motor cab, shall be exhibited on the left-hand side of such vehicles—

- (i) Name and address of registered owner,

- (ii) The unladen weight of the vehicle, denoted by U.L.W.....kg.;
- (iii) The gross vehicle weight, denoted by G.V.W... ..kg.;
- (iv) The number of passengers for whom accommodation is provided, denoted by pass.....;
- (v) The registered front axle weight, denoted by F.A.W.....kg.;
- (vi) The registered axle weight of each intermediate axle, if any-denoted by M.A.W.....kg.;
- (vii) The number, nature and size of tyres;
 - (1) Front axle, denoted by.....Nos. x.....;
 - (2) Rear axle, denoted by.....Nos. x.....;
 - (3) Intermediate axle, denoted by.....Nos.x.....;
 - (4) The maximum speed at which the vehicle may be driven without a trailer attached.....;

Provided that the name and address of the registered owner shall also be exhibited on the right-hand side of such vehicle.

(2) The particulars specified in sub-rule (1) shall be set forth in Hindi in Devanagari script or in English with international numerals, each, not less than six millimetres high, legibly painted on a plain surface or a plate affixed to the vehicle.

(3) In addition, the particulars of the route along which a stage carriage is authorised to ply, permit number and its validity shall be legibly displayed in Hindi in Devanagari script characters not less than ten centimetres high in black on a white ground on a board or plate affixed to the front of the vehicle at the level of the roof.

(4) Vehicles registered under Section 60 need not exhibit the particulars specified in clauses (i), (iv) and (viii) of sub-rule (1).

39. Certificate of fitness—Grant and issue—¹ (1) (a) For the purpose of section 56, the prescribed authority shall be the registering authority or Automated Testing Station of any district of the State, where such vehicle is being operated. In case the vehicle is operating in other state, the prescribed authority shall be the registering authority or Automated Testing Station of the nearest district of Uttar Pradesh:

Provided that if the tests specified in Rule 62 of Central Motor vehicle Rules, 1989, are conducted by an Inspecting Officer or authorised testing station in any district other than the district, where the vehicle is registered, the Inspecting Officer who conducted the tests shall, on the same day or on the following working day, upload his inspection report in Form 38A at the portal parivahan.gov.in/vahan and also send the inspection report signed under his hand and seal to the registering authority by speed post for issue of certificate of fitness by the registering authority within fifteen days from the date of the inspection report, if the vehicle is found by the Inspecting Officer to be in compliance with the provisions of the Act and rules and a copy shall be given to the driver of the vehicle:

Provided further that the next fitness certificate is obtained from the inspecting officer or an authorised testing station in the district of the registering authority where the vehicle is registered.

1. Rule 39 (4), Substituted by Notification No.17/2023/715/xxx-4-2023-30-4099/22/2022, dated 19th May, 2023 (Twenty-Nine Amendment) Rules, 2023 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 19th May, 2023 (w.e.f. 19-05-2023)

(b) The registering authority or the authorised testing station shall grant certificate of fitness when a vehicle is produced for the inspection and complies with the provision of the Motor Vehicles Act, 1988 and rules made there under.

(c) The owner may produce the vehicle for inspection before the registering authority or the authorised testing station on any working day not more than 60 days before expiry of fitness certificate along with test fee specified in rule 81 of the Central Motor Vehicles Rules, 1989.

(d) If the vehicle fails in the test, the owner may produce the vehicle for retest along with test fee as specified in rule 81 of the Central Motor Vehicles Rules, 1989.

(e) The inspection and test report shall be made in Form- SR-12 by the inspecting officer or authorized testing station.

(f) If the vehicle fitness certificate is renewed on any date after the expiry of fitness certificate, the renewal shall be effective from the date of issue of the certificate:

Provided that where the vehicle fitness certificate is renewed on any date before the expiry of the fitness certificate, the renewal shall be effective from the date of expiry of the fitness certificate.]

(2) [****]¹

(3) [****]¹

(4) ³[If the owner fails to produce the vehicle for inspection before expiry of fitness certificate, he shall be liable to pay an amount equivalent to and in addition to the amount of the fee specified in rule 81 of the Central Motor Vehicles Rules, 1989.]

(5) There shall not be more than one certificate of fitness in respect of any vehicle.

(6) If, owing to mechanical breakdown or other cause, a vehicle is, after the expiry of the certificate of fitness, outside the functional area of the registering authority by whom the certificate of fitness is to be issued, the registering authority may without prejudice to any penalty, to which the owner or the driver may have become liable, if the vehicle is, in his opinion, fit for use, by endorsement in Form SR-14 and subject to such conditions as he may specify authorise its use for such time as may reasonable be necessary for the vehicle to return to the area of the registering authority by whom the certificate of fitness is to be issued, and the vehicle may be driven to such area in accordance with such endorsement, but shall not be used after return to that area until the certificate of fitness has been issued :

Provided that no authorised testing station situated outside the area of jurisdiction in which the owner should have obtained the certificate of fitness, shall issue such authorization to any vehicle under this sub-rule.

(7) If a vehicle is damaged at any time so as to be unfit for ordinary use and may in the opinion of any registering authority safely be driven at a reduced speed to a place of repairs, and if the registering authority is satisfied that it is necessary that the vehicle should be so driven, any registering authority may by endorsement in Form SR-15 specify the time within which and the conditions, including speed limit, subject to which the vehicle may be driven to a specified destination for the purpose of repairs.

1. Rule 39 (2) and (3), Omitted by Notification No.17/2023/715/xxx-4-2023-30-4099/22/2022, dated 19th May, 2023 (Twenty-Nine Amendment) Rules, 2023 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 19th May, 2023 (w.e.f. 19-05-2023)

3. Rule 39 (4), Substituted by Notification No.17/2023/715/xxx-4-2023-30-4099/22/2022, dated 19th May, 2023 (Twenty-Nine Amendment) Rules, 2023 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 19th May, 2023 (w.e.f. 19-05-2023)

(8) Where a prescribed authority cancels a certificate of fitness under sub-section (4) of Section 56, it shall—

(a) Supply to the owner or the person in charge of the vehicle reasons in writing for such cancellation;

(b) issue to the said owner or the person temporary authorisation for the removal of the motor vehicle in Form SR-16 specifying the time and the conditions subject to which the vehicle may be driven to a specified destination for the purpose of repairs.

40. Inspection at other times— The registering authority may in order to satisfy himself that the provisions of Chapters VII and VIII of the Act are being observed, at any time require the owner or person in charge of any motor vehicle to produce the said vehicle before him or before an authority appointed by him for this purpose at such time and place as he may by general or special order direct and the owner or person in charge of any such motor vehicle shall comply with such direction and allow the registering authority or any officer appointed by him full facilities for inspecting the said vehicle.

41. Registration—Temporary— (1) Subject to the provisions of Section 43 of the Act and of this rule, a registering authority or a special registering authority may issue temporary certificate of registration.

(2) An application for temporary registration clearly marked Temporary shall be presented before the authority concerned in Form SR-17.

(3) A temporary certificate of registration shall be issued in Form SR-18.

(4) The authority granting a temporary certificate of registration shall in all cases forward a copy of Form SR-18 to the registering authority in whose area the vehicle is ordinarily to be kept:

Provided that where a temporary certificate of registration is granted by a special registering authority, a copy of Form SR-17 shall also be forwarded by the authority to the registering authority in whose area it has its place of manufacture or sale of motor vehicles:

Provided further that the records of the special registering authority, maintained for the purpose of issue of temporary certificates of registration, shall be open for inspection at all reasonable times by an officer of the Transport Department of the State not below the rank of Assistant Regional Transport Officer,

(5) The authority granting a temporary certificate of registration shall assign a temporary registration mark to the vehicle.

(6) The temporary registration mark to be assigned under sub-rule (5) shall consist of the letters allotted to the registering authority in the First Schedule followed by an allotted number and the letter "T".

42. Certificate of fitness torn or defaced— If at any time it appears to the registering authority that certificate of fitness issued by him or by the authorised testing station is so torn or defaced as to cease to be reasonably legible, he may impound such certificate and direct the owner of the vehicle covered by the certificate, to apply for the issue of a certificate of fitness.

43. Certificate of fitness: Loss or destruction of— (1) If at any time the certificate of fitness is lost or destroyed the owner shall forthwith intimate the fact in writing to the registering authority by whom or the authorised testing station by which the certificate of fitness was issued for the issue of a duplicate certificate of fitness. On receipt

of such application the registering authority or the authorised testing station, as the case may be, may after making such enquiries as it thinks fit, issue duplicate certificate of fitness.

(2) An application for duplicate certificate of fitness shall be accompanied with a fee of rupees fifty.

44. Compounding fees for late intimation— The compounding fees, in lieu of any action that may be taken against the owner of a motor vehicle under Section 177 for delay in submission of application for registration or for renewal of registration under sub-section (13) of Section 41 or for assignment of a new registration mark under sub-section (7) of Section 47 or for recording his new address under sub-section (4) of Section 49 or for recording of transfer of ownership of the vehicle under sub-section (5) of Section 50 for delay of each week or part thereof, shall be—

- (1) In respect of an invalid carriage; rupee one;
- (2) In respect of motor cycle; rupees five;
- (3) in respect of motor vehicle other than a transport vehicle, excluding an invalid carriage or a motor cycle; rupees twenty-five;
- (4) in respect of a transport vehicle; rupees fifty:

Provided that the amount of compounding fee shall in no case exceed rupees one hundred.

45. Certificate of Registration: Authority empowered to suspend— The registering authority or any officer of the Transport Department not below the rank of Passengers/Goods Tax Officer excluding the Deputy Transport Commissioner (Zone) may suspend the certificate of registration of a motor vehicle under Section 53.

46. Intimation in respect of vehicles not registered with in Uttar Pradesh— In addition to the requirements of sub-section (4) of Section 47 when any motor vehicle which is not registered in Uttar Pradesh has been kept within the State for a period exceeding thirty days, the owner or other person in charge of the vehicle shall send intimation along with the certificate of registration of the vehicle to the registering authority of the area in which the motor vehicle is at lime of making the report and shall intimate—

- (i) his name and permanent address, and his address for the time being;
- (ii) the registration mark of the vehicle;
- (iii) the make and description of the vehicle, and
- (iv) in the case of transport vehicle, the name of the authority within Uttar Pradesh by whom the permit has been issued or counter-signed:

Provided that in the case of a transport vehicle covered by a permit having validity in Uttar Pradesh, it shall only be necessary to make a report under this sub- rule upon the first occasion when a report is due.

(2) Upon receipt of intimation under sub-rule (1) the registering authority shall, after making such verification as it thinks fit, communicate the particulars of registration of the vehicle to the registering authority by whom the vehicle was previously registered.

(3) Nothing in this rule shall apply to a motor vehicle registered under Section 60 or to a motor vehicle exempt from registration under provisions of Rule 47.

47. Exemption of vehicle in possession of manufacturers or dealers— Section 39 shall not apply to a motor vehicle in the possession of a dealer in motor vehicles in the course of the business of the dealer so long as it is used under the authorisation of a trade certificate granted by the registering authority within whose area the dealer has his place of business and is used for any of the purposes specified in Rule 41 of the Central Rules.

48. Maintenance of State Registers of Motor Vehicles— (1) The registering authority shall maintain a State Register of Motor Vehicles in such form as prescribed by the Central Government.

(2) This register may be either in bound book form or on computer disc or tape.

(3) As soon as the vehicle is registered, the necessary entries shall be taken up or entered in the State Register of Motor Vehicles.

(4) The State Register for Motor Vehicles shall be maintained according to the class of the vehicle, that is to say, transport or non-transport and also if the registration of all types of vehicles is in large number according to the detailed classification of the vehicle, that is to say two-wheeler, cars, goods vehicles, carriages, tractors, etc., as decided by the registering authority,

49. Exemption of road-rollers, etc— All road-rollers, graders and other vehicles designed and used solely for road-making and cleansing shall be exempted from the provisions of Chapter IV of the Act and the rules made thereunder.

¹**[50. Exemption from payment of registration fees—** No fee shall be charged for the registration i.e., registration, re-registration and fitness (test and issuance of certificate) of motor vehicles of following descriptions: -

- (i) Tractors and locomotives used solely for agricultural purposes;
- (ii) Motor ambulances owned by charitable institutions and used solely for the conveyance of sick or injured;
- (iii) Motor vehicles either owned by Government or for the time being in the service of the Government;
- (iv) Motor vehicles scrapped in the Registered Vehicle Scrapping Facility Centre established under Motor Vehicles (Registration and functions of Vehicle Scrapping Facility) Rules, 2021 issued under the Central Motor Vehicle Rules, 1989 for one year from the date of this notification.
- (v) any electric vehicle (EV) purchased and registered in the State of Uttar Pradesh over a period of 03 years from the date of notification of Uttar Pradesh Electric Vehicle Manufacturing and Mobility Policy, 2022, i.e., 14.10.2022;
- (vi) any electric vehicle (EV) manufactured, purchased and registered in Uttar Pradesh in the fourth and fifth year of effective period of Uttar Pradesh Electric Vehicle Manufacturing and Mobility Policy, 2022 notified on 14.10.2022 covered under sub-rule (v).

1. Rule 50, Subs. by Notification No.21/2023/814/xxx-4-2023-8(19)/2018 TC, dated 12th June, 2023 (Thirtieth Amendment) Rules, 2023 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 12th June, 2023 (w.e.f. 12-06-2023)

Explanation: In sub-rule (v), Electric vehicles (EV) means all automobiles using an electric motor that are driven by either batteries, ultra-capacitors or fuel cells. This includes all 2-wheeler, 3-wheeler and 4-wheeler Strong Hybrid Electric Vehicle (HEV), Plug in Hybrid Electric Vehicle (PHEV), Battery Electric Vehicle (BEV) and Fuel Cell Electric Vehicle (FCEV).]

¹[51. Assignment of Registration Mark— (1) The registered numbers shall be assigned serially in the order in which applications are received except in case of numbers reserved under clause (iv)(a) and (b) of sub rule (2) of rule 51A of the Uttar Pradesh Motor Vehicles Rules, 1998.

(2) A number once assigned to a motor vehicle shall not be assigned to any other motor vehicle nor shall the cancelled registered number of a motor vehicle be assigned to any other motor vehicle:

Provided that, registration mark of an old vehicle may be given to a new vehicle of same class purchased by the same owner after paying prescribed fee provided in clause (v) of this rule hereunder along with registration fee and tax for new vehicle under the following terms and conditions: -

- (i) The owner of the new vehicle shall apply for the registration of new vehicle along with the documents prescribed in rule-47 of the Central Motor Vehicle Rules, 1989 and also apply simultaneously for porting his old number to new vehicle. If the old vehicle is registered under the jurisdiction of another registering authority owner shall also obtain no objection certificate under Section 48 of the Motor Vehicle Act, 1988 from another registering authority.
- (ii) The Registering Authority shall allot new registration number of current series to new vehicle and after ensuring roadworthiness of the old motor vehicle port the old vehicle registration number to new vehicle and simultaneously port new registration number to the old vehicle.
- (iii) If the old vehicle is registered under the jurisdiction of another registering authority, the Registering Authority, before porting the old number to the new vehicle and new number to the old vehicle, shall ensure that No objection certificate under section-48 of the Motor Vehicles Act, 1988 is obtained.
- (iv) It shall be the duty of such Registering Authority to keep and maintain the records of both vehicles.
- (v) If the old number falls in the category of notified and reserved numbers in pursuance of clause (ii) of sub rule (2) of rule 51 A of the Uttar Pradesh Motor Vehicles Rules, 1998, the registering authority shall realize the twenty percent of base price of the category of the number or five thousand rupees whichever is higher for four-wheeler and twenty percent of base price of the category of the number or one thousand rupees whichever is higher for two-wheeler:

1. Rule 51 (1) to (3), Subs. and Rule 51 (4) omitted by Notification No.17/2019/1300/xxx-4-2019-08(3)/2015, dated 5th September, 2019 (Twenty Seventh Amendment) Rules, 2019 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 5th September, 2019 (w.e.f. 05-09-2019)

Provided that no fees shall be charged for the porting the registration mark of government vehicle to government vehicle.

- (vi) If the old number does not fall in the category of notified and reserved number in pursuance of clause (iv) of sub rule (2) of rule 51.A of the Uttar Pradesh Motor Vehicles Rules 1998, the Registering Authority shall realize one thousand rupees for two wheeled vehicles and five thousand rupees for four wheeled vehicles.

Provided that no fees shall be charged for the porting the registration mark of Government vehicle to Government vehicle.

- (vii) If the vehicle is registered in the jurisdiction of same Registering Authority this whole exercise of number portability shall be completed within seven days and if the old vehicle is registered under the jurisdiction of another Registering Authority, it shall be completed within forty-five days.

Explanation: (a) For the purpose of this sub rule, the words "Same Class" means Two-wheeler (private) for two-wheeler (private), two-wheeler (transport) for two-wheeler (transport), LMV (private) for LMV (private), LMV (transport) for LMV (transport), MMV for MMV, HMV for HMV.

- (b) "Four-wheeler" means vehicles having four or more than four wheels.

(3) No person shall exhibit or use a registered number on any vehicle other than the motor vehicle to which it has been assigned under these rules.

- (4) ****].

¹**[51-A. Allotment of registration marks— (1)** The registration mark to motor vehicles be assigned, shall be as per the notification issued by the Central Government under sub-section (6) of Section 41 of the Act.

(2) On receipt of an application in the prescribed Form 20 of the Central Motor Vehicles Rules, 1989, the registering authority shall assign the registration number which falls in serial order after the last registration mark assigned subject to the provisions of the following rules: -

- (i) The Transport Commissioner may reserve any registration number as are considered necessary to be assigned to the vehicles of Government.
- (ii) The Transport Commissioner may notify in local newspapers from time to time, the registration numbers as are considered attractive, to be reserved for any person who made an application therefore and make the payments as prescribed in sub-rule (iv) of this rule,

1. Rule 51-A, inserted by Notification No. 2000/xxx-4-2003-13(1)/2002, dated 30th September, 2003 (Fifth Amendment) Rules, 2003 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 30th September, 2003 (w.e.f. 30-09-2003)

- (iii) The Registering Authority may on an application in writing made to it by any person for special choice of his own, reserve the registration numbers, except notified and reserved by the Transport Commissioner under sub-rules(i) and (ii) of this rule, within thousand from the last number assigned in serial order from the date of application on payment of fee of Rs. 2,000 for notified Important registration numbers and Rs. 4,000 for Very Important numbers in addition to fees prescribed under sub-section (2) of Section 41 of the Act. The reservation fee shall be paid in advance along with the application.]

- ¹[(iv)(a) The Registering Authority may on an application made to it by any person, reserve any registration number notified by the Transport Commissioner under clause (ii) of sub-rule (2) either through the process of auction or on the principle of “first come first serve”, as the case may be, through online mode. The base price for these notified numbers shall be following: -

Sl. No.	Type of Registration no.	Two-wheeler (in rupee)	Four-wheeler (in rupee)
1	2	3	4
1	Very Attractive	20,000	1,00,000
2	Very Important	10,000	50,000
3	Attractive	5,000	25,000
4	Important	3,000	15,000

Provided that-

- (1) All the notified numbers of new series shall initially be opened for auction for seven days which shall start from 10.00 A.M. of the date of beginning of the auction of the series in a transport office till the end of seventh day. The bidder has to offer more amount than the base price for the respective notified numbers for said auction. If the number of bidders is less than three then the process of auction shall be extended for further period of seven days. If in the extended period also three bidders do not take part then the said number shall be allotted to the highest bidder. Those notified numbers which remain un-auctioned in the prescribed period of auction shall remain open for the booking on payment of prescribed base price under sub-clause (a) on the principle of "first come first serve" basis. This fee shall be paid along with the fee prescribed under the sub-section (2) of section 41 of the Act. These attractive numbers once reserved shall not be transferable.

1. Clauses (iv) in Rule 51-A (2), substituted by Notification No.17/2019/1300/xxx-4-2019-08(3)/2015, dated 5th September, 2019 (Twenty Seventh Amendment) Rules, 2019 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 5th September, 2019 (w.e.f. 05-09-2019)

- (2) The mode and manner for the booking of notified registration number either through the process of auction or on the principle of “first come first serve” shall be specified by notification by the State Government.

- (b) The Registering authority may, on an application made to it by any person through online mode, reserve any registration number except those notified by the Transport Commissioner under clause (i) and (ii) of sub-rule (2) on payment of rupees one thousand for two wheeler and rupees five thousand for four wheeler in advance along with fees prescribed under sub-section (2) of section 41 of the act on the principle of "first come first serve" basis.]
- (v) [The reservation fee once paid shall on no account be refunded.
- (vi) The number reserved shall be allotted on production of a vehicle along with the application in Form-20 of the Central Motor Vehicles Rules, 1989. The reservation of the registration number shall be cancelled if the vehicle is not produced within 30 days from the date of reserving the registration number and the number so cancelled can be allotted to any other person by registering authority who makes an application along with the fees prescribed under sub-rule (iii) of this rule.]

52. Particulars of Registration—Supply of copies— (1) A registering authority may in his discretion supply a copy of the particulars of any motor vehicle registered in the record maintained by him to any person who applies for the same and furnishes non-judicial stamps of rupees ten.

(2) The application under sub-rule (1) shall be addressed to the registering authority in whose jurisdiction, the motor vehicle has been registered and shall bear a court-fee payable under the Court-Fees Act.

53. Intimation regarding stolen or recovered motor vehicles— (1) The Director-General of Police of the State shall furnish to the State Transport Authority, Uttar Pradesh, on or before the 15th day of each month, a monthly return containing the information regarding motor vehicles which have been stolen and the stolen motor vehicles which have been recovered throughout the State, of which the police are aware, covering the period of the preceding calendar month,

(2) The monthly return required by sub-rule (1) shall be in Form SR-19 and shall be in triplicate.

(3) On receipt of the return under sub-rule (1) the State Transport Authority shall send to all the registering authorities the copies of Form SR-19.

(4) The Secretary of the State Transport Authority as also each registering authority shall maintain a register of stolen and recovered motor vehicles on the basis of information received under sub-rule (2), or as the case may be, under sub-rule (3).

54. Production of Certificate of Registration— When required to do so by a registering authority or an officer of the Transport Department not below the rank of Tax Officer or a police officer not below the rank of Sub-Inspector, the owner or, in the absence of the owner, the driver of a motor vehicle in respect of which a certificate of registration has been issued, whether within the State or outside the State, shall produce the certificate.

CHAPTER V
Control of Transport Vehicles

55. State Transport Authority— (1) The quorum to constitute a meeting of the State Transport Authority shall be—

- (i) one, in case the authority consists of only one member; or
- (ii) two, in case the authority consists of two or three members; or
- (iii) three, in case the authority consists of four or five members.

(2) No quorum shall be necessary for a reconvened meeting adjourned for want of quorum.

(3) The Chairman if unable to attend a meeting shall nominate a member to act as Chairman at the meeting.

(4) The Chairman or the acting Chairman nominated under sub-rule (3) shall have a second or casting vote.

(5) The State Transport Authority shall meet at such times and at such places as the Chairman may appoint:

Provided that the authority shall meet not less than once in each of the periods of three months of January to March, April to June, July to September mid October to December.

(6) Not less than ten days' notice to the members shall be given of any meeting of the State Transport Authority:

Provided that where in the opinion of the Chairman an emergency meeting of the State Transport Authority is necessary, a notice of not less than twenty-four hours shall be given to the members.

(7) An officer of the Transport Department not below the rank of Deputy Transport Commissioner shall be appointed by the State Government as Secretary of the State Transport Authority.

(8) The State Government may at any time—

- (i) determine, without assigning any reason, by notification in the Official Gazette, the term of any nominated official or non-official member of the State Transport Authority,
- (ii) subject to the provision of Section 68, vary the composition of the authority, and consequently reduce or increase the number of official or non-official members.

(9) Subject to the provisions of sub-rule (8) a nominated member (other than an *ex officio* member) of the State Transport Authority shall hold office for a period of two year and thereafter or until his successor is nominated:

Provided that when any such member, dies or is removed or his term is determined, or he vacates office, his successor shall be nominated for the remainder of the period of office of the member whose place he takes and thereafter until his successor is nominated:

Provided further that every member whose term of office has expired shall be eligible for re-nomination.

56. Regional Transport Authority— (1) The quorum to constitute a meeting of the Regional Transport Authority shall be—

- (i) one, in case the Authority consists of only one member; or
- (ii) two, in the case the authority consists of two or three members.

(2) No quorum shall be necessary for a reconvened meeting adjourned for the want of quorum.

(3) The Chairman, if unable to attend a meeting shall nominate a member to act as Chairman at the meeting.

(4) The Chairman, or the acting Chairman nominated under sub-rule (3) shall have a second or casting vote.

(5) The Regional Transport Authority shall meet at such time and at such places as the Chairman may appoint:

Provided that the authority shall meet not less than once in two months unless the State Transport Authority otherwise directs.

(6) Not less than ten days' notice to the members shall be given of any meeting of the Regional Transport Authority:

Provided that where in the opinion of the Chairman, an emergency meeting of the Regional Transport Authority is necessary, a notice of not less than twenty-four hours shall be given to the members.

(7) The Regional Transport Officer of the region concerned shall be *exofficio* Secretary of the Regional Transport Authority.

(8) The State Government may at any time—

- (i) determine without assigning any reason by notification in the Official Gazette, the term of any nominated member of the Regional Transport Authority;
- (ii) subject to the provisions of Section 68, vary the composition of the authority, and consequently reduce or increase the number of official or non-official members.

(9) Subject to the provisions of sub-rule (8), a nominated member (other than an *ex officio* member) of the Regional Transport Authority shall hold office for a period of one year or until his successor is nominated.

57. Transport Authority—Delegation of powers by— A State or Regional Transport Authority may, by general or special resolution recorded in its proceedings and subject to such conditions as may be specified in the resolution, delegate—

- ¹ (i) [to its Secretary and in the case of State Transport Authority to its Additional Secretary and/or Assistant Transport Commissioner (Administration) and in the case of a Regional Transport Authority to any Assistant Regional Transport Officer of the region concerned power to grant, refuse, renew or transfer the permits of stage carriage, contract carriage, private service vehicles or goods carriages;

1. Clauses (i), (ii), (iii), (iv) and (vi) in Rule 57, substituted by Notification No.1513/XXX-4-2013-88-99, dated 31st October, 2013 (Fifteenth Amendment) Rules, 2013 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 31st October, 2013 (w.e.f. 31.10.2013)

- (ii) to its Secretary and in the case of State Transport Authority to its Additional Secretary and/or Assistant Transport Commissioner (Administration) or to both and in the case of a Regional Transport Authority to any Assistant Regional Transport Officer of the region concerned, all or any of its power stinder Section 87and subsection (8) of Section 88, regarding the grant of temporary and special permits;
- (iii) to a District Magistrate or an Additional District Magistrate with in its region all or any of its powers under clause (c) of sub-section (1) of Section 87 regarding the grant of temporary permits;
- (iv) to its Secretary and in the case of State Transport Authority to its Additional Secretary and/or Assistant Transport Commissioner (Administration) or to both and in the case of Regional Transport Authority to the Assistant Regional Transport Officer powers under Section 88 to counter sign or to refuse to counter sign permits in respect of transport vehicles plying on inter-State routes;
- (v) to its Secretary and in the case of State Transport Authority to its Additional Secretary and/or Assistant Transport Commissioner (Administration) or to both and in the case of a Regional Transport Authority to any Assistant Regional Transport Officer of the region concerned all or any of its powers under Rules 82 and 83 regarding grant or refusal to grant the replacement of vehicles;
- (vi) to its Secretary and in the case of State Transport Authority to its Additional Secretary and/or Assistant Transport Commissioner (Administration) or to both and in the case of a Regional Transport Authority to any Assistant Regional Transport Officer of the region concerned power to issue a duplicate permit under Rule 86.]
- (vii) to the Chairman the power to take action under sub-section (5) of Section 86.
- (viii) to the Secretary within its region, the power to suspend the permits and take action as provided under sub-section (4) of Section 86;
- (ix) ¹[to its Secretary and in the case of State Transport Authority to its Additional Secretary and/or Assistant Transport Commissioner (Administration) or to both and in the case of a Regional Transport Authority to any Assistant Regional Transport Officer of the region concerned for the purposes of Section 103, power to issue permit on application of State Transport Undertaking in respect of notified route or notified area;
- (x) to its Secretary and in the case of State Transport Authority to its Additional Secretary and/or Assistant Transport Commissioner (Administration) or to both and in the case of a Regional Transport Authority to any Assistant Regional Transport Officer of the region concerned power under sub-section (12) of Section 88 to grant, renew or refuse a national permit for goods carriages.]

1. Clauses (ix) and (x) in Rule 57, substituted by Notification No.1513/XXX-4-2013-88-99, dated 31st October, 2013 (Fifteenth Amendment) Rules, 2013 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 31st October, 2013 (w.e.f. 31.10.2013)

58. Transport Authority: Conduct of business of— (1) The business of the transport authority shall be conducted under the direction of its Chairman in accordance with the rules.

(2) Subject to the provisions of the Act and these rules and the approval of the State Government, a State or a Regional Transport Authority shall have power to make bye-laws to regulate its conduct of business.

(3) The Secretary shall with the approval of the Chairman finalise the items of agenda to be considered at any meeting, prepare detailed note of each item of the agenda and shall issue to each member of the authority a copy of the agenda at least five days before such meeting:

Provided that in the case of an emergency meeting, the agenda may be given to the members present just before the start of the meeting.

(4) All matters shall normally be decided at a regular meeting on the basis of majority of votes of members, including the Chairman, present and voting. In case of equality of votes, the Chairman shall have and exercise a second or casting vote. If the Chairman is of the view that any matter needs urgent decision by the authority and the meeting of the authority cannot be conveniently called and such matter may appropriately be decided by obtaining opinion of the members of the authority through circulation, he may invite such opinion by circulation of the matter.

(5) In the event of procedure adopted under sub-rule (4), the Secretary shall send to each member of the authority such particulars of the matter as may be reasonable and necessary in order to enable the member to arrive at a decision and shall specify the date by which the votes of members are to be received in the office of the authority. Upon receipt of the votes of members as aforesaid, the Secretary shall lay the papers before the Chairman, who shall record the decision by endorsement on the form of application or other documents, as the case may be, according to the vote received, and the vote or votes cast by the Chairman. The record of the votes cast shall be kept by the Secretary and shall not be available for inspection to any person saves to a member of the authority. No decision shall be made through circulation before the date by which the votes of member are required to reach the office of the authority, not less than 1/3 of the members of the Authority, may by notice in writing to the Secretary, demand that the matter be referred to a meeting of the authority.

(6) The number of votes excluding the Chairman's second or casting vote necessary for a decision to be taken upon procedure by circulation shall not be less than the number necessary to constitute a quorum.

(7) The State or the Regional Transport Authority, as the case may be, may summon any applicant for a permit to appear before it and may decline to grant the permit until the applicant has so appeared either in person or by an agent authorised by him in writing and until the applicant has furnished such information as may reasonably be required by the authority in connection with the application.

(8) Nothing contained in this rule shall prevent a State or Regional Transport Authority from deciding through circulation any matter which has been considered at a meeting or has been the subject of a hearing and upon which a decision has been reserved.

(9) When a matter is decided by the votes of members present at a meeting of the State or Regional Transport Authority, no person other than a member of the authority shall be entitled to be present and no record of the voting shall be kept save of the number

of votes cast on either side provided that when any matter is decided by the exercise of the second or casting vote of the Chairman the fact shall be recorded.

(10) Secretary of State or Regional Transport Authority, as the case may be, shall maintain a minutes-book properly bound in which minutes of the meeting shall be pasted under the signature of the Chairman. The minutes-book shall be made available to the Chairman as and when required by him.

(11) When a permit for a transport vehicle is issued by the State or a Regional Transport Authority, the following particulars shall be communicated to the concerned Regional Transport Officer, Assistant Regional Transport Officer (Administration) and Assistant Regional Transport Officers (Enforcement) in whose jurisdiction the vehicle is authorised to ply:

- (i) Full name and address of the person to whom the permit is issued.
- (ii) Number of the permit,
- (iii) Period for which permit has been issued,
- (iv) The routes on which or the area in which the vehicle is to be used.
- (v) Designation of issuing authority,
- (vi) Registered number of vehicle or vehicles covered by the permit.
- (vii) Maximum number of passengers or the maximum load.

(12) When a permit is transferred from one person to another under the provisions of Section 82 or when the holder of a permit has been allowed to replace the vehicle by another vehicle of the same nature and capacity under Section 83 or when the permit is cancelled or suspended under the provisions of sub-section (1) of Section 86, the fact shall be intimated to the authorities mentioned in sub-rule (11).

59. Reports to be furnished by transport authorities— (1) The Secretary of each Regional Transport Authority shall furnish quarterly information to the State Transport Authority on or before 7th April, 7th July, 7th October and 7th January of every year covering details for the preceding period of three calendar months, in respect of the number of applications for permits received, sanctioned, rejected, postponed and the permit issued.

(2) On receipt of information under sub-rule (1) the Secretary, State Transport Authority shall furnish the consolidated information along with the information of the State Transport Authority to the State Government on or before the 15th day of the succeeding month of each calendar quarter mentioned in sub-rule (1).

60. Publication of the decisions of the transport authority— Every decision of each Regional Transport Authority and the State Transport Authority shall be published on the notice board by the Secretary of the concerned Regional Transport Authority or the State Transport Authority, as the case may be, for information to the persons concerned.

61. Applications for contract carriages and private service vehicles Permits: Disposal of— The State Transport Authority or a Regional Transport Authority shall so arrange its business that applications for contract carriages and private service vehicles permits are normally disposed of within one month of their receipt in the office of the authority.

62. Applications for permits— An application for a permit shall be entered in the register maintained in the office of Secretary, State Transport Authority or the Regional Transport Authority, as the case may be, in the order in which they are received. This register shall be regularly inspected by the Chairman, State Transport Authority/Regional Transport Authority or a senior officer deputed for the purpose by him. The routes available for permits shall be notified publicly on the office notice board and/or through local newspapers, an application for a permit shall specifically mention about ownership of the bus and general reputation or character of applicant. All such applications shall be considered and disposed of by the authority in accordance with law.

63. Hearing of application— (1) When application for any permit is considered at a meeting of the State or Regional Transport Authority and the applicant desires to be heard in support of his application or has been summoned to appear under the provisions of sub-rule (7) of Rule 58, he may either appear and conduct his case in person or may be represented by an approved agent:

Provided that no application for permanent stage carriage permit shall be considered if it is for notified route or notified area or any portion thereof except as provided in the approved scheme of such route areas.

(2) The State Transport Authority or the Regional Transport Authority, as the case may be, may ask the applicant to file a declaration or an affidavit to the effect that no other permit in respect of the vehicle exists.

(3) The State or Regional Transport Authority while considering an application for a Permit shall take into account the policy liberalization for private sector operations in the road transport field.

64. ¹[Application for permits—Fee and Form of— Every application for a permit in respect of a transport vehicle shall be in one of the following Forms, accompanied by a fee as specified in Rule 125—

- (i) In respect of a stage carriage in Form SR-20;
- (ii) In respect of a contract carriage in Form SR-21;
- (iii) In respect of a goods carriage in Form SR-22;
- (iv) In respect of a private service vehicle in Form SR-23;
- (v) In respect of temporary permit in Form SR-24;
- (vi) In respect of a special permit in Form SR-25.]

65. Permits: Fee and Forms of— (1) Every permit shall be in one of the following Forms, that is to say—

- (i) In respect of a stage carriage in Form SR-26;
- (ii) In respect of a contract carriage in Form SR-27;
- (iii) In respect of a goods carriage in Form SR-28;
- (iv) In respect of a private service vehicle in Form SR-29;
- (v) In respect of temporary permit in Form SR-30;
- (vi) In respect of a special permit in Form SR-31.

1. Rule 64, substituted by Notification No.2653/XXX-4-2010-4(2)-2010, dated 31st December, 2010 (Tenth Amendment) Rules, 2010 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 31st December, 2010 (w.e.f. 31.12.2010)

(2) Where the permit relates to more than one vehicle one copy thereof shall be issued in respect of every vehicle authorised by the permit and each such copy shall carry in addition to the number of permit, a separate number contained in brackets after the number of permit. Each such copy shall be sealed and signed by the authority by which the permit is issued and by the authority by which the permit is counter-signed.

(3) The holder of a permit shall cause the relevant copy thereof or the temporary permit, as the case may be, to be carried in a glazed frame or other suitable container carried in or affixed to the interior of the vehicle in such a way as to maintain it in a clean and legible condition readily available for inspection at any time by any authorised person.

(4) The fee for grant of permit shall be as specified under Rule 125.

66. Permit for a motor vehicle adapted to carry more than nine persons— Subject to the provisions of sub-section (3) of Section 66 the provisions of sub-section (1) of the said section shall apply to any motor vehicle adapted to carry more than nine persons, excluding the driver.

67. Permit: Conditions of— The transport authority shall attach to every permit granted by it the following conditions—

- (i) that the vehicle covered by such a permit shall in no case be used in any public place during the period in which the registration certificate and the token relating to it are; or have been surrendered in accordance with the provisions of the United Provinces Motor Vehicles Taxation Act, 1935 and the rules made thereunder or have been suspended or cancelled;
- (ii) that the vehicle covered by such a permit shall in no case be used in any public place unless the taxes levied by the State Government and payable in respect thereof have been duly paid; and if such tax is not duly paid within the period specified in the United Provinces Motor Vehicles Taxation Act, 1935, the Uttar Pradesh Motor Gadi (Yatrikar) Adhiniyam, 1962 or the U.P. Motor Gadi (Malkar) Adhiniyam, 1964, as the case may be, it shall be presumed that the holder of the permit has intentionally evaded the payment of such tax.
- (iii) That save as provided in sub-section (2) of Section 82, the permit shall not be transferred to any other person except with the permission of the transport authority which granted the permit;
- (iv) that the vehicle shall be used in the area or on the route or the routes specified in the permit;
- (v) that the maximum number of persons or maximum weight of luggage that may be carried in the vehicle covered by the permit shall not exceed as given in the certificate of registration;
- (vi) that only such advertising matters as are directly related to the permit-holder's business in furtherance of which the permit is obtained and which does not in any way change the identity of the vehicle, may be displayed on the vehicle save on any part of the bonnet, front screen, windscreen and dashboard of the vehicle:

Provided that no advertising matter shall cover or be at a distance of less than 20 centimeters of any material descriptions painted, inscribed or fixed in or over the vehicle.

- (vii) that the holder of the permit shall cause the permit to be carried in the vehicle in such a manner that it is readily available for inspection at any time by any authorised person.

68. Permits for stage carriages: Special conditions of— The transport authority may also attach to a stage carriage permit one or more of the following conditions—

- (i) that no person other than the permit-holder or any other person duly authorised by him or a driver or a conductor or a paid clerk in the employ of the permit-holder shall operate the vehicle; and
- (ii) that the vehicle shall cover the entire route for which the permit has been granted in each journey;
- (iii) that the copies of the duty lists of drivers and conductors shall be exhibited on the vehicle and at specified stands and halts on the route;
- (iv) that mail shall be carried on the vehicle subject to such conditions as may be specified and, on such rates as are fixed by the transport authority in consultation with the postal authorities;
- (v) ¹[(a) that luggage of passengers upto 20 kilograms per passenger shall be carried free of charge in a stage carrier in all the regions.]
 - (b) that the following shall be treated as passenger's luggage and will be carried free of charge on the roof of the stage carriage— Hand harmonium in box, non-folding charkha, pet birds in small cage (they could be carried inside the bus if no inconvenience is caused to the passengers) hand sewing-machine, gramophone, portable typewriter, radio (properly packed unless it can be carried under the seat) dry 6-volt battery;
 - (c) that the following will be charged separately as for 18 kilograms— children's tricycles, folding campcot, folding table or folding chair not weighing more than 18 kilograms;
 - (d) the following will be charged separately as for 37 kilograms— bicycles, non-folding chairs, tea tables, small almirahs or racks, beds, etc. which can be conveniently carried on the bus and which do not weigh more than 37 kilograms;
 - (e) that no charge will be made for the following articles provided they can be carried under the seat occupied by the passenger to whom the articles belong;—folding charkha, *ghee* in a closed tin, thermos flask, small tiffin-carrier or small tiffin-case, sticks and umbrellas, china tea-set, a set of six tumblers and glass jug, small attache case, book, fruits or articles of food, table fan (packed) and typewriter (standard, packed); provided that one passenger may carry only one such bundle under his seat.
- (vi) that when in the interest of public order, public safety or in an emergency, the transport authority by whom the permit is granted issues direction to the permit-holder to use, a stage carriage on a route or in an area other than one specified in the permit, the permit-holder shall use the stage carriage on such route or in such area and during such period and at such timings as may be specified in the direction.

1. Rule 68 in condition (v) Clause (a), substituted by Notification No.1994/XXX-4-2009-67-89TC, dated 9th November, 2009 (Seventh Amendment) Rules, 2009 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 9th November, 2009 (w.e.f. 09-11-2009)

69. Permits for contract carriages and goods carriages: Special conditions of— The transport authority may attach to a contract carriage permit or goods carriage permit the condition that no person other than the permit-holder or any other person duly authorised by him or a driver or a conductor or a paid clerk in the employ of the permit-holder shall operate the vehicle.

¹[69-A. Permits for motor cab as contract carriage: special condition of— The transport authority may attach to a motor cab contract carriage permit the condition that subject to the provisions of Rule 166-A of these rules a taximeter shall be fitted and maintained in proper working order.]

70. Additional conditions of contract carriage permit— The following shall be the additional conditions of every contract carriage other than a motor cab—

- (i) the permit-holder shall cause to be prepared in triplicate a list of passengers travelling in the vehicle in the following form in respect of each trip:

LIST OF PASSENGERS

Motor Vehicle No. Date.....Time of Departure..... From to

Sl. No.	Name of the passenger	Father's/Husband's Name	Age	Address
1	2	3	4	5

- (ii) one copy of the list shall be sent by registered post acknowledgment due to the authority which issued the permit for record, the second copy shall be carried in the vehicle and shall be produced on demand by the officers authorised to demand production of documents by or under the Act, the third copy shall be preserved by the permit holder;
- (iii) the permit-holder or his authorised agent shall issue a receipt to the hirer in respect of payment received for hire and the counterfoil of the same shall be kept available with him and produced on demand to the officers authorised to demand documents by or under the Act;
- (iv) the permit-holder shall maintain a yearly day-to-day logbook indicating the name and address of the permit-holder and the registration mark of the vehicle, name and address of the driver with the particulars of his driving licence and the starting and destination points of the journey with the time of departure and arrival and the name and address of the hirer;
- (v) the permit-holder shall quarterly furnish an extract of the logbook specified in condition above to the transport authority which granted the permit. The said logbook shall be preserved for a period of three years and shall whenever required be made available to the said authority for inspection during the said period:

Provided that nothing in this rule shall apply to any contract carriage hired to carry a marriage party.

1. New Rule 69-A, inserted by Notification No.1513/XXX-4-2013-88-99, dated 31st October, 2013 (Fifteenth Amendment) Rules, 2013 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 31st October, 2013 (w.e.f. 31.10.2013)

¹[70-A. **Additional conditions of permit of transport vehicle other than the goods vehicle**— The State Transport Authority may impose condition that the transport vehicle, other than the goods vehicle shall be fitted with Global Positioning System (GPS/General Pocket Radio Switching (GPRS) and Emergency buttons, provided that the transport vehicles with 23 seats or more shall also be fitted with CCTV cameras and may direct the Regional Transport Authority to impose such condition:

Provided further that all above devices shall be kept in working condition at all time by the owner of the vehicle.]

71. Operation of transport vehicle through Attorney— (1) Operation of transport vehicle through attorney shall not be permissible except in the case of permit-holder who is—

- (i) An unmarried woman, or if married, divorced or separated from her husband, or a widow,
- (ii) A minor whose father has died,
- (iii) A lunatic or an idiot,
- (iv) a person incapable of managing of operation of the transport vehicle by reason of blindness or other physical infirmity,
- (v) prosecuting studies in a recognized institution and his age does not exceed 25 years,
- (vi) in the military, naval or air service of the Indian Union, or
- (vii) under detention or imprisonment,

(2) A transport vehicle shall not be operated under a power of attorney unless it is registered and a copy thereof has been filled in the office of Regional Transport Authority; failure to comply with this condition shall constitute a valid ground for cancellation of permit.

72. Permit: Entry of Registration mark on— Save in the case of temporary permit, where the registration mark of the vehicle is to be entered on a permit and the applicant on the date of application is not in possession of the vehicle duly registered, he shall within one month of the sanction of the application by the transport authority or such longer period as the authority may specify, produce the certificate of registration of vehicle before that authority so that the particulars or the registration mark may be entered in the permit.

73. Permit: Revocation of Sanction— No permit shall be issued until the registration mark of the vehicle to which it relates has been entered therein. In the event of any applicant failing to produce the certificate of registration without any reasonable cause within time allowed under Rule 72, the transport authority may revoke its sanction for grant of permit.

1. Rule 70-A, inserted by Notification No.11/2015/1629/XXX-4-2015-8(30)-2013, dated 3rd November, 2015 (Nineteenth Amendment) Rules, 2015 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 3rd November, 2015 (w.e.f. 03-11-2015)

74. Temporary Permit— (1) A temporary permit may, if the State or Regional Transport Authority so desires, be granted to any person whether he is the registered owner of the vehicle to be used thereunder or not, subject to such conditions regarding payment of any tax payable under the United Provinces Motor Vehicles Taxation Act, 1935 or the rules made thereunder as it thinks fit.

(2) When at the time of making an application for temporary permit, the applicant is not in possession of the vehicle or has not entered into a contract to hire the vehicle or otherwise satisfies the State or Regional Transport Authority that he is for good and sufficient reason unable to specify the registration mark of the vehicle to be used under the permit, the State or Regional Transport Authority, as the case may be, may if it is satisfied that undue inconvenience would otherwise be caused, issue a temporary permit without setting out the registration mark of the vehicle in it and may, if it thinks fit, require as a condition of the permit that the applicant shall, within twenty-four hours of the commencement of the first journey under the authorisation of the temporary permit, or such longer period as the authority may specify, furnish to the authority the particulars of the registration mark.

(3) Nothing contained in a temporary permit shall be deemed to authorise the use of any vehicle which is not duly registered or in respect of which there is no valid certificate of fitness or which otherwise contravenes any of the provisions of the Act or the rules made thereunder.

(4) The fee for grant of temporary permit shall be as specified under Rule 125.

75. Permit extension of areas of validation of— (1) Subject to the provisions of Section 88, a Regional Transport Authority which issued a permit (hereinafter referred to as the original transport authority) in respect of a stage carriage or a contract carriage may extend the effect of the permit to any other region within the State and may attach conditions to permit in respect of that region and may vary the conditions of the permit in different regions, provided always that the vehicle to which the permit refers are normally kept within the region of the original transport authority and subject to the provisions of the following sub-rules.

(2) The original transport authority may issue a permit having validity in any other region in accordance with any general or special resolution adopted by any other regional authority and any permit so issued shall be of like effect in the region of the other authority as if it were issued by that authority.

(3) Subject to the provisions of sub-rule (2) an original transport authority may issue a contract carriage permit to a contract carriage other than a motor cab which shall have effect in another region or regions if it attaches a condition to the permit that the vehicle shall only be used beyond the region of the original transport authority, under contract for a journey commencing and ending within the region of the original transport authority.

(4) Nothing in this rule shall affect the right of the holder of any permit to apply to any regional authority for counter-signature of a permit.

(5) The fee for counter-signature shall be as specified under Rule 125.

¹[76. [*****].

1. Rule 76, omitted by Notification No.1994/XXX-4-2009-67-89TC, dated 9th November, 2009 (Seventh Amendment) Rules, 2009 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 9th November, 2009 (w.e.f. 09-11-2009)

77. Exemption from necessity for permits— A permit under sub-section (1) of Section 66 shall not be required for any transport vehicle exclusively used:

- (i) in connection with drive for the abolition of untouchability and Scheduled Castes' welfare work by an organisation recognized by the State Government in this behalf;
- (ii) in connection with development programmes relation to Khadi and village industries organised by the Khadi and Village Industries Commission;
- (iii) in connection with the development of electronics exhibition van for demonstrating the highly-sophisticated components manufactured by the Electronics Corporation of India Ltd.;
- (iv) in connection with women and child welfare work by an organisation recognised by the State Government in this behalf.

78. Stage and contract carriages: Conditions for carriage of goods in— Goods may be carried on stage and contract carriages, subject to the conditions;

- (i) That no goods shall be carried on the top deck of a double- decked stage carriage;
- (ii) That no goods likely to foul the interior of the vehicle or to render it insanitary shall be carried at any time in any stage carriage or contract carriage;
- (iii) That the goods prohibited by the transport authority shall not be carried in a stage carriage or a contract carriage;
- (iv) That no goods shall be carried in violation of the conditions imposed by the transport authority for carriage of such goods;
- (v) That no stage carriage shall be used for carriage of goods so as to cause detriment to public convenience or failing thereby to meet the demand for passenger transport;
- (vi) That no goods shall be carried in a contract carriage save for special reasons on particular occasions and subject to conditions and restrictions specified in the permit;
- (vii) That no goods shall be carried in a stage carriage or contract carriage unless the goods are of such a nature and so packed that if carried on vehicle no danger, inconvenience- or discomfort would be caused to any passenger and such number of seats as are specified in the permit are kept free and unimpeded for the use of passengers and access to the entrance and exit from the vehicle required under these rules is unobstructed;
- (viii) No goods shall be carried in a stage or contract carriage, the weight of which together with the weight of personal luggage of the passenger carried on the vehicle exceeds the difference between the gross vehicle weight minus unladen weight of the vehicle and the weight of passengers calculated in kilograms multiplying the number of passengers plus two (driver and conductor) which the vehicle is permitted to carry by 59.

79. Carriage of animals in goods vehicle— (1) No cattle shall be carried in a goods vehicle in a public place unless—

- (i) in the case of goat, sheep, deer or pig a minimum floor space of 60 centimetres X 60 centimetres per head of such catties provided in the vehicle;
- (ii) in the case of any other cattle—
 - (a) minimum floor space of 210 centimetres X 90 centimetres per head of cattle and half of such floor space for a young one of cattle which is weaned, is provided in the vehicle;
 - (b) the load body of the vehicle is constructed of strong wooden planks or iron sheets with a minimum height of 152 centimetres, measured from the floor of the vehicle on all sides and the back; and
 - (c) the cattle are properly secured by ropes tied to the sides of the vehicle.

Explanation— Cattle for the purposes of this sub-rule includes goat, sheep, buffalo, fox, deer, horse, pony, male, ass, pig, the females thereof or their ones.

(2) No animal belonging to or intended for a circus, menagerie or zoo shall be carried in a goods vehicle in a public place unless—

- (i) in the case of wild and ferocious animal, a suitable cage, either separate from or integral with the load body of the vehicle used, of sufficient strength to contain the animal securely at all times is provided; and
- (ii) reasonable floor space for each animal is provided in the vehicle.

(3) No goods vehicle when carrying any cattle under sub-rule (1) or any animal under sub-rule (2) shall be driven at a speed in excess of 25 kms. per hour.

80. Permit: Cancellation of redundant— When a permit has been granted on first application by one Regional Transport Authority in respect of a particular vehicle, or in respect of a service of vehicles and it appears that a permit has also been granted by another Regional Transport Authority—

- (a) In respect of the same vehicle; or
- (b) in respect of a service of vehicles requiring the use of a greater number of vehicles than the holder of the permit possessed at the time of applications;

The Regional Transport Authority by which one of the permits was issued may in consultation with the other authority forthwith cancel or modify the permit in such a manner as it may deem fit.

81. Permit: Renewal of— (1) The State or Regional Transport Authority renewing a permit shall call upon the holder to produce the permit and on production shall endorse the renewal and shall there upon return it to the holder.

- (2) The fee for renewal of permit shall be specified under Rule 125.
- (3) While renewing the permit, the transport authority shall take into account the existing mechanical condition of the vehicle and the record of accidents of such vehicle in the preceding five years.
- (4) The mechanical inspection of the vehicle shall be done by a committee of persons possessing technical knowledge of motor vehicles in which at least one member shall be a Government servant nominated by the transport authority.

82. Permits: Renewal of counter-signature— (1) Subject to the provisions of Rule 83, application for the renewal of counter-signature on a permit shall, be made in writing to the Regional Transport Authority concerned not less than fifteen days before the expiry of such counter-signature.

(2) If at the time of application for renewal of counter-signature of a permit, the permit is not available being under renewal by the authority by which it was issued, the applicant shall state the fact and shall state the number and date of the permit, the name of the authority by which it was granted, the date of its expiry and the number and date of the counter-signature to be renewed.

(3) The State or Regional Transport Authority granting the renewal of a counter-signature shall call upon the holder to produce the permit, if it has not been produced, and shall so endorse the validity of counter-signature as to synchronise with the validity of the permit and return it to the holder.

(4) The fee for counter-signature or renewal of counter-signature shall be as specified under Rule 125.

83. Permit: Valid ation of the renewal in respect of counter-signature of— (1) The authority by which a permit is renewed may, unless any authority by which the permit has been countersigned (with effect not terminating before the date of expiry of the permit) has by general or special order otherwise directed, likewise endorse renewal of counter-signature of the permit (in the manner set forth in the appropriate form) and shall, in such case, intimate the renewal to such authority.

(2) Unless a permit has been endorsed as provided in sub-rule (1) or unless the period of validity of the counter-signature has been endorsed by the authority making the counter-signature, the counter-signature shall be of no effect beyond the date of expiry stated therein.

(3) While renewing the Permit Transport Officer has to keep in mind the current mechanical condition of the vehicle as well as the record of accidents of previous five years.

(4) Mechanical Inspection of the vehicle will be done by committee of persons having technical knowledge of motor vehicle of which at least one member shall be a Gazetted Government servant in the Transport Authority.

84. Permits: Replacement of vehicle authorised by— (1) If the holder of a permit desires at any time to replace any vehicle covered by the permit with another, he shall apply in Form SR-32 along with the fee as specified under Rule 125 to the transport authority by which the permit was issued stating the reasons why the replacement is desired and shall—

(i) if the new vehicle is in his possession, forward the certificate of registration thereof, or

(ii) if the new vehicle is not in his possession, state any material particular in respect of which the new vehicle will differ from the old.

(2) Upon receipt of an application under sub-rule (1), the Regional Transport Authority may in its discretion reject the application—

(i) if it has prior to the application given reasonable notice of its intention in accordance with the requirements of sub-section (3) of Section 71 or sub-section (3) of Section 74; or

- (ii) if the new vehicle proposed differs in materials respects from the old; or
- (iii) if the holder of the permit has contravened the provisions thereof or has been deprived of possession of the old vehicle under the provisions of any agreement of hire purchase, except in cases where a forfeited vehicle is replaced by one purchased outright.

(3) If the Regional Transport Authority grants an application for the replacement of vehicle under this rule, it shall call upon the holder of permit to produce the permit and the certificate of registration of the new vehicle if not previously delivered to it, and shall correct the permit accordingly under its seal and signature and return it to the holder.

85. Permit: Validation of replacement order in respect of counter-signature on— (1) The authority granting permission for the replacement of a vehicle, under Rule 82 shall, unless the authority by which the permit was countersigned has by general or special resolution otherwise directed, endorse the correction made in the permit with the words valid also for inserting the name of the authority concerned and shall intimate the fact and the particulars of the replacement to such authority.

(1) Unless the permit has been endorsed as provided in sub-rule (1) or unless the alteration has been approved by endorsement by the countersigning authority, the counter-signature on a permit shall not be valid in respect of any new vehicle.

86. Permit: Procedure on cancellation, suspension or expiry of— (1) The holder of a permit may at any time surrender the permit to the transport authority by which it was granted and that transport authority shall forthwith cancel the permit so surrendered.

(2) When a transport authority suspends or cancels any permit—

- (i) the holder shall surrender the permit within seven days of receipt of a demand in writing by the transport authority; and
- (ii) the authority suspending or cancelling the permit shall send intimations to the authorities by whom the permit has been counter-signed and in whose area the validity had been extended under Rule 75.

(3) Within fourteen days of the expiry of any permit by the efflux of time, the holder shall deliver the permit to the transport authority by which it was issued and the transport authority receiving any such permit shall intimate the fact to the authority, or authorities, by which it was countersigned and to any authority in whose area the validity had been extended under Rule 75.

(4) The holder of a permit shall, if so required, intimate to the transport authority within 24 hours of the receipt of suspension order, the place where the vehicle in respect of which the order is passed will be kept during the period of suspension. Subject to the provisions of sub-section (2) of Section 192, and sub-section (2) of Section 192-A, such holder shall not remove the vehicle from the place so intimated without the prior permission of the transport authority.

87. Permit: Transfer of— (1) When the holder of a permit desires to transfer the permit to some other person under Section 82 he shall, together with the person to whom he desires to make the transfer, make joint application in Form SR-33 to the transport authority by which the permit was issued setting forth the reasons for the proposed transfer.

(2) On receipt of an application under sub-rule (1), the transport authority may require the holder of the permit and the other party to state in writing whether any

premium, payment or other consideration arising out of the transfer, is to pass or has passed between them and the nature and amount of any such premium, payment or other consideration.

(3) Without prejudice to any other penalty to which the parties may be liable any transfer of a permit ordered upon an application under this rule may be cancelled by the transport authority, if it has reason to believe that the facts given in the application or furnished under sub-rule (2) are fake but no such order shall be passed unless the parties have been given an opportunity to be heard.

(4) The transport authority may summon both the parties to the application to appear before it and may, if it deems fit, deal with the application as if it were an application for a permit.

(5) (i) If the transport authority is satisfied that the transfer of a permit may properly be made, it shall call upon the holder of the permit in writing to surrender the permit within seven days of the receipt of the order and shall likewise call upon the person to whom the permit is to be transferred to deposit the fee as specified under Rule 125.

(ii) Upon receipt of the permit and of the required fee, the transport authority shall cancel the particulars of the holder thereon and endorse particulars of the transferee and return the permit to the transferee.

(iii) The transport authority making a transfer of a permit as aforesaid may, unless any other authority by which the permit has been countersigned has by general or special order otherwise required, endorse the permit with the words transfer of permit valid for inserting the name of the authority by which the permit has been countersigned.

(iv) Unless the permit has been endorsed as provided in the foregoing clause (iii) or unless the transfer of the permit has been approved by endorsement by the authority which counter-signed the permit, the counter-signature shall be of no effect after the date of transfer.

88. Permit: Issue of duplicates in place of those lost or destroyed— (1) When any permit has been lost or destroyed, the holder shall forthwith intimate the fact to the transport authority by which the permit was issued and shall deposit the fee as specified under Rule 125 for the issue of a duplicate:

Provided that no fee shall be chargeable in the case of a duplicate permit issued under sub-rule (4), if the original permit was Issued more than five years back.

(2) The transport authority, upon receipt of an application under sub-rule (1), may ask the applicant to file an affidavit or declaration that the permit in respect of which the application is made, has actually been lost or has been destroyed and has not been impounded by any competent authority prescribed under the Act and after satisfying itself that it has been so lost or destroyed, issue a duplicate and to the extent it is able to verify the facts, may endorse thereon certified copy of any counter-signature by other authority intimating the fact to that authority.

(3) A duplicate permit issued under this rule shall be clearly marked "Duplicate" in red ink and the certified copy of any counter-signature by any other transport authority on a permit made under this rule shall be valid as if it were the counter-signature.

(4) When a permit has become dirty, torn or otherwise defaced so as, in the opinion of the transport authority, to be illegible, the holder thereof shall surrender the permit to the transport authority and apply for the issuance of a duplicate permit in accordance with this rule.

(5) Any permit which is found by any person shall be delivered by the person at the nearest police station or to the holder or to the transport authority by which it was issued and if the holder finds or receives any permit in respect of which a duplicate has been issued, he shall return the original to the transport authority by which it was issued.

89. Production of permit— The permit shall always be carried in the vehicle and shall be produced on demand made at any reasonable time by any of the officer of the Transport Department specified in sub-rule (1) of Rule 227 and such officer may enter into any transport vehicle for the purpose of inspecting the vehicle.

90. Safe custody and disposal of property left in a stage or contract carriage—
(1) Where a permit-holder or his employee receive any article left in the vehicle, he shall keep that article for a period of seven days and shall, if the article is not claimed during that period, hand over the same to the officer-in-charge of the nearest police station:

Provided that, if the article is of a perishable nature, it may be handed over to the officer-in-charge of the nearest police station even before the expiry of seven days.

(2) Where during the period mentioned in the preceding sub-rule—

- (i) the article is claimed by not more than one person, the permit-holder may, after making such enquires as he deems fit and if necessary, after taking an indemnity agreement from the claimant, hand over the article to the claimant; and
- (ii) the article is claimed by two or more persons then the permit-holder may hand over the same to the officer-in-charge of the nearest police station.

91. Appeal against the order of State or Regional Transport Authority
— (1) The authority to decide an appeal against the order of the State Transport Authority or a Regional Transport Authority in respect of matters dealt with in clauses (a), (b), (c), (d), (e), (f) and (g) of sub-section (1) of Section 89 shall be the State Transport Appellate Tribunal, constituted under sub-section (2) of Section 89.

(2) Any person aggrieved by an order referred to in sub-rule (1) may prefer an appeal within thirty days of the receipt of the order to the Chairman of the said Tribunal in the form of memorandum along with the requisite number of envelopes and necessary postage stamps for making service of notices through registered post on the respondents other than the State and Regional Transport Authorities. The memorandum shall set-forth concisely and under distinct heads the grounds of objection to the order appealed from. The memorandum shall be accompanied by as many copies thereof as there are respondents and shall also be accompanied by a certified copy of the order appealed against.

- (3)
- (i) The appeal may be filed and argued by the appellant himself or by an agent or an Advocate, duly authorised in this behalf. On behalf of the respondent, other than the transport authority, the appeal may be argued by the respondent himself, by an agent or an Advocate duly authorised in this behalf.
 - (ii) On behalf of the transport authority, the Deputy Transport Commissioner (Tribunal) or an officer of the Transport Department, an agent or an Advocate duly authorised in this behalf by the Transport Commissioner may argue the appeal and may generally appear, act and plead before the Appellate Tribunal.

(4) Upon receipt of an appeal in accordance with sub-rules (1), (2) and (3), the Tribunal may fix a date within the office hours, for hearing of the appeal giving the transport authority concerned, other respondents, if any and the appellant, not less than thirty days' notice and shall in that case, order the appellant to deposit the fee as specified under Rule 125.

(5) The notice of the date of the hearing shall be given by registered post to the appellant and the respondent, other than the transport authority on the address given in the memorandum of appeal or at any other address that may be filed by them for the purpose. The notice to the transport authority shall be given through the Deputy Transport Commissioner (Tribunal) or through such other person who may be appointed to argue the appeal before the Appellate Tribunal.

(6) The Appellate Tribunal may for sufficient reason, restore an appeal dismissed in default or for want of prosecution on an application moved by an appellant within fifteen days from the date of the knowledge of the order of dismissal of the appeal.

(7) The appellant shall within fourteen days of the receipt of the intimation of the date of hearing, submit to the Tribunal copies of the documents upon which the appellant proposes to rely. The respondent shall have a right to file papers, on which he relies, within a week of the filing of the documents by the appellant.

(8) The Secretary, State Transport Authority, or Regional Transport Authority, may give copies of any document connected with an appeal preferred under sub-rule (2) on payment of fee as specified under Rule 125.

(9) The Secretary, State Transport Authority, or Regional Transport Authority may allow any person interested in an appeal to inspect the file connected with such appeal on payment of fee as specified under Rule 125.

92. Procedure in case of death of a party in appeal or revision— (1) Where any of the appellant or revisionist dies, and the case cannot be proceeded with by the remaining appellants or revisionists or where sole appellant or revisionist dies, the Tribunal shall adjourn the further hearing of the case to enable the legal representative to appear and apply for being made a party. If the legal representative fails to do so within 90 days from the date of death of the appellant or the revisionist the appeal or revision shall abate as a whole or so far as the deceased appellant or the revisionist is concerned, as the case may be.

(2) Where any of the respondents dies while the appeal or revision is pending, and the case cannot be proceeded with unless his legal representative is brought on record, the Tribunal shall, on an application made in that behalf within 90 days from the date of the death of the respondent, cause the legal representative of the deceased respondent to be made a party and shall proceed with the case. If no application in this behalf is made within this time the appeal or the revision shall abate as against the deceased respondent.

(3) Notwithstanding anything contained in sub-rule (1) or (2), there shall be no abatement of appeal or the revision by reason of death of any party between conclusion of the hearing and the passing of the order and order may in such a case be passed notwithstanding the death. Such order shall have the same force and effect as if it had been passed before the death took place.

(4) If a question arises in an appeal or revision whether a person is legal representative of the deceased appellant or revisionist or respondent, such question may be determined by the Tribunal in a summary manner after taking evidence or otherwise as may be considered necessary.

(5) The appellant or the revisionists or the person claiming to be the legal representative of a deceased appellant or revisionist may apply for an order to set aside the abatement and if it is proved that he was prevented by any sufficient cause from continuing the appeal or revision the Tribunal shall set aside the abatement and proceed with the appeal or revision.

93. Supply of copies— (1) The Tribunal may give to any person interested in the appeal copies of any document connected with the appeal, on payment of fee specified under Rule 125 in the shape of court-fee labels overprinted with the words "for copies only" and the stamp duty payable under Article 24 of Schedule 1-B of the Indian Stamp Act, 1889 (Act No. II of 1889) as amended in its application to Uttar Pradesh from time to time, or the court-fee payable under Articles 6 to 9 of Schedule 1 of the Court Fees Act, 1870 (Act No. VII of 1870), as amended in its application to Uttar Pradesh from time to time.

(2) Copies of the order shall be supplied to the transport authorities impleaded as respondents, free of charge.

94. Appeals: Procedure of— In the event of the State Government appointing a Tribunal to hear an appeal under sub-rule (1) of Rule 91 or in the event of the appellate authority appointing time for hearing under sub-rule (4) of Rule 91 of the appellant shall, within fourteen days of the receipt of the intimation that a hearing will take place, forward to the Tribunal or to the appellate authority, as the case may be, a list of documents, upon which he proposes to rely, together with copies of such documents in duplicate and may, upon the appointed date and subsequent hearing, appear either in person or through an approved agent.

95. Inspection of files— Inspection of a file shall be allowed on payment of a fee as specified under Rule 125 for an hour or part thereof in addition to the court-fee payable.

96. Hours of work: Fixing in advance— The authority specified in this rule may require any employer of a driver of transport vehicle, to make to the satisfaction of the said authority such time-table, schedule or regulation, as may be necessary to fix in advance the hours of work of the driver employed by him and upon approval by such authority of any time-table, schedule or regulation as aforesaid. It shall be the record of the hours of work fixed for the driver concerned for the purposes of sub-section (3) and sub-section (4) of Section 91.

Authority— Employers of drivers of transport vehicles used for the purposes of or in connection with—

A Regional Transport Authority— (i) A service of not less than five stage carriages.

(ii) The business of goods carriage operated by one permit-holder under one or more permits solely within the region.

The State Transport Authority— Any stage carriage, or permit authorising use by the same permit-holder of not less than five stage or goods carriages, as the case may be.

97. Conduct of passengers in stage carriages— (1) No person shall enter, or leave, or attempt to enter, or leave any stage carriage whilst in motion.

(2) No person shall enter into or alight from a stage carriage, except by the entrance or exits, provided for the purpose.

(3) No person shall enter into a stage carriage without first permitting all

passengers leaving the stage carriage to alight.

(4) No person shall knowingly, or intentionally, enter a stage carriage carrying the maximum number of passengers according to the limit of the passenger capacity prescribed under these rules.

(5) No passenger or any other person shall mount the driver's platform or talk or interfere with or otherwise distract the attention of the driver of a stage carriage while he is driving the vehicle.

(6) No passenger shall obstruct any employee of the permit-holder in the execution of his duty on the stage carriage.

(7) No passenger shall place his foot upon any seat of a stage carriage.

(8) No person (not being a person duly authorised by the permit-holder in this behalf) except a *bona fide* passenger or intending passenger, shall board a stage carriage and no passenger shall hang on to any exterior part of a stage carriage.

(9) No passenger shall board a stage carriage unless he either holds a pass or obtains a ticket on payment of the fare for the journey he intends to make.

(10) A ticket shall be valid only for the journey and the stage carriage for which it has been issued.

(11) No passenger shall travel in a stage carriage beyond the destination to which the fare he has paid entitles him to travel without informing and paying to the conductor the legal fare for the additional journey. Every passenger, shall, when so required, get off the omnibus in which he is travelling as the terminus of the route for which it is booked.

(12) If at any time a passenger in a stage carriage—

- (i) Behaves in a disorderly manner, or
- (ii) behaves in a manner likely to cause annoyance to female passengers, or
- (iii) uses abusive language, or
- (iv) molests any other passenger, or
- (v) smokes whom other fellow passengers object to it or when the vehicle is being refueled, or
- (vi) spits, or
- (vii) obstructs the conductor or the driver in the execution of his duties, or
- (viii) refuses, or is unable to pay the fare, or
- (ix) refuses to show ticket on demand by any authorised person, or
- (x) refuses to pay a fresh fare when he has altered or defaced his ticket so as to render the number or any portion thereof illegible, or
- (xi) uses, or attempts to use a ticket other than the ticket valid for a particular journey or a ticket which has already been used by another passenger or on another journey, or
- (xii) occupies more than one seat, or reserves or attempts to reserve another seat either for himself or for another passenger, or
- (xiii) has dressed or is possessed of clothing which is likely to soil or damage the dress or clothing of another passenger or which for any

- other reason is offensive to other passenger, or
- (xiv) has bulky luggage of a form or description likely to obstruct, annoy or cause inconvenience to another passenger, or
- (xv) carries any substance or article which is likely to annoy or cause inconvenience or be offensive to any other passenger, or
- (xvi) without lawful excuse occupies any seat exclusively reserved for females, or
- (xvii) wilfully damages or spoils or removes any fittings in or on the stage carriage or interferes with any light or any part of the stage carriage or its equipment, or
- (xviii) rings without lawful excuse or interferes with any signal of the stage carriage, or
- (xix) is reasonably suspected to be suffering from any contagious or infectious disease, or
- (xx) commits or abets commission of any offence under the Act.

The driver, conductor or any officer of the Transport Department specified in sub-Rule (1) of Rule 227 may require such passenger to alight from the vehicle forthwith and may stop the vehicle and keep it standing until the passenger has alighted. Such passenger shall not be entitled to the refund of any fare which he may have paid and any passenger failing to comply forthwith with such a requirement may be forcibly removed by the conductor or the driver and shall be guilty of the offence punishable under Section 177.

(13) A passenger who is reasonably suspected of contravening any of the provisions of this rule shall on demand being made by any officer of the Transport Department specified in sub-rule (1) of Rule 227 or the driver or conductor give his correct name and address to such officer, driver or conductor.

(14) A copy of the list of duties of the passengers enumerated in sub-rules (9) and (10) and clauses (i), (ii), (v), (vii), (viii) and (xx) of sub-rule (12) in Hindi version shall be carried in a prominent place in every stage carriage.

98. Maintenance of complaint books at the bus-stands and in stage carriages— (1) A complaint book in Form No. SR-34 with serially numbered pages in triplicate shall be maintained at every bus-stand and also in every stage carriage to enable passengers to record any legitimate complaint in connection with the stage carriage service. Any passenger recording a complaint shall be entitled to take one copy of the complaint soon after recording the-complaint.

The driver and the conductor of a stage carriage shall ensure prior to starting on a journey that the stage carriage is provided with the complaint book.

(2) Such complaint shall be written clearly and in an intelligible manner and the complainant shall also clearly and legibly record in the complaint book his full name, address, time and date on which the complaint is written.

(3) The operator of the stage carriage service or the stage carriage permit- holder, as the case may be, shall look into every complaint recorded in the complaint book, remove as far as possible the cause of the complaint and report together with a copy of the complaint to the transport authority which granted the permit slating the action taken by him in connection with the complaint. A copy of the report shall be forwarded by the operator of the stage carriage service or the stage carriage permit- holder, as the case may be, to the complainant.

(4) The complaint book shall be so securely kept in the stage carriage and at the bus-stand as to provide ample safeguard against the risk of being removed and shall at all times be made available to any passenger desiring to record a complaint or to an officer of the Transport Department mentioned in sub-rule (1) of Rule 227,

99. Children and Infants: Carriage in a public service vehicle of— In relation to the number of persons that may be carried in a public service vehicle—

- (i) a child of not more than twelve years of age shall be treated as one half, and
- (ii) a child of not more than five years of age shall be ignored.

100. Carriages of corpses— No driver, conductor or person in-charge of any transport vehicle shall permit any person to place or carry on such vehicle any corpse when such vehicle is plying for hire for the conveyance of any passenger other than person or persons by whom the vehicle has been expressly hired for the purpose of conveying such corpse.

101. Carriage of persons in goods carriage— (1) Save in the case of a vehicle which is being used on behalf of the State Government or the Central Government or for the carriage of troops or police or a stage carriage in which goods are being carried in addition to passengers, no person shall be carried in a goods carriage other than the owner or the hirer or a bona fide employee of the owner or the hirer of the vehicle, except in accordance with this rule:

Provided that the State Government may by special or general order permit a co-operative society or class of co-operative societies owning, or hiring a goods carriage to carry any of its members under its authority in such goods vehicle when it is used for carrying the society's goods in the course of its business:

Provided further that the State Government may by special or general order, lay down that a *bona fide* employee of the owner or hirer, of the vehicle shall not travel in such goods carriage except under the written authority from its owner or the hirer, as the case may be,

(2) No person shall be carried in the cab of a goods carriage beyond the number for which there is seating accommodation at the rate of thirty-seven centimeters measured along the seat excluding the space reserved for the driver, for each person, and not more than six persons, in all in addition to the driver shall be carried in any goods carriage.

(3) No person shall be carried upon the goods or otherwise in such a manner that such person is in danger of falling from the vehicle and in no case shall any person be carried in a goods carriage in such a manner that any part of his person, when he is in sitting position, is at a height exceeding 3.5 meters from the surface upon which the vehicle rests,

(4) Notwithstanding the provisions of sub-rule (2), the transport authority may as a condition of the permit granted for any goods carriage, specify the condition subject to which a larger number of persons as may be carried in the vehicle provided that such number shall not exceed area in square metres of the floor of the vehicle divided by 7.

(5) Nothing contained in this rule shall be deemed to authorise the carriage of any person for hire or reward on any vehicle, unless there is in force in respect of the vehicle a permit authorising the use of the vehicle for such purpose, and save in accordance with the provisions of such permit.

(6) The provisions of this rule shall not apply to a vehicle registered under Section 60.

102. Goods carriage: Duty to carry goods— A goods carriage shall not; save for reasonable and lawful excuse, refuse to carry any goods of any person tendering the maximum freight there for fixed under Section 67.

103. Records to be maintained— (1) The transport authority may by general or special order require the owner of any transport vehicle to maintain records at the place of business or the vehicles or at both the places and submit returns in respect of the vehicle in such form as the authority may specify and such records and returns may include particulars of the daily use of the vehicle in respect of—

- (i) The name and licence number of the driver, conductor and other attendants, if any;
- (ii) The route upon which or the area within which the vehicle was used;
- (iii) The number of kilometers travelled;
- (iv) the times of commencement and termination of a journey and of any halt on a journey when the driver took rest;
- (v) the weight of goods carried between specified places and the nature of the goods;
- (vi) in the case of goods carried in a stage carriage the number of trips and the mileage when goods were solely or when the goods were carried in addition to passengers, and in that case, the number of seats available for passengers.

(2) No owner or other person shall cause or allow any person to drive a transport vehicle unless the owner or other person has in his possession a record in writing of the name and address of the driver as set forth in his driving licence, the number of the licence and the name of the authority by which it was Issued.

(3) The records required to be maintained under this rule shall be produced for inspection on demand by any registering authority or by any police officer not below the rank of a Sub-Inspector.

104. Permit-holder: Change of address of— (1) If the holder of a permit ceases to reside or to have his place of business, as the case may be, at the address set forth in the permit, he shall within fourteen days send the permit to the transport authority by which the permit was issued intimating the new address.

(2) Upon receipt of intimation under sub-rule (1) the concerned transport authority, shall after making such enquiries as it deems fit, enter in the permit the new address and shall intimate the particulars to the authority of any region in which the permit is valid by virtue of counter-signature or otherwise.

105. Public service vehicle : Intimation of damage to or failure of— (1) The holder of any stage or contract carriage permit in respect of a particular vehicle by reference to the registration mark shall, within seven days of the occurrence, report in writing to the transport authority by which the permit was issued any failure of, or damage to such vehicle or to any part thereof, of such a nature as to render the vehicle unfit for use in accordance with the condition of the permit for a period exceeding one week.

(2) The holder of any permit in respect of a service of stage carriage shall, within seven days of the occurrence report in writing to the transport authority by which the permit was issued, any failure, or damage to any vehicle *used* by him under the authority of the permit of such a nature as to prevent the holder from complying with any of the provisions or conditions of the permit for a period exceeding one week.

(3) Upon receipt of a report under the preceding sub-rules, the transport authority by which the permit was issued may, subject to the provisions of Rule 84:

- (i) direct the holder of the permit within such period, not exceeding two months from the date of the occurrence, as the authority may specify either to get the vehicle set right or to provide a substitute vehicle, or
- (ii) if the damage to, or failure of, the vehicle is such that in the opinion of the said authority it cannot be set right within a period of two months from the date of occurrence, direct the holder of the permit to provide a substitute vehicle, and when the holder of the permit fails to comply with such a direction, may suspend, cancel or vary the permit accordingly.

(4) The transport authority giving a direction or suspending, cancelling or varying a permit under sub-rule (3) shall send intimation, of the fact to the transport authority of any other region in which the permit is valid by virtue of counter-signature or otherwise.

106. Alteration to motor vehicle— (1) The owner of a transport vehicle or if the owner is not the holder of the permit, the holder of the permit at the time of making report under Section 52 to the registering authority shall also forward a copy thereof along with a fee as specified under Rule 125 to the transport authority by which the permit relating to the vehicle was granted, or in the case of a permit relating to a service of stage carriages, to the transport authority by which the permit was granted under which the vehicle is being used.

(2) Upon receipt of a report under sub-rule (1), the transport authority by which the permit was issued may if the alteration is such as to contravene any of the provisions or conditions of the permit—

- (i) Vary the permit accordingly; or
- (ii) require the permit-holder to provide a substitute vehicle within such period as the authority may specify and, if the holder fails to comply with such requirement, cancel or suspend the permit.

(3) A transport authority, varying, suspending or cancelling a permit or causing another vehicle to be substituted for vehicle covered by a permit shall intimate particulars to the transport authority of any other region in which the permit is valid by virtue of counter-signature or otherwise.

107. Inspection of transport vehicle and their contents— Any registering authority or officer of Transport Department specified in sub-rule (1) of Rule 227 or a police officer not below the rank of Sub-Inspector may at any time when the vehicle is in a public place call upon the driver of the vehicle to stop the vehicle and to keep it at rest for such time as may be necessary to enable such authority or officer to make reasonable examination of the contents of the vehicle or the number of passengers of the vehicle, as the case may be, so as to satisfy himself that the provisions of the Act and these rules and provisions and conditions of the permit in respect of the vehicle are being complied with.

108. Inspection at other times— The registering authority may, in order to satisfy himself that the provisions of Chapter VII of the Act and the rules made there under are being observed, at any time require the owner or person in charge of any public service vehicle to produce the said vehicle before him or before an authority appointed by him for this purpose at such time and place as he may by general or special order direct, and the owner or person in charge of any such public service vehicle shall allow the registering authority or any officer appointed by him full facilities for inspecting the said vehicles and shall permit access to his premises for this purpose.

109. Temporary Authorisation in lieu of permit— (1) Where the holder of a permit submits the permit to the transport authority for renewal or counter-signature of the permit or for any other purpose to a police officer or any Court or other competent authority and such officer, Court or authority takes temporary possession of the permit or the registration certificate or certificate of fitness or the driving licence or the conductor's licence (hereinafter called in this rule the documents) from the holder thereof for any purpose, such transport authority or the police officer or the Court or other competent authority, as the case maybe, shall immediately furnish to the holder of the permit a receipt for the documents and a temporary authorisation in Form SR-35 to ply the vehicle during such period as may be specified in the said temporary authorisation, and, during the said period, the production of the temporary authorisation on demand shall be deemed to be the production of the documents :

Provided that the authority by which the temporary authorisation was granted shall extend the period for which the temporary authorisation is to remain valid until the documents are returned, but such extension shall not be beyond the period of validity of the documents.

(2) Until the documents referred to in sub-rule (1) are returned to the holder thereof, the vehicle concerned shall not be plied beyond the period as specified in the temporary authorisation referred to in sub-rule (1) or, as the case may be, as extended under the proviso to that sub-rule.

(3) No fee shall be payable in respect of such temporary authorisation.

110. Prohibition of painting or marking in certain manner— (1) A transport vehicle when regularly used by or under a contract with the Indian Posts and Telegraph Department shall be painted in postal red colour.

(2) The vehicles of Uttar Pradesh State Road Transport Corporation shall be painted in a combination of cream and blue colours with a white or cream hood.

(3) Vehicles belonging to Uttar Pradesh Police shall be painted in combination of blue and red colours or in deep khaki colour.

(4) No other transport vehicles plying in the State shall be painted in any of the said colours or colour combinations prescribed by the Central Government in respect of tourist vehicles and a vehicle covered by national permit or those prescribed in sub- rules (1), (2) and (3).

Licensing of agents engaged in business of collecting, forwarding and distributing goods carried by goods carriages

111. Definitions— In Rules 112 to 119 unless the context otherwise requires—

- (a) '*Agent*' means any person who is engaged as such directly or indirectly in the business of collecting, forwarding or distributing goods carried by goods carriages;
- (b) '*agent's licence*' means a licence granted to an agent under Rule 113 for the principal establishment and includes a supplementary licence granted to such agent for any additional establishment;
- (c) '*Licensing Authority*' means the Regional Transport Authority of the region in which the applicant has his principal place of business or intends to carry on the business, as the case may be.

112. Prohibition to act as an agent except under licence— No person shall act as an agent unless he holds a valid licence authorising the carrying on of his business of an agent at the place or places specified in the licence.

113. Grant of agent's licence— (1) Any person desiring to obtain an agent's licence shall make an application in Form SR-36 to the licensing authority

(2) The application shall be accompanied by the fee as specified under Rule 125.

(3) In considering an application made under this rule, the licensing authority shall have due regard, among other things to—

- (a) the number of goods carriages either owned or controlled by the applicant;
- (b) the suitability of the accommodation possessed by the applicant for the storage of goods;
- (c) the facilities provided by the applicant for parking the goods carriages while loading and unloading of goods without hindrance to the general traffic in the area; and
- (d) the financial resources of the applicant and his ability to run the business efficiently.

(4) The licensing authority, if there is no valid ground for rejection of the application, shall grant a licence or a supplementary licence for a branch office in Form SR-37 or SR-38, as the case may be, specifying the place or places, where the business may be carried on:

Provided that the licensing authority shall not refuse to grant a licence or supplementary licence for a branch office applied for unless the applicant is given an opportunity of being heard and the reasons of refusal are recorded and communicated to him in writing.

(5) The details of establishment of branch office such as municipal home number, the nearest road, bye-lane, the postal delivery district and other landmarks in the vicinity to enable identification of the place of licence, duly attested by the licensing authority shall be attached to the licence.

(6) The licence shall be valid for a period of five years from the date of issue. The date of expiry of the supplementary licence shall be co-terminus with the date of expiry of the principal licence irrespective of the date on which the supplementary licence is granted.

(7) The licence shall not be transferable.

114. Security for complying with the conditions— (1) For ensuring proper compliance with the conditions of licence referred to in Rule 119, the applicant shall at the time of granting a licence, deposit a security of rupees ten thousand only, either in cash or in the form of any Government security approved by the licensing authority.

(2) Subject to the provisions of Rule 120, the security shall be refundable to the licensee on the expiry of the licence or closing down of the business by him, whichever is earlier.

115. Renewal of Agent's Licence— (1) A licence may be renewed on an application in Form SR-39 made to the licensing authority not less than 30 days before the date of expiry. Such application shall be accompanied by the principal and the supplementary licence, if any, and the fee as specified under Rule 125.

(2) The licensing authority may, subject to the consideration applicable to the grant of licence, either renew or refuse to renew the licence.

(3) The renewal of licence shall be made by endorsement of renewal thereon by the licensing authority.

(4) The provisions of Rules 113 and 114 shall *mutatis mutandis* apply to renewal of licence also.

116. Issue of duplicate licence— If at any time, an agent's licence is lost, destroyed or torn, or otherwise defaced so as to be illegible, the agent shall forthwith apply to the licensing authority for the grant of a duplicate licence. The application shall be accompanied by a fee as specified under Rule 125. Upon receipt of such an application, the authority may ask the applicant to file an affidavit or declaration that the licence has actually been lost or destroyed and after satisfying itself that the same has been so lost or destroyed, issue a duplicate licence clearly stamped "Duplicate" in red ink. Where a duplicate agent's licence has been granted on representation that the licence originally granted has been lost or destroyed and the original licence is subsequently found, the original licence shall be surrendered to the licensing authority.

117. Conditions for agent's licence— An agent's licence shall be subject to the following conditions, namely—

- (i) That the licence shall, subject to the provisions of Rule 119 provide places for loading and unloading of goods;
- (ii) That the licensee shall be responsible for proper arrangement for storage of goods collected for dispatch and delivery;
- (iii) that the licensee—
 - (a) shall be responsible for proper delivery of the goods to the consignee;
 - (b) shall be liable to indemnify the consignee for any loss or damage to goods while in his control or possession;
 - (c) shall not issue a goods transport receipt without having actually received the goods;
 - (d) shall not deliver the goods to the consignee without actually receiving from the consignee a goods transport receipt or, if the receipt is lost or misplaced, an indemnity bond covering the value of goods;
- (iv) that the licensee shall insure the goods against any loss or damage while in his control or possession;
- (v) that the licensee shall maintain proper record of the vehicles under his control and of the collection, dispatch and delivery of goods which shall be open to inspection by the Regional Transport Authority or by any person duly authorised in this behalf by that authority and shall furnish to the licensing authority by 31st March every year a return in respect of the previous calendar year in Form SR-40;
- (vi) that the licensee shall furnish the operator with correct figures of the freight receivable by them from the consignors or the consignees;
- (vii) that the licensee shall maintain proper accounts of the commission charged by him and cause the same to be audited by a qualified auditor annually;

- (viii) that the licensee shall ensure that the goods vehicles under his control have valid permits for routes on which the vehicles have to ply;
- (ix) that the licensee shall maintain in good condition a weighing device capable of weighing at a time not less than 226 kgs.;
- (x) that the licensee shall attend his customers in the order in which they approach him:

Provided that customers in respect of such perishable goods as maybe notified by the State Government in the Official Gazette shall be given priority over other customers and shall be attended to in the order in which they approach the licensee;

- (xi) that the licensee shall assign the available traffic amongst the operators in the order in which they have approached him and shall maintain a register chronologically recording particulars of the available traffic and the waiting operators;
- (xii) that the licensee shall observe such other conditions as the licensing authority may specify in the licence.

118. Particulars to be mentioned in contract of agency— All contracts entered into by the licensee for the purpose of collecting, forwarding and distributing goods shall be in writing and shall contain the following particulars—

- (i) Name and address of the consigner and the consignee;
- (ii) Description and weight of the consignment;
- (iii) Destination and its distance in kilometers from the starting station;
- (iv) Freight per tonne per kilometer and for the whole consignment;
- (v) delivery instructions, e.g., the date by the which and the place where the goods are to be delivered to the consignee;
- (vi) terms of payment agreed upon;
- (vii) name of the owner and driver, the registration number of the vehicle and amount of the commission.

119. Premises to be used— (1) The licensing authority may in consultation with the local authority and the in-charge of the police station having jurisdiction over the area concerned, either approve or refuse to approve any premises owned by or in the possession of a licensee or an applicant for agent's licence to be used for storage of goods and loading and unloading thereof having regard to the suitability of the site, sanitary conditions, storage capacity of the premises and the parking space available for goods vehicles, etc.

(2) Any approval under sub-rule (1) shall be subject to the following conditions, namely—

- (i) that the premises shall at all times be kept in a clean condition and good state of repairs;
- (ii) that the premises shall be administered in a seemly and orderly manner;
- (iii) that the licensee shall take all possible precautions to ensure that no breach of any of the provisions of the Motor Vehicles Act, 1988 and the rules made there under is committed in respect of any vehicle entering or leaving the premises or in it parking.

(3) Where the licensing authority refuses to approve any premises under sub-rule (1), he shall record in writing his reasons for such refusal.

120. Suspension and cancellation of a licence— (1) Without prejudice to any other action which may be taken against a licensee, the licensing authority may by order in writing forfeit the whole or part of the security deposited under Rule 114 or cancel the agent's licence or suspend it for such period as it thinks fit if in its opinion any of the conditions under which the licence has been granted or under which any premises have been approved under Rule 119 has been contravened.

(2) Before making any order for forfeiture of security or cancellation or suspension of the licence under this rule, the licensing authority shall give the licensee an opportunity of being heard and shall record reasons in writing for such forfeiture, cancellation or suspension.

(3) Where a license is liable to be cancelled or suspended under this rule and the licensing authority is of opinion that having regard to the circumstances of the case, it would not be necessary or expedient so to cancel or suspend the licence, if the licence agrees to pay a certain sum of money then, notwithstanding anything contained in sub-rule (1), the licensing authority may instead of cancelling or suspending the licence, as the case may be, recover from the licensee the sum of money agreed upon.

(4) Where the security deposited under Rule 114 has been forfeited in whole or in part, the licensee shall within fifteen days of the date of the order deposit the amount so forfeited so as to make good the total amount of the security failing which the licence shall stand suspended till such time as the amount has been deposited.

(5) Notwithstanding anything contained in sub-rule (4), the licensing authority may, if he is satisfied that the licensee could not for reasonable cause deposit the amount within the period specified in the foregoing sub-rule, extend the period for depositing the amount.

121. Display of agent's licence— (1) A collecting agent shall carry with him his agent's licence and shall produce it on demand to any officer of the Transport Department mentioned in sub-rule (1) of Rule 227 of these rules or any police officer in uniform not below the rank of a Sub-Inspector.

(2) A forwarding agent shall exhibit his agent's licence at a prominent place in the premises approved under Rule 119 and the licence shall be made available for inspection by the officer of the Transport Department mentioned in sub-rule (1) of Rule 227 of these rules or any police officer in uniform not below the rank of Sub-Inspector.

(3) A collecting and forwarding agent shall carry with him his agent's licence and shall produce it on demand to any officer of the Transport Department mentioned in sub-rule (1) of Rule 227 or any police officer in uniform not below the rank of Sub-Inspector and shall also cause a true copy of his agent's licence to be exhibited at a prominent place in the premises approved under Rule 119.

122. Appeals— (1) Any person aggrieved by an order made under sub-rule (3) of Rule 113, sub-rule (2) of Rule 115, sub-rule (3) of Rule 119 or sub-rule (1) of Rule 120 may appeal to the State Transport Appellate Tribunal constituted under "Section 89 of the Motor Vehicles Act, 1988 within 30 days from the date of receipt of the order passed by the licensing authority:

Provided that a memorandum of appeal shall be accompanied by a fee specified under Rule 125.

(2) The memorandum of appeal shall be filed in duplicate setting forth concisely the grounds of objection and shall be accompanied by a certified copy of the order appealed against.

123. Levy of fee for supply of copies by transport authority— Copy of any order from which an appeal may be preferred under Rule 122 or of any document shall on an application by a party in that behalf be issued to him on payment of fee as specified under Rule 125 and the stamp duty payable under the Indian Stamp Act, 1899 as amended in its application to Uttar Pradesh.

Licensing and regulation of conduct of agents for sale of tickets for travel by public service vehicles

124. Grant of licence— (1) Every owner of a public service vehicle to be let or plied for hire shall intimate to the Regional Transport Authority concerned, the name and address of the person appointed on his behalf as the agent who has been engaged in the sale of tickets to passengers for travel by such vehicle.

(2) No person shall act as an agent for the owner of such public service vehicle and no owner shall so employ any person unless he has obtained an agent's licence in Form SR-41 from the Regional Transport Authority concerned.

Explanation— For the purpose of this sub-rule, persuading any person, soliciting or attempting to persuade any person to travel in a vehicle shall be deemed to be act of agent for the sale of tickets for travel thereby.

(3) An agent's licence shall be valid for a period of three years from the date of issue or renewal and shall be effective only in the region wherein it is issued or renewed.

(4) No person under the age of eighteen years shall hold an agent's licence.

(5) Application for an agent's licence shall be made in writing to the Regional Transport Authority of the region wherein the applicant resides, in Form SR-42 and shall be accompanied by two clear copies of a recent photograph of the applicant and the fee specified under Rule 125.

(6) The fee for grant or renewal of or issue of a duplicate agent's licence shall be as specified under Rule 125.

(7) An application for the renewal of an agent's licence shall be made in writing accompanied by the fee as specified under Rule 125 and the licence shall be addressed to the Regional Transport Authority, by which the agent's licence was issued,

(8) The Regional Transport Authority may, for reasons to be recorded in writing, decline to issue or renew an agent's licence or grant of licence on such conditions as he may consider fit to impose.

(9) (i) The Regional Transport Authority may, for reasons to be recorded in writing, suspend, cancel or revoke an agent's licence.

(ii) On an agent's licence being suspended, cancelled or revoked or its renewal having been refused, it shall be surrendered forthwith to the Regional Transport Authority which issued the licence.

(10) An agent shall, on demand by any officer of the Transport Department not below the rank of Assistant Regional Transport Officer produce his agent's licence for inspection,

(11) The Regional Transport Authority may by order specify the uniform to be worn by an agent.

(12) No person shall hold more than one agent's licence effective in the same region.

(13) The agent shall, while, on duty, wear in a conspicuous place on his left side of chest a metal badge as prescribed in the Form SR-43 issued by the Regional Transport Authority on payment of a fee as specified under Rule 125 along with his name-plate in black letter on white background in bold letters in English or Hindi. No agent shall lend or part with the badge to any other person and he shall surrender it to the Regional Transport Authority in the event of his licence being suspended, revoked or not renewed. If the badge is lost or destroyed a duplicate badge shall be issued by the authority which issued it on payment of fee as specified under the said rule.

¹[124-A. Restriction on operation under these rules— No person shall engage himself in the business of radio taxi without valid permit.

124-B. Eligibility criteria for making an application— An applicant must—

- (i) be an individual, association of individuals either a company incorporated under the Indian Companies Act, 1956 or a society registered under the Societies Registration Act, 1860;
- (ii) be financially sound so as to run and manage the radio taxi operation under the scheme and shall be required to furnish a bank guarantee for performance guarantee of Rupees Two lakh in Form SR 43-A on or before the date of Issue of letter;
- (iii) demonstrate possession of adequate parking space for all taxies and office space (minimum of one hundred sq. feet) for accommodating the control room with radio communication and two telephone lines which are accessible throughout day and night;
- (iv) have minimum ten radio taxies of following profile—
 - (a) ²[at the time of induction 50 percent vehicles shall be brand new and 50 percent vehicles should be such old vehicles as are not more old than the age limit fixed by the Transport Commissioner.]
 - (b) The vehicle should be driven on clean fuel *i.e.*, Compressed Natural Gas/Liquefied Petroleum Gas (CNG/LPG): Provided that at the places where such fuel is not available such taxi shall be permitted to ply on available fuel;
 - (c) the vehicle should be of engine capacity of 999CC or above, Jeep type vehicle like Gypsy etc. is prohibited;
 - (d) the vehicle must be equipped with temperature control devices such as air conditioning, heating and maintained in proper working order at all times;
 - (e) the vehicle should be fitted with electronic fare metres on the front panel (dashboard) and maintained in a proper working order;
 - (f) on the roof of the vehicle there should be a Light Emitting Diode/Liquid Crystal Display board, to display that the vehicle is a radio taxi. The dimensions of the LED/LCD display panel must conform to the norms prescribed by the STA;

1. Rule 124-A to 124-L, inserted by Notification No.1237/XXX-4-2013-346-95TC, dated 10th July, 2013 (Fourteenth Amendment) Rules, 2013 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 10th July, 2013 (w.e.f. 10-07-2013)

2. Sub-Clause (a) in Rule 124-B, substituted by Notification No.3/2015/469/XXX-4-2015-8(23)-2013, dated 8th May, 2015 (Eighteenth Amendment) Rules, 2015 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 8th May, 2015 (w.e.f. 08-05-2015)

- (g) on the roof of the vehicle there should be a Light Emitting Diode/Liquid Crystal Display board, to display that the vehicle is a radio taxi. The dimensions of the LED/LCD display panel must conform to the norms prescribed by the STA;
- (h) the vehicle is allowed to carry advertisement in such a manner so that it will not disturb any one using the road and are only visible to the people standing on the road side. This permission will be granted by ensuring that road safety is not being compromised in any way;
- (i) the vehicle should meet emission standards as prescribed from time to time;
- (j) the vehicle must be fitted with Global Positioning System/ General Pocket Radio Switching based tracking devices which must be in constant communication with central control unit while the vehicle is on duty;
- (k) the vehicle must be equipped with a mobile radio fitted in the front panel for communication between driver and the main control room of the operator;
- (l) the vehicle must be equipped with the first aid box containing material as specified in these rules;
- (m) the vehicle should be replaced on completion of 9 years with a brand-new vehicle meeting the prevailing emission standard;
- (n) photograph of driver along with operator, particulars of driver and details of the operator will have to be displayed on the dashboard of the vehicle;
- (o) the radio taxi shall remain in white colour with different colour strip, of one foot on both of the panels of the car for differentiating each operator;
- (p) transport help line number should be prominently displayed inside and outside of radio taxis necessarily;

and shall undertake to employ the drivers in radio taxis of following profile—

- (a) the drivers must possess a valid driving license for heavy or light vehicle, as the case may be, for a period of not less than three years preceding the date on which they are employed to drive the radio taxis under these rules;
- (b) the drivers must have passed Class X examination or equivalent from a recognised institution;
- (c) the drivers shall be required to successfully pass a special driving test as and when devised/prescribed by the STA;
- (d) the drivers must at all times be in uniform as per these rules or dress as approved by the STA;
- (e) the drivers must be of good behavior and good character without any criminal record;
- (f) the drivers must be totally reliable and trustworthy who are employed only after police verification.

124-C. Area of operation— If the permit is issued to a radio taxi, it will be permitted to operate under the permit within the territorial limit of any Municipal Corporation and shall also be valid for the journey extended beyond the municipal limit if demanded by the passenger for any visiting place situated within the State.

Explanation— For the purposes of this rule, the Municipal Corporation means a Municipal Corporation under the Uttar Pradesh Municipal Corporation Act, 1959 (U.P. Act No. 2 of 1959).

124-D. Application for grant or renewal of permit— (1) An application for grant or renewal of a permit under the Act and these rules shall be made vehicle-wise in Form SR 43-B to the STA for operation within the territorial limit of a Municipal Corporation and shall be accompanied by a fee as prescribed by the State Government from time to time. If an operator is not in possession of the vehicles at the time of application, he may request to the STA for issuance of letter of intent in the same application format for purchasing the vehicles.

(2) The STA shall normally dispose of the applications for grant or renewal of permit under these rules within thirty days from the date of receipt thereof.

124-E. Procedure for issue and renewal of permit— (1) The STA may, on receipt of an application under Rule 124-D and after satisfying himself that the applicant has complied with the requirement of Rule 124-E, issue a letter of intent in Form SR43- C in favour of the applicant for purchase of a minimum ten vehicles of the prescribed category as per induction schedule finalised by the STA under Rule 124-H. Under the induction schedule, this fleet may be achieved by the applicant within four months from the date of issue of letter of intent. However, temporary permits can be granted vehicle wise presenting at least five vehicles to start the operation.

(2) Temporary permits, on having at least five vehicles, shall be granted to operator for four months so as to establish a control room fully equipped with a radio network and GPS/GPRS tracking system within a period of four months from the date of issue of letter of intent.

(3) In the event that operator fails to fulfill these conditions in four months, an application giving reasons for delay and accompanied with a penalty of Rupees five thousand to be paid through demand draft drawn in favour of Transport Commissioner Government of Uttar Pradesh, shall be presented before the STA. After being satisfied from the cause explained. The STA may grant further two months time to establish the infrastructure.

(4) Vehicle-wise temporary permits shall be issued to the operator unless and until he procures at least ten vehicles as per induction schedule approved by the STA under Rule 124-H. On compliance of all conditions prescribed in the letter of intent, vehicle-wise Regular permit valid for a period of five years shall be issued by the STA in Form SR43-D.

(5) In the event that operator fails to comply with the stipulations as described in preceding items within the prescribed period, his temporary permits shall automatically stand cancelled and the performance guarantee of Rupees Two lakh shall be forfeited.

(6) The permit initially granted for a period of five years shall be renewable for a further period of five years subject to the satisfactory performance of the operator as per terms and conditions and any vehicle-wise other condition prescribed by STA. The applicant may submit the applications vehicle-wise in Form SR43-B for renewal of permits after completion of four years but not less three months before the expiry of the permits accompanied a renewed/fresh performance guarantee of Rupees Two lakh or as the case

may be, of such extended amount as may be fixed by the STA in view of rate of increase in the cost of radio taxis and expenses of operation thereof.

(7) On receipt of the applications for renewal of permits, an inspection of the business premises of the operator shall be carried out and performance of the operator shall be evaluated as per the terms and conditions of these rules. The STA shall keep in view the complaints received against the operator at the time of granting renewal of the permits. After satisfying himself that the operator has performed the services as per requirements of these rules, STA shall grant the renewals in Form SR43-D.

124-F. Special conditions to be adhered by the operator— (1) An operator or a permit holder shall—

- (a) not shift the main place of the business mentioned in the permit without prior approval in writing of the STA;
- (b) keep the premises and all the records and registers maintained by him and radio taxis open for inspection at all reasonable time by any person not below the rank of Senior Motor Vehicle Inspector or Taxation Officer authorised by the STA;
- (c) submit from time to time to the STA, such information and return as may be called for by it;
- (d) maintain in their radio taxis, at his main office of business and other offices, at a conspicuous place a "complaint book" in Form SR43-E with serially numbered pages in triplicate. The operator shall dispatch the duplicate copy of the complaint, if any, to the STA by registered post expeditiously and in any case not later than three days; and
- (e) maintain the suggestion book in the main and branch office and for ward suggestion received with comments, if any, to the STA once a month.

(2) The permit shall not be transferred to any one by the operator without prior written permission of the STA.

124-G. Fare and detention charges— Fare, detention charges and other charges shall be fixed by notification in the Official Gazette from time to time.

124-H. Induction Schedule— (1) An applicant must submit an induction Schedule in respect of not less than ten vehicles at the time of making an initial application for issue of letter of intent. The STA may approve the Schedule mentioning primarily to present at least 5 vehicles as first lot with in a reasonable time from the date of issue of letter of intent, and for further Schedule with or without modifications or may require the applicant to submit a modified induction Schedule prior to issue of letter of intent.

(2) The operator shall submit a compliance report of each stage of the approved Schedule to the STA.

(3) If the operator fails to induct radio taxis as per approved schedule, performance guarantee maybe forfeited and Temporary permit may be cancelled by the STA.

124-I. Power of STA to suspend or cancel the permits— (1) The STA, on being satisfied after giving the operator an opportunity of being heard, is of the opinion that—

- (a) He has failed to comply with any of the terms and conditions the provisions of these rules or the conditions of the permit; or

- (b) He has failed to maintain the radio taxi in compliance with the provisions of the Act and these rules; or
- (c) Any one of his employees is guilty of misbehavior with customers; or
- (d) any complaint against the permit by any person has been proved shall suspend the permit for specified period of cancel it.

(2) Where the permit is liable to be suspended or cancelled and the STA is of the opinion that having regard to the circumstances of the case, it would not be necessary or expedient to suspend or cancel the permit, if the operator agrees to pay the sum of money that may be imposed by the STA, then notwithstanding anything to the contrary contained in sub-rule (1) the STA may, instead of suspending or cancelling the permit, as the case may be, recover from the operator, the sum of money agreed upon.

(3) When the permit is suspended or cancelled under sub-rule (1), the operator shall surrender the permit to the STA.

124-J. Appeal— Any person aggrieved by any order of the STA under Rule 124-E or Rule 124-I, may, within thirty days of the receipt of the order, appeal to the State Transport Appellate Tribunal.

124-K. Procedure for appeal— (1) An appeal under Rule 124-J shall be preferred in duplicate in the form of a memorandum setting forth the grounds of objection to the order of the STA and shall be accompanied by fee as may be specified by the Government from time to time.

(2) The State Transport Appellate Tribunal may after giving an opportunity to the parties to be heard and after such enquiry as it may deem fit, pass appropriate orders.

124-L. General conditions attaching to all radio taxi permits— (1) The conditions of every such permit shall be as follows—

- (i) Working hours of drivers is to be limited in accordance to the Transport Workers Act, 1961.
- (ii) Radio taxi will be available to the general public in three ways:
 - (a) On call by dialing the concerned telephone numbers,
 - (b) By hiring the taxi from the designated location,
 - (c) by stopping the taxi on the road.
- (iii) If the radio taxi operator uses or causes or allows a vehicle to be used in any manner not authorised by the permit or provisions of these rules, the operator/driver shall be jointly and severally responsible for any offence or crime which has been committed by person using the said vehicle.
- (iv) An operator may at any time surrender the permit issued to him by the STA and, on such surrender, the STA shall cancel the permit, The operator shall clear all dues before surrendering the permit and seeking release of bank guarantee.

(2) The State Government shall have power to change any or all of the terms and conditions mentioned in sub-rule (1) in public interest.]

125. Fees— The fees which shall be charged under the provisions of this Chapter shall be as specified in the table below: —

¹[TABLE

Sl. No.	Purpose	Amount	Rule
1	2	3	4
1.	Application fee for grant, renewal, transfer and countersignature of permit other than temporary permit— (a) Motor Cab (Bike Taxi) (b) Motor Cab (b)Omni bus for Goods Carriage	500.00 600.00 1200.00	64
2.	For grant, renewal and countersigned of permit— (A) of permit other than temporary permit—		75,81,82
	(i) for stage carriage	7500.00	
	(ii) for goods carriage	7500.00	
	(iii) for contract carriage other than motor cab and maxi cab	9000.00	
	(iv) Private Service Vehicle	4500.00	
	(v) for maxi cab— (a) for one region	3000.00	
	(b) for whole of Uttar Pradesh	5000.00	
	(vi) for motor cab—		
	(a) for one region	2000.00	
	(b) for whole of Uttar Pradesh	3000.00	
	(c) for three contiguous States including Uttar Pradesh	3000.00	
	(d) for whole of India	5000.00	

1. Rule 125, Table substituted by Notification No.4 /2019/215/XXX-4-2010-4(02)-2010, dated 26th February, 2019

Sl. No.	Purpose	Amount	Rule
1	2	3	4
	(vii) Motor cab (BikeTaxi)—		
	(a) for one region	750.00	
	(b) for whole of Uttar Pradesh	1500.00	
	(B) Of temporary permit—		74,75
	(i) for each month or part there of	450.00	
	(ii) after three days up to the end of week	450.00	
	(iii) for every additional week	450.00	
3.	Application fee for replacement of a vehicle under a permit	270.00	84
4.	For transfer of permit—		87
	(i) for stage carriage	9000.00	
	(ii) for contract carriage other than motor cab and maxi cab	9000.00	
	(iii) for goods carriage	750.00	
	(iv) for maxi cab	300.00	
	(v) for motor cab	300.00	
	(vi) fee for transfer of permit to the legal heirs of the permit-holder in the event of his death shall be	Half of the fee specified in clauses (i) to (v)	
5.	For issue of a duplicate permit	Half of the Grant Permit fee	88
6.	For appeal against the order of the State or Regional Authority—		91
	(i) In respect of auto-rickshaw permit	750.00	
	(ii) In respect of transport vehicle	1500.00	
7.	For filling any miscellaneous containing a prayer before the State Transport Appellate Tribunal	20.00 in the form of court-Fee Stamp	91

Sl.No.	Purpose	Amount	Rule
1	2	3	4
7.	For filling any miscellaneous containing a prayer before the State Transport Appellate Tribunal	20.00 in the form of court-Fee Stamp	91
8.	For supply of copies—	20.00 per copy per document in the form of court-fee stamp in addition to the stamp Duty payable	91, 93
9.	For inspection of files	20.00 per hour in addition to court-fee payable	95
10.	For entry of alteration of motor vehicle in the permit	80.00	106
11.	For grant or renewal of agent's licence—		113 115 116
	(i) For grant of licence for principal establishment	1500.00	
	(ii) For grant of supplementary licence of each additional establishment—	1140.00	
	(iii) For renewal of Agents Licence if application is made within time—		
	(a) in respect of licence for principal establishment	1500.00	
	(b) in respect of supplementary licence for each additional establishment	1200.00	
	(iv) For renewal of Agent's licence if application is not made within time—		
	(a) in respect of licence for principal establishment	1800.00	
	(b) in respect of supplementary licence for each additional establishment	1200.00	

Sl.No.	Purpose	Amount	Rule
1	2	3	4
	(v) For issue of duplicate agent's licence—		
	(a) in respect of licence for principal establishment	150.00	
	(b) in respect of supplementary licence for each additional establishment	120.00	
12.	For appeal against the order of Licensing Authority	300.00	122
13.	For copy of document	15.00 per copy in addition to the stamp-duty payable	123
14.	(A) For application for grant or renewal of agent's licence for sale of tickets—	150.00	124
	(B) For grant or renewal of agent's licence for sale of tickets for travel by public service vehicle—		124
	(i) for grant of licence	300.00	
	(ii) for renewal of licence	300.00	
	(iii) for issues of duplicate licence	80.00	
	(C) (i) for issue of badge	150.00	
	(ii) for issues of duplicate badge	300.00]	

CHAPTER VI

Special Provisions Relating to State Transport Undertakings Particulars to be contained in the proposal

126. Form of the Scheme— Every proposal regarding a scheme prepared under Section 99 shall, as far as possible, be published by the State Government in Form SR- 44.

127. Manner of filing objections— (1) Objections under sub-section (1) of Section 100 shall be filed in the form of a memorandum, in triplicate, setting forth concisely the grounds of objections to the proposal.

(2) The memorandum of objections shall be addressed to the Secretary, Transport Department, Uttar Pradesh Shasan, Lucknow.

(3) The memorandum of objections shall also contain the following informations:

- (a) full name and address of the objector on whom services of notices and orders under these rules are to be made;
- (b) whether or not such person is a holder of a permit issued under the provisions of the Act;
- (c) the particulars of the route or routes or the area or areas specified in such permit or permits;
- (d) whether the objector wants to be heard in support of his objection, if so, whether he will appear in person or through his representative.

(4) An objector, if he so desires, may also submit evidence to support his objections in the form of affidavit along with the memorandum of the objection.

128. Manner of consideration and disposal of objections— (1) The objections so received shall be considered and disposed of by such officer of the State Government as may be authorised in this behalf by the Governor under clause (1) of Article 154 of the Constitution or under rules made by him in pursuance of clause (3) of Article 166 of the Constitution.

(2) Such officer shall issue notices to the objectors who desire to be heard and the State Transport Undertaking calling upon them to appear before him in person or through a duly authorised agent or counsel and shall fix the date, time and place for hearing of the objections and the submissions of the State Transport Undertaking.

(3) The notice under sub-rule (2) shall be served by—

- (i) publishing at least ten days before the date fixed for hearing a general notice in not less than one newspaper in regional language circulating in the area or route proposed to be covered by such proposal, giving the date, time and place fixed for the hearing, and
- (ii) sending notice by post under certificate of posting, to the objector at the address as shown in the memorandum of objections and to the State Transport Undertaking:

Provided that where a general notice has been published as aforesaid the service thereof shall, notwithstanding anything contained in clause (ii), be deemed to have been duly affected on the objector and the State Transport Undertaking.

(4) No objector shall be entitled to be heard unless the objections are made in accordance with the provisions of these rules.

(5) (a) Such officer may, if sufficient cause is shown at any stage of the hearing, grant time to the parties or to any of them and may from time to time adjourn the hearing.

(b) In every case such officer shall fix the date for the further hearing of the objections and may make such orders as it thinks fit with respect to the costs occasioned by adjournment.

Provided that such officer shall dispose of the objection within the period of six months from the date of issuance of notices under sub-rule (2).

(6) The cost of producing any evidence shall be borne by party producing the same.

(7) After the hearing of such parties as appear, such officer shall give a decision approving or modifying the proposal as he may deem proper.

129. Publication of the approved scheme— Subject to the provisions of the proviso to sub-section (3) of Section 100, the scheme as approved or modified by such officer shall, as far as possible, be published in the Official Gazette in Form No. SR-45 and in not less than one newspaper in regional language circulating in the area or route proposed to be covered by such approved scheme.

130. Application for issue of permit on behalf of State Transport Undertaking— (1) State Transport Undertaking or an officer duly authorised by it in this behalf may apply in Form SR-46 along with a fee of rupees two hundred, if the application is made before the State Transport Authority or rupees one hundred if the application is made before the Regional Transport Authority for stage carriage permit or a goods carrier permit or a contract carriage permit in respect of notified route or notified area in pursuance of an approved scheme.

(2) Upon receipt of an application under sub-rule (1), the State Transport Authority or the Regional Transport Authority, as the case may be, shall issue a permit to the State Transport Undertaking for the notified route or notified area.

(3) Every permit issued as aforesaid shall be in Form SR-47.

(4) in case any part of the permit is mutilated or lost, duplicate thereof shall be issued by the State Transport Authority or the Regional Transport Authority concerned, as the case maybe, on payment of fee of rupees one hundred for Part 'A' or rupees forty for Part 'B'.

131. Disposal of Articles found in transport vehicles— (1) Where any article is found in any transport vehicle operated by the State Transport Undertaking and it is not claimed by the owner or consignee thereof in the case of any perishable article within twenty-four hours and in the case of any non-perishable article within sixty days from the arrival of such vehicle at the bus station of destination, it may be sold by the State Transport Undertaking by public auction.

(2) In the case of sale of any non-perishable article, publicity of the public auction shall be made at least ten days before the date fixed for auction by a general notice in not less than one newspaper in regional language circulating in the area in which the said bus station of destination is situate. Such general notice shall also be pasted on the notice board of such bus station at least ten days before such auction.

(3) In the case of perishable article, the State Transport Undertaking may dispose of the same at anytime as the circumstances may require but before making sale of such article the date and time of public auction shall be announced on loudspeaker within the premises of the said bus station.

132. Manner of service of order— (1) The State Transport Authority or the Regional Transport Authority, as the case may be, shall cause a copy of every order of cancellation or modification of the terms of any permit, to be published in Official Gazette.

(2) The State Transport Authority or the Regional Transport Authority; as the case maybe, shall also cause to be served such order upon the permit-holder to whom it relates by sending a copy of the same by registered post or delivering it to the permit-holder in person. If such order cannot be served in the manner aforesaid, it may be served by delivering the same to any adult member of his family residing with him or by affixing it on some conspicuous place at his residence or place of business or in such other manner as the State Transport Authority or the Regional Transport Authority, as the case be, thinks fit.

133. Issue of certified copies of proceedings, inspection— (1) Certified copies of the proceedings before the officer referred to in sub-rule (1) of Rule 128 including documents filed and the statements recorded, if any, at the hearing shall be issued under the signature of a Section Officer of the Transport Department of the State Government.

(2) Subject to a minimum of rupees two and paise fifty per copy in the case of an ordinary application and rupees five per copy in the case of urgent application, the charges for giving copies shall be as follows: —

- (i) for ordinary copies fifty paise for every three hundred words or fraction thereof;
 - (ii) for urgent copies rupee one for every three hundred words or fraction thereof.
- (3) The copying charges shall be payable in the form of non-judicial stamps,
 - (4) An urgent copy shall, as far as practicable, be supplied within forty-eight hours of the receipt of the application thereof.
 - (5) Inspection of the documents relating to the proceedings of the hearing of the objections filed under sub-section (1) of Section 100 of the Act shall be allowed on a payment of rupees ten which shall be payable in the form of court-fee stamps.
 - (6) Inspection will be allowed only to the objector concerned or to his duly authorised agent as also the State Transport Undertaking.

CHAPTER VII
Construction, Equipment and Maintenance of Vehicles

134. General— Every public service vehicle, and all parts thereof including paint-work or varnish, doors, windows, seats, roofs, springs, wheels, cushions lining panels and all furnitures and apartments shall be maintained in a clean and sound condition, and the engine mechanism and all working parts in reliable working order.

135. Stability— (1) The stability of a double-decked public service vehicle shall be such that when loaded with weight of 60 kilograms per person placed in the correct relative positions to represent the driver and conductor (if carried) and a full complement of passengers on the upper deck only, if the surface on which the vehicle stands were tilted to either side to an angle of 28 degrees from the horizontal point at which overturning occurs would not be reached.

(2) The stability of a single-decked public service vehicle or single-decked trolley bus, other than a motor-cab, shall be such that under any condition of load, at an allowance of 65 kilograms per passenger and his personal luggage, for which the vehicle is registered, if the surface on which the vehicle stands tilted to either side to an angle of 35 degrees from the horizontal point at which overturning occurs would not be reached.

(3) For the purpose of conducting test of stability the height of any stop, used to prevent a wheel of the vehicle from slipping sideways, shall not be greater than two-thirds of the distance between the surface upon which the vehicle stands before it is tilted, and that part of the rim or that wheel which is then nearest to such surface when the wheel is loaded in accordance with the requirements of this rule.

136. ¹[Seating room— (1) In every public service vehicle other than a motor cab, Maxi cab and tourist vehicle, there shall be provided for each passenger reasonably comfortable cushioned seat of not less than 38 x 38 centimetres measured on straight lines along at right angle to the front of each seat, and

- (i) When the seats are placed along the vehicle, the back of the seats on one side shall be at least 1.40 metres distance from the back of the seats on the other side.
- (ii) When seats are placed across the vehicle and are facing in the same direction there shall be everywhere a clear space of not less than 70 centimetres between the back of the seats; and
- (iii) When seats are placed across the vehicle and are facing each other, there shall be everywhere a clear space of not less than 1.30 metres between the back of facing seats.

(2) The back of all seats shall be to a height of 50 centimetres above seat level.]

²[136-A. The sleeper bus shall conform the following specifications; —

- (i) The interior height of the vehicle shall have minimum of 215 millimetres (mm).

1. Rule 136, 138 and 139 substituted by Notification No.2341/XXX-4-2009-3(13)-2007, dated 21st January, 2010 (Eighth Amendment) Rules, 2010 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 21st January, 2010 (w.e.f. 21-01-2010)

2. New Rule 136-A, inserted by Notification No.249/XXX-4-2014-8(19)-2013, dated 28th February, 2014 (Sixteenth Amendment) Rules, 2014 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 28th February, 2014 (w.e.f. 28-02-2014)

- (ii) The thickness of each sleeper berth shall not be less than 65 mm. and its cover shall be of cotton or equivalent cloth.
- (iii) The width of single upper berth shall not be less than 560 mm. and length not be less than 1750 mm. The minimum width of the divider between two berths shall be minimum 25 mm.
- (iv) There shall be an appropriate arrangement of a ladder for reaching the upper berth, which shall be fixed in such a way that the height of the first step from the floor shall not be more than 300 mm.
- (v) The width of the gangway shall not be less than 600 mm.
- (vi) The area of a seat shall not be less than 458 x 458 mm. and the thickness of cushion fixed on the seat shall not be less than 100 mm.
- (vii) The arrangement of seats shall be in such a way that a sitting passenger shall be facing the front and the leg space shall not be less than 380 mm.
- (viii) The minimum height of the seat from the floor shall be 380 mm. and the headroom shall not be less than 850 mm.
- (ix) The flooring material shall be sound proof, anti skid and washable. The floor shall be safe for the passengers and be covered with rubber or synthetic matting or carpets. All joints shall be dust proof by suitable packing material.
- (x) Roof of the ceiling shall be provided with soft material or equivalent materials like A.B.S. plastics to prevent impact.
- (xi) The engine compartment shall be provided with sound insulating materials so as to damper the engine noise to suitable D.B. label and with vibrating mounting so as to minimize vibration factors in the saloon compartment.
- (xii) The entrance/exit door shall be on the left side of the vehicle and that shall be operated by driver/attendant. The height of the lower step of the ladder shall not be more than 350 mm. and all the steps shall be provided with non-slip treads.
- (xiii) A grab rail shall be fitted to entrance door to assist passengers in boarding or alighting from the Vehicle.
- (xiv) There shall be arrangement of chain or guardrail with the upper berth for safety point of view.
- (xv) Emergency exit door shall be provided at the rear,
- (xvi) Sleeper births and seats shall be provided with fabric cover
- (xvii) Fire extinguisher shall be provided.
- (xviii) First-aid box with necessary medicines shall be provided and it shall be checked every fortnight for its contents and the validity of medicines.

- (xix) Drinking water for the passengers shall be provided.
- (xx) Each sleeper berth and seat shall be provided with fans and bright white as well as blue night bulb inside the vehicle. A reading light shall be fitted in each berth at appropriate place.
- (xxi) Sliding window shall be provided for each sleeper and sitting seats separately.]

137. Notwithstanding anything contained in Rule 135 a registering authority may specify the conditions subject to which a limited number of standing passengers may be permitted to be carried in a vehicle.

138. ¹[Gangways— (1) In every compartment of every public service vehicle other than a motor cab and Maxi cab the entrance to which compartment is from the front or rear there shall be a Gangway along the vehicle, and—

- (i) Where seats are placed along the sides of the vehicles there shall be as gangway a clear space of not less than 61 centimetres measured between the front of the seats;
 - (ii) Where seats are placed across the vehicle there shall be as gang-way a clear space of not less than 31 centimetres between any part of adjoining seats or their supports; and
 - (iii) Where the vehicle has seats not across the full width of the body with one door either in rear or in the near rear side and one seat along the full length of the side of the vehicle, there shall be as gangway with a clear space of not less than 46 centimetres measured between the seats.
- (2) Where the vehicle has seats across the full width of the body with separate doors to each seat, gangway from front to rear of the vehicle shall not be required.]

139. ¹[Limit of seating capacity— Notwithstanding anything contained in these rules no public service vehicle, other than a motor cab and Maxi cab or a tourist vehicle, shall be registered for a number of passengers in excess of that number obtained by subtracting 90 kilograms, from the difference in kilograms between the gross vehicle weight and unladen weight of the vehicle and dividing the resulting figure by 150 in the case of a single decked vehicle and 130 in the case of a double decked or for such number of passengers that, when the vehicle is loaded in normal manner the axle weight of any axle will exceed the registered axle weight for that axle.]

140. First-aid box— Every public service vehicle other than a motor-cab in municipal and corporation area shall carry a fully-equipped first-aid box of design approved by the State Transport Authority along with instructions for the use of the first-aid materials issued by the said authority.

141. Communication with driver— Every motor vehicle for the use of passengers in which the driver's seat is separated from any passenger's compartment by a fixed partition which is not capable of being readily opened, shall be furnished with efficient means to enable the passengers in such compartment and the conductor, if any, to signal to the driver to stop the vehicle,

1. Rule 138 and 139 substituted by Notification No.2341/XXX-4-2009-3(13)-2007, dated 21st January, 2010 (Eighth Amendment) Rules, 2010 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 21st January, 2010 (w.e.f. 21-01-2010)

142. Internal lighting— Every public service vehicle other than a motor-cab or a tourist vehicle having a permanent roof, shall be furnished with one or more electric lights adequate to give reasonable illumination through the passenger's compartment or compartments including the bending, but such light or lights should be of such power or so screened as not to impair the forward vision of the driver.

143. Electric lighting compulsory— No light other than an electric light shall be fitted to any public service vehicle,

144. Spare wheel and tools— (1) Save as otherwise specified by the Regional Transport Authority in respect of municipal or cantonment areas, every public service vehicle shall at all times be equipped with not less than one spare wheel or rim fitted with a pneumatic tyre in good and sound condition ready, inflated and mounted, in such a way that it can be readily dismounted and fitted to the vehicle in the place of any one of the road wheels.

(2) Sub-rule (1) shall not apply to a public service vehicle during the completion of any journey during which it has been necessary to bring the spare wheel or rim and tyre into use.

(3) Every public service vehicle shall at all times be furnished with efficient jack, air pump and other tools necessary to change a wheel or rim and tyre and with the equipment necessary to repair a puncture, one spare bulb for the headlamp, one for the tail-lamp and one extra inner tube in serviceable condition for the tyres.

(4) Where the front wheels of a public service vehicle differ in size from the rear wheels two separate inflated tyres in good condition on rims or wheels shall be carried, one of the size of the front wheels and the other of the size of the rear wheels.

(5) Wherever, owing to the nature of the route, the Regional Transport Authority so directs, additional spare inflated tyres on wheels or rims shall be carried.

145. Fuel tanks— (1) No fuel tank shall be placed in any public service vehicle within sixty centimetres of any entrance or exit of a single-decked vehicle or lower deck of a double-decked vehicle.

(2) The fuel tank of every public service vehicle shall be so placed that no overflow therefrom shall fall upon any woodwork or accumulate where it can be readily ignited. The "off" position of the means of operation shall be clearly marked on the outside of the vehicle. The filling points of all fuel tanks shall be outside the body of the vehicle, and the filler caps shall be so designed and constructed that they can be securely fixed in position.

146. Carburettors— In every public service vehicle any carburettor and apparatus associated therewith shall be so placed and shielded that no fuel leaking therefrom shall fall upon any part of fitting that is capable of igniting it or into any receptacle where it might accumulate.

147. Excessive heat— Effective means shall be adopted for preventing the heat of the motor generator or exhaust-pipe and its connections from injuriously affecting any part of the vehicle or causing discomfort to the passengers.

148. Inflammable fitting— No celluloid or other highly-inflammable material shall be used inside or outside any public service vehicle, except in electric batteries and accumulators.

149. Electric wires— All electric wires or leads shall be adequately insulated.

150. Fire extinguishers— Every public service vehicle other than a motor- cab shall be equipped with one or more fire extinguishers of such types and capacity, as may be specified by the State Transport Authority and such fire extinguishers shall at all times be maintained in working condition.

151. Mudguards— Every motor vehicle except a tractor-trailer shall, unless adequate protection is afforded by the body of a motor vehicle, be provided with mudguards or other similar fittings to catch so far as practicable mud or water thrown up by rotation of the wheels.

152. ¹[Head room— Every public service vehicle other than a motor cab, and Maxi cab shall have the following internal height or headroom measured along the centre of the vehicle from the top of the floor boards or battens to the underside of the roof supports—

- (i) in the case of the single decked vehicle not less than 1.75 metres and not more than 2.00 metres; or
- (ii) in the case of double decked vehicle, the registering authority concerned will decide the headroom:

Provided that the registering authority may vary the above measurements in respect of any public service vehicle plying solely in any special municipal or cantonment area and the environs thereof.]

153. Driver's seat— (a) On every public service vehicle space shall be reserved for the driver's seat such as to allow him to have full and unimpeded control of the vehicle and in particular—

- (i) the part of the seat against which the driver's back rests shall not be less than 35 centimetres from the nearest point of the steering- wheel;
- (ii) the width across the vehicle shall not be less than 70 centimetres and shall extend to the left of the centre of the steering-column in no case less than 25 centimetres so that a line drawn parallel to the axis of the vehicle through the centre of any gear lever, brake lever or other device to which the driver has to have frequent access lies not less than 6.5 centimetres inside width reserved for the driver's seat; and
- (iii) in the case of a public service vehicle, other than a motor-cab or a tourist vehicle the space reserved in accordance with clause (ii) above shall at the left-hand end be enclosed with a tight wooden or other suitable partition to a height not less than 31 centimetres above the seat, and forward of the seat, above the floor of the vehicle:

Provided that any authority empowered in this behalf by the State Government may order relaxation of the provisions of this sub-rule.

(b) Arm rests for the driver not more than 10 centimetres wide maybe provided within the space specified in clause (ii) of sub-rule (a).

1. Rule 152 substituted by Notification No.2341/XXX-4-2009-3(13)-2007, dated 21st January, 2010 (Eighth Amendment) Rules, 2010 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 21st January, 2010 (w.e.f. 21-01-2010)

(c) No public service vehicle shall be so constructed that any person may sit or any luggage may be carried on the right-hand side of the driver.

(d) Every public service vehicle shall be so constructed that, save for the front pillar of the body, the driver shall have a clear vision both to the front and through an angle of 90 degrees to his right-hand side. The front pillar of the body shall be so constructed as to obstruct the vision of the driver to the least possible extent.

154. ¹[Width of doors— Every entrance and exit of a public service vehicle other than a motor cab and Maxi cab or a tourist vehicle, shall be at least 55 centimetres in width and of sufficient height.]

155. Grab-rail— A grab-rail shall be fitted to every entrance or exit, other than an emergency exit of a public service vehicle and other than a motor-cab or a tourist vehicle, to assist passengers in boarding or alighting from the vehicle.

156. ²[Steps— (a) In every public service vehicle, other than a motor cab, maxi cab or a tourist vehicle, the top of tread of the lowest step for any entrance or exit, other than emergency exit, shall not be more than 45 centimetres or less than 25 centimetres above the ground when the vehicle is empty. All steps shall be fitted with non-slip treads. Fixed steps shall not be less than 25 centimetres wide and shall in no case project laterally beyond body of the vehicle unless they are so protected by the front wings (or otherwise) that they are not liable to injure pedestrians.

(b) In the case of a double decked vehicle—

- (i) The risers of all steps leading from the lower to the upper deck shall be closed, and no unguarded aperture shall be left at the top landing board;
- (ii) all steps leading from the lower to the upper deck shall be fitted with non-slip treads;
- (iii) The horizontal distance from the nearest point of the riser of top step to the vertical line passing through the nearest point of the seat opposite to the top tread of the stair case excluding any grab rail which does not project more than 8 centimetres from the back of the seat, shall not be less than 65 centimetres;
- (iv) The outer stringer of an outside staircase shall be so constructed or a band shall be so placed, as to act as a screen to persons ascending or descending and the height of the outer to guard rail shall not be less than 1.0 metre above the front of the tread of each step.]

157. Carriage of luggage— Every public service vehicle shall be provided with adequate means for the conveyance of a reasonable amount of luggage and with sufficient number of chains, straps or other means of securing such luggage. No luggage shall be carried on the roof of the vehicle unless there has been affixed thereto a guard-rail of a type approved by the registering authority and a suitable waterproof covering is provided to protect the luggage in wet weather. The covering shall be securely fastened so as to prevent flapping.

1. Rule 154 substituted by Notification No.2341/XXX-4-2009-3(13)-2007, dated 21st January, 2010 (Eighth Amendment) Rules, 2010 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 21st January, 2010 (w.e.f. 21-01-2010)

2. Rule 156 substituted by Notification No.2341/XXX-4-2009-3(13)-2007, dated 21st January, 2010 (Eighth Amendment) Rules, 2010 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 21st January, 2010 (w.e.f. 21-01-2010)

158. Cushions— Where the seats of a public service vehicle are provided with fixed or movable cushions, the cushions shall be stuffed with suitable material and covered with leather or cloth of good quality or other suitable material capable of being kept in clean and sanitary condition,

159. Body dimensions and guard-rails— (1) Every public service vehicle, other than a motor-cab or a tourist vehicle, shall be so constructed that its body dimensions and guard-rails conform to the following specifications:

- (i) In the case of single-decked vehicle with an enclosed body—
 - (a) The height of the body sides from the floor or the height to the sills of the windows, as the case may be, shall not be less than 70 centimetres;
 - (b) if the height of the sides of the body or the sills of the windows, as the case may be, above the highest part of any seat, is less than 45 centimetres provision is made by means of guard-rails or otherwise to prevent the arms of seated passengers being thrust through and being injured by passing vehicles or the extent to which the side windows or Venetians can be lowered is such that when lowered their top edge is not less than 45 centimetres above the highest part of any seat;
- (ii) in the case of a single-decked vehicle with open sides, guard-rails shall be provided along the right-hand side of the vehicle to prevent any person other than the driver from mounting or alighting from the vehicle on that side;
- (iii) in the case of a double-decked vehicle with an uncovered top deck, the top deck shall be provided with side and end rails the top of which shall be at least 90 centimetres above the deck boards or battens at the sides and 46 centimetres above the highest part of any seat and the top of the front and back rails shall be at least 1.00 metre above the deck boards or battens and shall follow the chamber of the deck.

(2) For the purpose of this rule the seat-back shall not be deemed to be a part of the seat.

160. Protection of passengers from weather— (1) Every public service vehicle shall be either constructed with a fixed and watertight roof or equipped with a watertight hood that may be raised or lowered as required.

(2) Save in the case of the uncovered top deck of a double-decked vehicle, every public service vehicle shall have suitable windows, Venetians or screens capable at all times of protecting the passengers from the weather without preventing adequate ventilation of the vehicle. When the screens are made of fabrics the whole of them shall at all times be fastened securely to the vehicle.

(3) When glass windows or Venetians are used, they must be provided with effective means to prevent their rattling.

161. Floor-boards— (1) The floor-boards of every public service vehicle shall be strong and closely fitted so as to exclude as far as possible draughts and dust.

(2) The floor-boards may be pierced for the purpose of drainage but for no other purpose.

¹[162. **Painting of Motor Vehicles**— (1) Subject to Rule 110 and sub-rule (2) a motor vehicle having four-wheel drive such as jeep and commander cars which originally belonged to the military shall be painted in any of the following colours –

- (a) White;
- (b) Black;
- (c) Green;

(2) Every three wheeled vehicle permitted to ply exclusively within city area, shall be painted in black colour with a yellow hood and no other motor car shall be painted in this colour combination:

Provided that CNG operated three wheeled vehicle shall be painted in green colour:

Provided further that all electric three wheelers shall be painted in white colour:

Provided also that all three wheeled vehicles operated by and for ladies exclusively shall be painted in pink colour:

Provided also that this sub-rule shall not apply to the motor cabs specified in rule 85-A of the Central Motor Vehicles Rules, 1989

(3) Contract carriages other than those specified in sub-rule (2) shall be painted in any colour with following conditions: -

- (a) In case of bus/mini bus there shall be sky blue fluorescent horizontal ribbon of thirty-five centimetres width on the hood and exterior of body.
- (b) At centre of the ribbon strip on exterior of the body, the words—contract carriage¹ shall be exhibited within a circle of sixty centimetres diameter in black colour.
- (c) Ribbon shall be exhibited thirty centimetres below the window of vehicle.
- (d) In case of maxi/taxi cab, there shall be sky blue fluorescent horizontal ribbon of twenty centimetres width on the hood and exterior of body.
- (e) At the centre of the ribbon strip on exterior of the body, the word —taxi shall be exhibited within a circle of twenty-five centimetres diameter in black colour.
- (f) Ribbon shall be exhibited fifteen centimetres below the window of vehicle.
- (g) In case of bike taxi only word "b/taxi" shall be exhibited in white colour within circle of twenty centimetres on both sides of taxi;

Provided that vehicles used for carrying school children exclusively shall be painted in yellow colour.

1. Rule 162 substituted by Notification No.5/2019/135/XXX-4-2019-20(sa)/2018, dated 28th February, 2019 (Twenty Fifth Amendment) Rules, 2019 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 28th February, 2019 (w.e.f. 28-02-2019)

(4) No Motor vehicle other than a military motor vehicle shall be used at any public place unless it is painted in any colour different from those usually used for military motor vehicles.]

163. Sounds signals: Restriction on use of— (1) No driver of a motor vehicle shall sound the horn or other device for giving audible warning with which the motor vehicle is equipped or shall cause or allow any other person to do so, needlessly or continuously or to an extent beyond that which is reasonably necessary to ensure safety.

(2) The District Magistrate may, by notification in one or more newspapers in the said city or district, as the case may be, and by erection in suitable places of mandatory sign No. M-18, as set forth in Part 'A' of the First Schedule to the Act, prohibit the use by drivers of motor vehicles of any horn, gong or other device for giving audible warning in any area within the city or district and during such hours as may be specified in the notification:

Provided that when the District Magistrate prohibits the use of any horn, gong or other device for giving audible warning during certain specified hours, he shall cause a suitable notice, in English and in the script of the city or district, setting forth the hours within which such use is so prohibited, to be affixed below the traffic sign.

164. Dangerous projections— (1) No mascot or other similar fitting or device shall be carried by any motor vehicle registered under the Act, in any position where it is likely to strike any person with whom the vehicle may collide unless the mascot is unlikely to cause injury to any person by reason of any projection thereon.

(2) No motor vehicle shall be permitted to be used which is so constructed that any axle hub or hub-cap projects laterally more than 10 centimetres beyond the rim of the wheel to which it is attached, unless the hub or hub-cap is adequately guarded either by the body or wing of the vehicle or a separate guard.

165. Construction and equipment of auto-rickshaws— (1) Notwithstanding anything contained in these rules auto-rickshaw shall be constructed and equipped in accordance with the following provisions:

- (a) Every auto-rickshaw body on a scooter shall be built on the latest model vehicle or on such vehicle as has been registered not more than 4 years back.
- (b) Type of body and material, —
 - (i) The body of every auto-rickshaw shall be either of a station- wagon or a box-type or hackney-carriage type as approved by the State Transport Authority soundly constructed for the satisfaction of the registering authority and shall be securely fastened to the frame of the vehicle. The material used in the construction shall be strong and of good quality.
 - (ii) The roof shall be so constructed as to provide protection to passengers from sun and rain and shall be either of metal sheeting or canvas or some other suitable material.
 - (iii) In every auto-rickshaw the right side should either be blocked by a fixed door up to waist level of the passenger in sitting position or provided with two metal rods one below the other leaving in between a gap of 15 centimetres so that the lower one should be at the level of the hip of the passenger and that both the rods should

be welded to the frame at both the ends.

- (c) *Overhang*. — The overhang of the body shall not exceed forty-one per cent of the distance between the plane perpendicular to the axis of the auto-rickshaw which passes through the centre of the front wheel and the centre of the rear axle.
- (d) *Overall width*. — The overall width measured at right angles to the axis of the planes enclosing the extreme points shall be not more than 1.42 metres and not less than 1.36 metres,
- (e) *Overall height*. — The overall height measured from the surface on which auto-rickshaw stands shall not exceed 1.83 metres; and there shall be at least 1.22 metres clear head-space between floor-board and the roof.
- (f) *Road clearance*. — The road clearance of every auto-rickshaw shall be not more than 20.5 centimetres and not less than 10.2 centimetres.
- (g) *Clearance of floor-board*. — The floor-board shall be not more than 56 centimetres above the surface on which the auto-rickshaw stands.
- (h) *Light*. — Every auto-rickshaw shall be fitted with one head and two side white lights or two headlights on the body in the front in addition to the front lights and auto-rickshaw shall be fitted with rear lamp showing to the rear a red light visible from a distance of 152.40 metres and illuminating with white light the registration mark exhibited on the rear of the vehicle so as to render it legible from a distance of 15.24 metres and also 2 cat's eye reflectors on the rear mudguards so as to warn the vehicular traffic approaching from behind that there is an auto-rickshaw ahead. If no mudguards are used, cat's eye reflectors in the rear will be optional.
- (i) *Driver's seat*. — The back of the driver's seat should have at least 10 centimetres of clearance from the front panel of the body. A windscreen shall be provided for the driver.
- (j) *Seat*. — (i) There shall be provided a single seat not more than 1.15 metres and not less than 91.5 centimetres in length. The depth of the seat shall not be less than 40.5 centimetres.
 - (ii) The back of the seat shall be slanting and closed to a height of at least 48 centimetres above the level of the seat.
 - (iii) The seats shall be provided with fixed or movable cushions. The cushions shall be covered with leather cloth of good quality or other material of such kind that they are capable of being kept in clean and sanitary condition.
 - (iv) The height of the seat from the floor shall be not less than 35.6 centimetres including cushions.
- (k) *Leg space*. — In three passengers auto-rickshaws, there shall be provided at least 38 centimetres leg space.
- (l) *Horn*. — Every auto-rickshaw shall be fitted with a bulb horn.

¹[165-A. Specifications of Maxi Cab authorized to ply as stage carriage— The

specification of Maxi Cab authorized to ply as stage carriage shall be such as are prescribed by the Transport Commissioner, Uttar Pradesh keeping in view passenger safety comfort and convenience.]

166. Speed— No person shall drive an auto-rickshaw or cause or allow an auto-rickshaw having three seats excluding driver's seat to be driven in any public place at a speed exceeding 40 kilometres per hour.

²**[166-A. Taxi Meters**— (1) A taximeter shall be duly approved, tested and scaled by the Controller, Weights and Measurements, Government of Uttar Pradesh or an Inspector (Weights and Measurements) duly authorized by the Controller, Weights and Measures, Government of Uttar Pradesh.

(2) A permit holder who is required to fit a taximeter shall produce the vehicle under sub-rule (1) fitted with taximeter approved tested and sealed as per provisions of Standards of Weights and Measures Act, 1976, Standards of Weights and Measures (General) Rules, 1987 and Standards of Weights and Measures (Enforcement) Act, 1985 and /or other relevant Acts /Rules.

(3) A permit holder shall furnish a certificate issued by the Inspector of Weight and Measures, Government of Uttar Pradesh to the effect that the taximeter has been verified for the purpose of sub-rule (2).

(4) No person shall drive or cause or permit to be driven any motor cab fitted with taximeter, if the taximeter is not attached to the vehicle and sealed or if knows or has reasons to believe that it is not accurate or is not in proper working order.

(5) No taximeter, which is in any way defective shall be fitted to any motor cab and no motor cab which is in any way fitted with a defective taximeter shall be plied in any public place.

(6) Upon service of a notice of by an Inspector of Weights and Measures, the owner of any motor cab prohibiting the use of the taximeter shall at once remove taximeter from his motor cab immediately withdraw from the service unless its defects are removed and verified by the Inspector.

(7) The driver of every motor cab fitted with a taximeter shall not set it in motion before it is hired and shall immediately stop when the hirer has noted the reading and fare charges are paid.

(8) A motor cab shall be considered to be hired from the time it has been engaged or if called from a distance, from the point of such call.

(9) If the driver of any motor cab fitted with a taximeter which is hired by any person is unable to proceed owing to any defect in the mechanism of the meter there of he shall at once lower the flag to "stopped" or "breakdown" and shall not restart his meter until such time as the defect is removed,

1. New Rule 165-A inserted by Notification No.2341/XXX-4-2009-3(13)-2007, dated 21st January, 2010 (Eighth Amendment) Rules, 2010 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 21st January, 2010 (w.e.f. 21-01-2010)

2. New Rule 166-A inserted by Notification No.1513/XXX-4-2013-88-99, dated 31st October, 2013 (Fifteenth Amendment) Rules, 2013 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 31st October, 2013 (w.e.f. 31-10-2013)

(10) No driver shall cover or obscure the face of a taximeter under any

circumstances or at any time.

(11) No driver shall without reasonable excuse refuse to let the cab for hire when the flag is in a vertical position.

(12) Method of calculating hire etc.

- (a) every mechanical or electronic digital meter shall be so constructed as—
 - (i) to indicate upon the dial in suitable slots or on a suitable digital display consisting of Light Emitting Diodes (LEDs) as the case may be, the amount of fare calculated by time or by distance in kilometres; and
 - (ii) to have a flag showing by its position or to have window with illuminated words showing whether or not the meter is in action (*i.e.*, "Hired" or "For Hire" or "Stopped");
- (b) information to be given in slots of a mechanical meter or on digital display of an electronic digital meter. The nature of the information given in each slot of a mechanical meter, or a digital display of an electronic meter, shall be indicated by suitable working immediately above or below the slot or digital display, as the case may be. The words or signs denoting rupee or rupees and paise shall be placed immediately above, below, or beside the appropriate disc or drum positions;
- (c) if it is an electronic digital meter, it shall be provided with two switches "Meter Switch" and "Stop Switch" for operating the meter and shall also be provided with a "Roof Light" synchronized with the operation of the meter;
- (d) the mechanism of an electronic digital meter shall be so designed that—
 - (i) the "For Hire" window is illuminated when the Roof Light is "On";
 - (ii) the "Hired" window is illuminated and the Roof Light is turned "Off" when the meter switch is pressed "On";
 - (iii) the "Stopped" window is illuminated when the "Stopped Switch" is pressed "On";
 - (iv) it shall not be possible to set the meter in any position other than the three positions mentioned in clause (i) to (iii) above;
 - (v) the fare by time ceases to be recorded when the meter is in the "Stopped" position;
 - (vi) the fare by distance is recorded off the meter if the motor cab is driven with the meter in "Stopped" position;
 - (vii) the fare recorded is not obscured when the meter is in the "Hired" or "Stopped" position;
 - (viii) when the "meter switch" is turned off, the "For Hire" window is illuminated, the "Roof light" is turned on and the previous record of fare is cleared and the various mechanisms of the meter are brought back to the initial positions;
 - (ix) the mechanism for recording time and distance cannot be engaged or disengaged except by the normal sequence of operation of the switched referred to in clauses (i) to (viii);
- (e) in case of mechanical meter, the mechanism driving wheels of the chassis gear box attached to the cab.]

167. Inspection of motor vehicles— (1) Notwithstanding the renewal of registration of motor vehicles, other than the transport vehicle, if the registering authority has reason to believe that owing to the mechanical defects, any such vehicle is in such condition that its use in a public place constitutes a danger to the public, or that it fails to comply with the requirements of Chapter VII of the Act or of the rules made there under, he may cause such vehicle to be inspected by an officer authorised by him and after giving the owner opportunity of making any representation as required under sub-section (1) of Section 53, suspend the certificate of registration of the vehicle under the said section till such time as the vehicle is produced for inspection duly repaired.

(2) A fee for every such inspection shall be as prescribed at serial "4" of Rule 81 of the Central Rules and the same shall accompany the application referred to in sub-section (8) of Section 41 of the Act,

(3) Such fee shall be payable in advance and shall not be refunded.

168. Mirror— Every motor vehicle other than transport vehicle or a motorcycle having not more than two wheels and to which a side-car is not attached, shall be fitted, either internally or externally and every transport vehicle shall be fitted externally with a mirror so placed that the driver shall be able to have a clear and distinct vision of vehicles approaching from the rear.

169. Trailers prohibited with motor-cycles and invalid carriages— (1) A motor-cycle with not more than two wheels with or without side-car shall not draw a trailer.

(2) No invalid carriage shall draw a trailer.

170. Prohibition of attachment of trailer to certain vehicles— (1) No motor vehicle shall be driven in any place with more than three trailers attached to it.

(2) The State Transport Authority may, by general or special resolution containing reasons there for and subject to such conditions, as may be specified therein, prohibit or restrict the attachment of trailers or any particular type of trailers generally on any specified route or area, to any motor vehicle or class of motor vehicles.

(3) No motor vehicle, which exceeds 7.95 metres in length, shall draw a trailer:

Provided that this rule shall not apply to any disabled motor vehicle being towed in consequence of disablement.

(4) No motor vehicle or train made of a motor vehicle with one or more trailers attached shall be driven in any public place if such motor vehicle or train exceeds 22.85 metres in length.

(5) No trailer shall be attached to or drawn by any motor vehicle in any public place if the laden weight of the trailers exceeds the limits given below:

(i) Trailers fitted with pneumatic tyres on all wheels: 8.982 kilograms.

(ii) Trailers fitted with other than pneumatic tyres on all wheels: 3.982 kilograms.

171. Trailers fitted with tractors— No tractor shall draw on a public road, a trailer exceeding half a ton in weight unladen and fitted with solid steel wheels less than 60 centimetres in diameter.

172. Locally manufactured trailers: Specification and design of— (1) No trailer manufactured in India and intended to be used as a transport vehicle shall be registered unless its design has been approved by the Transport Commissioner in accordance with the

provisions of the following sub-rules:

Provided that where the Transport Commissioner has specified standard designs for such trailers under sub-rule (4) it would not be necessary to obtain such approval, if the trailer has been manufactured according to any of these standard designs.

(2) (a) The application for the approval of the design of a trailer, not manufactured according to any of the standard designs laid down in sub-rule (4), shall be made to the Transport Commissioner in triplicate. The application shall be accompanied by a fee of Rupees 500 in cash (which shall not be refundable) and three copies of the following documents, namely—

- (i) full specification,
 - (ii) drawing giving all dimensions and details, and
 - (iii) set of design calculations of: axles, springs, long bearers, cross- bearers, platform tank or anything that may be carried on the cross- bearers, two bars, turntable or any other scribing device for the front axle, in case of two axle trailers, braking arrangements, and any other items such as shock absorbers if included, chassis, etc.
- (b) On receipt of the application the Transport Commissioner shall forward it, with the copies of documents enclosed thereto, to such authority as he may think proper for verification and recommendation of the maximum laden and axle weights in respect of the trailer which are compatible with reasonable safety.
- (c) The authority referred to in clause (b) shall then go through the design and calculations and if the design is found satisfactory by it, certify what would be in its opinion the maximum laden and axle weights of the trailer which are compatible with reasonable safety.
- (d) When design is found satisfactory by the authority, it shall return two copies of the approved design, specifications and calculations with its recommendations as to the maximum laden and axle weight, compatible with reasonable safety, to the Transport Commissioner. The Transport Commissioner may then approve the design, and forward his proposals to the State Government for the issue of a notification under sub-section (1) of Section 58 of the Act.
- (e) The applicant on approval of his design, shall, if he wants to manufacture the trailer for the trade, supply the Transport Commissioner with as many extra copies of the approved type of the design, specification and calculations as may be required by him sending them to different registering authorities for their record.

(3) The application for registration of a trailer not manufactured according to any of the standard designs published under sub-rule (4) shall be accompanied by an attested copy of the letter of Transport Commissioner by which its design has been approved by him under sub-rule (2).

(4) The Transport Commissioner may, by notification published in the Official Gazette, lay down standard design, specifications, and calculations in respect of all or any particular type of trailer or trailers.

(5) The registering authority may refuse to register a trailer if its design has not been approved by the Transport Commissioner under sub-rule (2) or if, in his opinion, the trailer has not been constructed in accordance with the standard specifications, drawings and designs laid down in sub-rule (4), where registering authority refuses to register any trailer under this sub-rule, he shall furnish the applicant with the reasons in writing for such refusal.

(6) Nothing in the foregoing sub-rule shall apply to a trailer, the design whereof has already been approved by a competent authority in any other State:

Provided that the concerning State provides similar facilities to the manufacturer of a design approved by the competent authority of the State of Uttar Pradesh and that the manufacturer or his authorised assembler shall send to the Transport Commissioner/ in duplicate, the documents referred to in sub-rule (1) together with certificate of other evidence of approval of the design in such other State.

173. Attendants on Trailers—(1) When a trailer is or trailers are being drawn by a motor vehicle, there shall be carried in the trailer or trailers or on the drawing motor vehicle, as the case may be, the following persons, not being less than twenty years of age and competent to discharge their duties, that is to say—

- (a) if the brakes of the trailer or trailers cannot be operated by the driver of the driving motor vehicle or by some other person carried on that vehicle—
 - (i) one person on every trailer competent to apply the brake; and
 - (ii) one person placed at or near the rear of the last trailer in train in such a position as to be able to have a clear view of the road in rear of the trailer, to signal to the drivers of overtaking vehicles and to communicate with the driver of the drawing motor vehicle.
- (b) if the brakes of the trailer can be operated by the driver of the drawing motor vehicle or by some other person carried on that vehicle, such other person in addition to the driver shall be carried on that vehicle and one person on the last trailer in train in accordance with the provisions of sub-clause (ii) of clause (a).
- (c) if the trailer is or trailers are being drawn by a locomotive, notwithstanding that the brakes of the trailer or trailers can be operated by the driver or some other person on the locomotive not less than one person on each trailer and not less than two persons on the last trailer in train, one of whom shall be the person required by, the provisions of sub-clause (ii) of clause (a).

(2) This rule shall not apply—

- (a) to any trailer having not more than two wheels and not exceeding 770 kilograms in weight laden when used singly and not in a train with other trailers;
- (b) to the trailing half of an articulated vehicle;
- (c) to any trailer used solely for carrying water for the purposes of the drawing vehicle when used singly and not in a train with other trailers;
- (d) to any agricultural or road-making or a road-repairing or road- cleaning implement drawn by a motor vehicle; or

- (e) to any trailer specially constructed or adapted for any purpose upon which an attendant cannot safely be carried;
- (f) to any closed trailer specially constructed for any purpose and specifically exempted from any or all of the provisions of this rule by an order in writing made by the registering authority to the extent so exempted.

174. Distinguishing mark for trailers and for vehicles drawing them— (1) No person shall drive, or offer or cause to be driven, in any public place any motor vehicle to which a trailer is or trailers are attached unless there is exhibited on the front of the vehicle drawing the trailer or train of trailers and also on the back of the trailer of the last trailer in a train, as the case may be, distinguishing marks in the form set out in the diagram contained in the Second Schedule in white on a black ground.

(2) The marks shall be kept clean and unobscured and shall be so fixed to the trailer or the drawing vehicle that—

- (a) the letter on the mark is vertical and easily distinguishable from the rear of the trailer and from the front of the drawing vehicle.
- (b) the mark is either on the centre or to the right-hand side of the back of the trailer and on the centre of the front of the drawing vehicle outside the driver's cab and above the windscreen; and
- (c) in case of trailer no part there of is at a height exceeding 1.22 metres from the ground.

(3) This rule shall not apply to the cases referred to in clauses (a), (b), (c), (d) and (f) of sub-rule (2) of Rule 173.

175. Goods carriage: Drawing of trailer or semi-trailer by— The holder of a goods carriage permit may use the vehicle for the drawing of any trailer or semi-trailer not owned by him, subject, to the condition that such goods carriage and the trailer or semi-trailer fulfils the requirements of these rules.

CHAPTER VIII

Control of Traffic

176. Competition and Exhibitions— No person shall either take part in or promote, organise, manage or bet in any public place any competition or display of motor vehicles without the previous sanction of the Chairman of the Regional Transport Authority.

177. Designation of main roads— With reference to clause (b) of sub-section (1) of Section 116 and subject to the general control of the State Transport Authority, Regional Transport Authority shall have the power to designate any road within its jurisdiction as a main road.

178. ¹[Restrictions on the use and the speed of motor vehicles— A Superintendent of Police within a Municipal Corporation, Municipality or Nagar Panchayat and a Registering Authority in other areas within their respective jurisdiction may make such orders as they think fit restricting the speed of or restricting or prohibiting the use of motor vehicles, generally or any particular class or classes of motor vehicles in any area or on any road. Such orders shall be published by notification in the official Gazette and also by means of notice boards at or near the place of road to which they apply.]

179. Traffic signs: Erection of— (1) The District Magistrate or the registering authority may, in any public place cause signboards or notice-boards in such script as may be appropriate to be exhibited or marks to be made on the surface of the road, for the purpose of regulating motor vehicle traffic.

(2) The signs or notice-boards, which may be erected under sub-rule (i) may include signs of the designs shown in the First Schedule of the Act.

(3) No person shall alter, deface, remove or otherwise interfere with any mark, sign or notice made or erected by a competent authority under the provisions of this rule.

180. Vehicle abandoned on the road— (1) If any other vehicle is allowed to stand in any place other than a duly specified parking place in such a way as to cause obstruction to traffic or danger to any person, any police officer in uniform not below the rank of a Sub-Inspector or any officer of the Transport Department mentioned in sub-rule (1) of Rule 227, may: —

- (i) forthwith cause the vehicle to be moved under its own power or otherwise cause the vehicle to be taken to the nearest place where the vehicle will not cause undue obstruction or danger;
- (ii) until it is moved to a position where it will not cause obstruction or danger, take all reasonable precautions to indicate the presence of the vehicle; and
- (iii) if the vehicle has been stationary in one place for a continuous period of twenty-four hours and adequate steps have not been taken for its repair or removal by the owner or his representative, remove the vehicle and its contents to the nearest place of safe custody.

1. Rule 178 substituted by Notification No.1994/XXX-4-2009-67-89-TC, dated 9th November, 2009 (Seventh Amendment) Rules, 2009 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 9th November, 2009 (w.e.f. 09-11-2009)

(2) If a motor vehicle has been stationary in a duly specified parking place for a period exceeding that fixed by competent authority in respect of the said place, or if no such period has been fixed for a period exceeding six hours, any police officer in uniform not below the rank of a Sub-Inspector or the officer of the Transport Department mentioned in sub-rule (1) of Rule 227 may remove the vehicle to the nearest place of safe custody.

(3) Notwithstanding any fine or penalty which may be imposed upon any person upon conviction for the contravention of the provisions of Section 122 or of any regulation made by a competent authority in relation to the use of duly specified parking place, the owner of the motor vehicle or his heir or assignee shall be liable to make good any expense incurred by any police officer not below the rank of a Sub-Inspector or any officer of Transport Department mentioned in sub-rule (1) or Rule 227 in connection with the moving; lighting, watching or removal of a vehicle or its contents in accordance with sub-rules (1) and (2); and any police officer or any person in to whose custody the vehicle has been entrusted by any police officer in uniform not below the rank of a Sub-Inspector or any officer of the Transport Department mentioned in sub- rule (1) of Rule 227 shall be entitled to detain the vehicle until he has received payment accordingly and shall upon receiving such payment give a receipt to the person making the payment.

181. Weighing device: Installation and use of— (1) A weighing device for the purpose of Section 114 may be—

- (i) weigh-bridge installed and maintained at any place by or under the orders of the State Government or a local authority; or
- (ii) weigh-bridge installed and maintained by any person and certified by the registering authority, to be a weighing device for the purpose of the Act and these rules; or
- (iii) a portable wheel-weigher of any kind approved by the State Government.

(2) The driver of any goods carriage shall upon demand by any officer of the Transport Department mentioned in sub-rule (1) of Rule 227 or a registering authority, so drive and manipulate the vehicle as to place it or any wheel or wheels thereof, as the case may be, upon any weigh-bridge or wheel-weighers in such a manner that the weight of the vehicle or the weight transmitted by any wheel or wheels may be exhibited by the weigh-bridge or wheel weigher.

(3) If the driver of a motor vehicle fails with in a reasonable time to comply with requisition under sub-rule (2) a person authorised under Section 114 may cause any person, being the holder of driving licence authorizing him to drive such vehicles to drive and manipulate the vehicle.

(4) When the weight or axle-weight of a motor vehicle is determined by separate and independent determined of the weight transmitted by any wheel or wheels of the vehicle the axle-weight and the laden weight of the vehicle shall be deemed to be the sum of the weights transmitted by the wheels of any axle or by all the wheels of the vehicle, as the case may be.

(5) Upon weightment of a vehicle in accordance with the Section 114 and this rule, the person who has required the weightment or the person in-charge of the weighing device shall deliver to the driver or other person in-charge of the vehicle a statement in writing of the weight of the vehicle and of any axle, the weight of which is separately determined.

(6) The driver or the person in-charge of, or owner of a vehicle which has been so weighed may challenge the accuracy of the weighing device, by a statement in writing delivered—

- (i) Within one hour of the receipt of the statement referred to in sub-rule (5) to the person by whom the statement was delivered to him and followed by a deposit of rupees twenty in the office of the Regional Transport Officer or Assistant Regional Transport Officer, as the case may be, within three days of the date of weighing, failing which the statement challenging the accuracy of the machine shall not be maintainable; or
- (ii) within fourteen days of the service on him of notice of proceedings against him under Section 86 or Section 113 to the authority or Court issuing such notice.

(7) Upon receipt of statement challenging the accuracy of a weighing device under sub-rule (6), the person or authority or the Court, by whom the statement is received after ensuring that the deposit of rupees twenty has been made, shall apply to the District Magistrate for the weighing device to be tested by such person as the District Magistrate may appoint and the certificate of such person, as may be so appointed, regarding the accuracy of the weighing device shall be final.

(8) If, upon the testing of a weighing device as aforesaid the weighing device is certified to be inaccurate to an extent greater than any weight by which the gross vehicle weight or unladen weight or any axle weight of the vehicle is shown in the statement referred to in sub-rule (5) to have exceeded the gross vehicle weight or the registered unladen weight or the registered axle weight, as the case maybe, no further proceedings shall be taken in respect of any gross vehicle weight or unladen weight or axle weight and if the device is certified to be inaccurate to the said extent in respect of every such gross vehicle weight, unladen weight, axle weight actually weighed, the deposit prescribed in sub-rule (6) shall be refunded.

(9) No person shall, by reason of having challenged the accuracy of any weighing device under sub-rule (6), be entitled to refuse to comply with any order in weighing under Section 113.

182. Prohibition of mounting or taking hold of vehicle in motion— (1) No person shall mount or attempt to mount on, or dismount from, any motor vehicle, when the motor vehicle is in motion.

(2) No person shall take hold of and no driver of a motor vehicle shall cause or allow any person to take hold of any motor vehicle when in motion for the purpose of being towed or drawn upon some other wheeled vehicle or otherwise.

183. Footpath, cycle tracks and traffic segregation— Where any road or street is provided with footpath or tracks reserved for cycles or specified classes of other traffic, no person shall, save with the sanction of a police officer in uniform not below the rank of a Sub-Inspector or the registering authority drive any motor vehicle or cause or allow any motor vehicle to be driven on any such footpath or track.

184. Dangerous substances: Restrictions as a carriage of— (1) Except for the fuel and lubricants necessary for the use of the vehicle which will be carried in a manner as not to cause danger or accidental ignition, no explosive, highly inflammable or other wise dangerous substance shall be carried on any public service vehicle unless it is so racked that even in the case of an accident to the vehicle it is unlikely to cause damage or injury to the vehicle or persons carried thereon.

(2) If, in the opinion of the officer of the Transport Department mentioned in sub-rule (1) of Rule 227 or a police officer in uniform not below the rank of Sub- Inspector any public service vehicle is, at any time, loaded in contravention of this rule, he may order the

driver or other person in-charge of the motor vehicle to remove or repack the inflammable or dangerous substance.

185. Sound signals restriction on use of— The District Magistrate may by notification in one or more newspapers in the city or district concerned, as the case may be, and by the erection in suitable places of traffic sign No.M-18 as set forth in the First Schedule to the Act prohibit the use by drivers of motor vehicles of any horn or other device for giving audible warning in any area within the city or district and during such hours as may be specified in the notification:

Provided that when the District Magistrate prohibits the use of any horn, or other device for giving audible warning during certain specified hours, he shall cause a suitable notice in Hindi setting forth the hours within which such use is so prohibited to be affixed below the traffic sign.

186. Erection or placing of signs or advertisements on roads prohibited— No person shall place or erect or cause or allow to be placed or erected on any road, any sign or advertisement which in the opinion of the Superintendent of Police is so similar in appearance to traffic sign as to be misleading.

187. ¹[* * *]

188. Restriction on driving with gear disengaged— On any hill marked by traffic sign No. C-9 of the First Schedule to the Act, no person shall drive a transport vehicle with the engine free, that is to say, with gear lever in neutral, the clutch lever depressed or with any free wheel or other device in operation which free the engine from the wheels and prevents the engine from acting as a brake when the vehicle is travelling down an incline.

189. Wooden chocks— (1) In order to prevent the vehicle from running backward on slopes or otherwise to render it immobile, the owner of every transport vehicle, other than a light motor vehicle, shall always keep his vehicle equipped with two wedge-shaped solid wooden chocks, each measuring 30.40 centimetres in length, 30.50 centimetres in breadth and 25.40 centimetres in height, with one of its sides having a slope making an angle of 45 degree at the end. The plane surface of the sloped side of each chock shall be rendered concave so as to fit the outer circumference of the tyres normally fitted to the rear wheels of the vehicle,

(2) Notwithstanding anything contained in sub-rule (1), where such vehicle is fitted with single rear wheel; the breadth of each such chock may be less than 30.50 centimetres but not less than 15.25 centimetres.

(3) Each such chock shall have a hook and be kept—

- (i) In a bracket fitted on the outer skirt of the tail-board of the vehicle;
- (ii) where the vehicle has no tail-board, in a metal carrier fitted between the frame side members, underneath the body nearest to the rear wheels on either side.

The tail-board of the vehicle, and where the vehicle has no tail-board, the wooden planks above the frame side members shall also have a hook in the centre.

1. Rule 187 omitted by Notification No.1994/XXX-4-2009-67-89-TC, dated 9th November, 2009 (Seventh Amendment) Rules, 2009 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 9th November, 2009 (w.e.f. 09-11-2009)

(4) Each such chock shall be linked with the tail-board, or where the vehicle has no tail-board with the wooden planks above the frame side member, by means of a metal chain or steel wire rope of sufficient length and strength fastened to the hook in the chock and to the hook in the tail-board or the wooden planks, as the case may be.

(5) Notwithstanding anything contained in this rule the State Government may, by notification in the Official Gazette, exempt from the provisions of this rule any goods vehicle or class of such vehicles which in its opinion is not likely to slip backwards on slopes.

190.¹ [* * *]

191.¹ [* * *]

192. Preceding of Ascending Vehicles— No motor vehicle shall overtake another vehicle travelling in the same direction, except at a place where the road is clearly visible to the driver of the overtaking vehicle for at least 185 metres ahead].

193.¹ [* * *]

194.¹ [* * *]

195. Stands and halting places— (1) District Magistrates are authorised by the State Government to take action under Section 117 of the Act and may, in consultation with the local authority having jurisdiction in the area concerned, by the creation, of traffic signs or notices—

- (a) specify places within the territorial area of a municipality or Cantonment Board or within such other limits as he may define where alone public service vehicle or any specified class or classes of public service vehicles and/or goods carriages may stand indefinitely or for such period as maybe specified or public service vehicle may stop for a longer time than is necessary for the taking up and setting down of passengers; or
- (b) conditionally or unconditionally prohibit the use of any specified place, or any place of a specified nature or class as a stand or halting place;

Provided that no place which is privately owned shall be specified as a stand or halting place without the previous consent in writing of the owner thereof.

(2) When a place has been specified by traffic signs or notices, as being a stand or halting place for the purpose of this rule, then, notwithstanding that the land is in possession of any person the place shall, subject to the provisions of these rules, be deemed to be a public place within the meaning of the Act and the District Magistrate may enter into an agreement with or grant a licence to any person for the provision or maintenance of such place including the provision or maintenance of the buildings or works necessary thereto, subject to the termination of the agreement licence forthwith upon the breach of any condition thereof and may otherwise make rules or give directions for the conduct of such place including rules or directions:—

1. Rule 190, 191, 193 & 194 omitted by Notification No.1994/XXX-4-2009-67-89-TC, dated 9th November, 2009 (Seventh Amendment) Rules, 2009 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 9th November, 2009 (w.e.f. 09-11-2009)

- (a) prescribing the fees to be paid by the owners of public service vehicle

using the place and providing for the receipt and disposal of such fees;

- (b) specifying the public service vehicles or the class or classes of public service vehicles which shall use the place or which shall not use the place;
- (c) appointing a person to be the manager of the place and specifying the powers and duties of the manager;
- (d) requiring the owner of the land, or the local authority, as the case may be, to erect such shelters, lavatories, and latrines and to execute such other works as may be specified in the rules or in the direction and to maintain the same in a serviceable, clean and sanitary condition;
- (e) prohibiting the use of such place by specified persons or by other than specified persons.

(3) Nothing in sub-rule (2) shall require any person owing the land, which has been appointed as a stand or halting place, to undertake any work or to incur expenditure in connection therewith without his consent and in the event of any such person declining to carry out such work or to incur such expenditure or failing to comply with any rule or direction made or given to him under this rule, the competent authority may prohibit the use of such a place for the purpose of this rule.

196. Restriction of travelling backwards— No driver of a motor vehicle shall cause a motor vehicle to travel backwards, without first satisfying himself that he will not thereby cause danger or undue inconvenience to any person or in circumstance, save in the case of a road-roller, for any greater distance or period of time that may be reasonably necessary in order to run the vehicle round.

197. Use of lamps when a vehicle is at rest— (1) If, within the limits of any municipality or cantonment, a motor vehicle is at rest within the hours during which lights are required, at the left-hand side of any road or street or elsewhere¹ in any duly specified parking place, it shall not be necessary for the motor vehicle to exhibit any light save as may be required generally or specially by the District Magistrate.

(2) If outside the limit of any municipality or cantonment, if a motor vehicle is at rest within the hours during which lights are required in such a position as not to cause danger or undue inconvenience to other users of the road, it shall not be necessary for the motor vehicle to display any light.

198. Dazzling light: Restriction of— (1) The driver of a motor vehicle shall at all times when the lights of the motor vehicle are in use so manipulate them that danger or undue inconvenience is not caused to any person by dazzle.

(2) The District Magistrate may by the erection of suitable notices in English and in the local script prohibit the use, within such areas in such places as may be specified in the notification, of lamps giving a powerful or intense light.

(3) No searchlight or spotlight or other movable light, other than the lights prescribed shall be used on any motor vehicle when such vehicle is passing through any town or village or is meeting other vehicular traffic.

199. Visibility of lamps and registration marks— (1) No load or other thing shall be placed on any motor vehicle so as to at any time mask or otherwise interrupt, vision of any lamp, registration mark or other mark required to be carried by or exhibited on any motor vehicle by or under the provisions of the Act, unless a duplicate of the lamp or mark so masked or otherwise obscured is exhibited in the manner required by or under the Act

for the exhibition of the mark or obscured lamp or mark.

(2) All registration and other marks required to be exhibited on a motor vehicle by or under the provisions of the Act shall at all times be maintained as far as may be reasonably possible in a clear and legible condition.

200. Caution about overtaking vehicle, etc.— In addition to the requirements of the driving regulations made by Central Government under Section 118—

- (a) no driver of a motor vehicle shall make any signal to the driver of a motor vehicle approaching from behind with the intention of signifying that such driver may overtake him, unless the road to his front is so unobstructed as to enable such other vehicle to pass him without danger;
- (b) every driver of a motor vehicle shall drive on the extreme left-hand side of the road, when either owing to a hill or to a curve in the said road, or to any other cause, his vision to his front is limited to such a distance that on the appearance of another motor vehicle travelling in the opposite direction to himself there would be danger of collision; and
- (c) every driver of a motor vehicle shall slow down and drive slowly for so long as owing to dust raised by an approaching vehicle or to any other cause, his vision to his front is obscured or limited.

201. ¹[Protective headgear: Wearing of— (1) Every person while driving or riding (Pillion Rider) a motorcycle, a scooter or moped shall wear a protective headgear conforming to the specification given in sub-rule (2) below:

(2) Each protective headgear shall-

- (i) Be of specifications of Bureau of Indian standard.
- (ii) be permanently and legibly labeled in such manner that level of levels can be read easily without removing padding or any other permanent material description such as-
 - (a) manufacturer's name of identification;
 - (b) size;
 - (c) month and year of manufacture, and
 - (d) the mark of the Bureau of Indian Standards.
- (iii) have minimum three adhesive type retroreflective red color strips of the size of 2 centimetres multiplied by 15 centimetres affixed horizontally on back of the headgear which will illuminate during the night:

Providing that sub-rule (1) of this rule shall not apply to any person wearing a turban while driving a motor cycle, scooter or a moped in a public place.]

202. Exemption of Fire Brigade vehicles, ambulances, etc.— The State Government may, by notification exempt from all or any of the provisions of* this chapter, the Fire Brigade vehicles, ambulances and such other special classes or descriptions of vehicles as it may specify in the notification.

1. Rule 201 substituted by Notification No.21/2016/916/XXX-4-2016-8(5)-2015, dated 6th July, 2016 (Twenty Third Amendment) Rules, 2016 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 6th July, 2016 (w.e.f. 06-07-2016)

Provided that sub-rule (1) of this rule shall not apply to any person wearing a turban while driving a motor cycle, scooter or a moped in a public place.]

203. Inspection of vehicle involved in an accident— Assistant Regional Transport Officer, Regional Inspector or Assistant Regional Inspector of the Transport Department, may inspect the motor vehicle involved in an accident and for that purpose may enter at any reasonable time any premises where the vehicle may be and may remove the vehicle for examination.

¹[203-A. Duties of Investigating Police Officer— (1) The Investigating Police Officer shall prepare a site plan, drawn on scale as to indicate the layout and width etc. of the road/roads or place as the case may be, the position of Vehicle/ Vehicles, or persons involved and such other facts as the case may be relevant, authenticated by the witnesses and in case no witness is available same shall be recorded, so as to preserve the evidence relating to accident. He shall also get the scene of accident photographed from such angles as to clearly depict the accident, as above, inter alia for the purposes of proceeding before the Claims Tribunal.

(2) The Investigating Police Officer shall get full particulars of the Insurance Certificate/Policy in respect of the motor vehicle involved in the accident, and to require the production of documents mentioned in sub-section (1) of Section 158, and there upon either to take the same in possession against receipt, or to retain the photocopies of the same, after attestation thereof by the person producing them.

(3) The Investigating Police Officer may verify the genuineness of the documents gathered under sub-rule (2) by obtaining confirmation in writing from the authority purporting to have issued the same.

(4) The Investigating Police Officer shall submit detailed report regarding the accident to the Claims Tribunal, along with site plan and photographs prepared under sub-rule (1), documents gathered and verified under sub-rules(1)and(3) or action taken in case of documents found forged, copies of report under Section 173 of the Code of Criminal Procedure, medico legal reports and post-mortem report (in case of death), First Information Report, by not later than fifteen days of receipt of order /requisition issued by the Claims Tribunal:

Provided that such information may also be furnished to the Insurance Company if requested by or through its agent or by the injured/sufferer or next of the kin or legal representatives of the deceased of the accident. The Investigating Police Officer shall submit report under this rule to the Claims Tribunal in Form SR 48-A

(5) Duties of Investigating Police Officer enumerated in sub-rules (1) to (3) shall be construed as if they are included in Section 23 of U.P. Police Act, 1861 and any break thereof, shall entail consequences envisaged in that law.

203-B. Prohibition against release of vehicle— (1) No vehicle, involved in any accident, shall be released by Investigating Police Officer or any Police Officer superior to him unless a release order is passed, by the Court having jurisdiction.

1. Rule 203-A, 203-B and 203-C inserted by Notification No.777/XXX-4-2011-4(3)-2010, dated 26thSeptember, 2011 (Eleventh Amendment) Rules, 2011 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 26th September, 2011 (w.e.f. 26-09-2011)

(2) No vehicle, involved in any accident shall be released by the Judicial Magistrate, having jurisdiction, unless the compliance of sub-rules (1) to (3) of Rule 203-A

is ensured from the Investigating Police Officer and duly attested copies of Registration Certificate, Insurance Certificate, Route Permit, Fitness Certificate of Vehicle as the case maybe and driving license of the driver who was driving at the time of accident, are filed by the applicant.

(3) No court shall release a vehicle involved in accident, causing death or permanent disability when such vehicle is not covered by Policy of Insurance against third party risks unless the owner/registered owner of the vehicle furnishes sufficient security to the satisfaction of the court to pay compensation that may be awarded in a claim case arising out of such accident.

(4) Where the vehicle is not covered by a policy of insurance against third party risks, or when the owner/ registered owner of the vehicle has failed to furnish sufficient security under sub-rule (3), or the policy of insurance produced by owner is found fake/forged, the vehicle shall be sold in public auction by the Judicial Magistrate, having jurisdiction, on expiry of six months of the vehicle being seized by the investigating Police Officer and proceeds thereof, shall be deposited with the Claims Tribunal, having jurisdiction over the area in question, for the purpose of satisfying the compensation to be awarded in claim case.]

203-C. Duties of Registering Authority— (1) The registering authority of motor vehicles and licensing authority, issuing driving license, shall submit a report or issue a certificate relating to verification of registration and other documents with complete details and of driving license of the driver of the vehicle involved in accident when directed by the Tribunal or asked by the insurance Company.

(2) The Registering Authority of motor vehicles and licensing authority shall also provide information mentioned in sub-rule (1) to the person/persons who wishes or have filed petitions for compensation or who is involved in an accident or his next of kin, or to the legal representative of the deceased, as the case may be.]

CHAPTER IX Claims Tribunals

204. ¹[Application for Payments— (1) Every application for payment of compensation made under Section 166 shall as far as possible be made in Form SR-48 if the compensation is claimed under Section 163-A and in Form SR-49 if compensation is claimed otherwise than under Section 163-A and be accompanied by a fee of Rupees Ten in the form of court-fee stamps:

Provided that the compensation under Section 163-A shall be full and final settlement of the claim and the claimant shall not be entitled to file any other application for claim under the Act.

(2) All applications, before the Claims Tribunal, other than those mentioned in sub-rule (1) shall be stamped with a court fee stamp of Rupees Five. A process fee of Rupees Ten shall be in the form of court-fee stamps paid for each witness or party summoned.

(3) An application under this rule shall be presented before the Claims Tribunal by the applicant in person unless he is prevented by sufficient cause from appealing personally, in which case the application may either be sent to the Claims Tribunal by registered post or may be presented by his agent authorized in writing in this behalf.

(4) All the documents and affidavits for the proof thereof and affidavits in support of all facts on which the applicant relies in context of his claim, shall be filed after entering in a list of documents:

Provided that the Claims Tribunal may not allow the applicant to rely, in support of his claim, on any document or affidavit not filed with the application, unless it is satisfied that for good or sufficient cause, he was prevented from filing such documents or affidavits earlier.

(2) The applicant shall file copies of medico-legal examination report, post-mortem report (in case of death), insurance certificate/policy and driving license obtained under Rule 203-C and report/information obtained under sub-rule (4) of Rule 203-A along with the application presented under sub-rule (3).

(3) The applicant shall affix his/their photographs on the application for compensation duly attested by their counsel and shall also file proof of their identity to the satisfaction of the Claims Tribunal unless exempted from doing so for the reasons recorded in writing.

(4) The driver of the vehicle, involved in the accident, shall be the necessary party in the application for compensation filed under Section 166 of the Act.]

204-A. ²[Police report submitted under Section 158(6)— (1) On receipt of report of Investigating Police Officer submitted under sub-rule (4) of Rule 203-A, the Claims Tribunal shall go through the same and they may call for such further information or material as considered necessary for proper and effective action in accordance with sub-section (4) of Section 166.

1. Rule 204 substituted by Notification No.777/XXX-4-2011-4(3)-2010, dated 26th September, 2011 (Eleventh Amendment) Rules, 2011 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 26th September, 2011 (w.e.f. 26-09-2011)

2. Rule 204-A and 204-B inserted by Notification No.777/XXX-4-2011-4(3)-2010, dated 26th September, 2011 (Eleventh Amendment) Rules, 2011 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 26th September, 2011 (w.e.f. 26-09-2011)

(2) The Claims Tribunal after examining the report and further information/material, if called for, shall register the claim case thereon and, then, issue notice for appearance to all the parties concerned; which would include the victims of the accident or the legal representatives of persons deceased as the case may be, driver, owner and insurer of the vehicle involved in the accident.

(3) On receipt of notice, the parties mentioned in sub-rule (2) would be required to appear and declare through affidavit, if any claim case had been preferred or was being preferred in respect of the same cause of action, and if so, the report of Investigating Police Officer, treated as claim case, would be tagged to such claim case preferred independently by the parties.

(4) If the persons injured, or legal representative of the persons deceased do not appear in response to the notice issued under sub-rule (2) in the manner indicated in sub-rule (3) the Claims Tribunal may presume that the said parties were not interested in pursuing the same for any compensation in such proceedings, and on such presumption the case shall be closed.

(5) Unless the Police report treated as claim case stands tagged to independent claim case preferred by the parties themselves, the Claims Tribunal shall call upon the persons/ injured or legal representatives of the person deceased, as the case may be, and the persons who have appeared in response to the notice to submit statements of fact regarding compensation, if claimed by them.

(6) If statements of facts about compensation claimed and basis thereof are furnished by the parties, the case shall be further proceeded in the same manner as required to deal with applications moved by the parties for compensation directly before the Claims Tribunal.

(7) If statements of facts about the compensation claimed, has been furnished by the parties and subsequently commits default in appearance, the provisions of Order- IX of the Code of Civil Procedure, 1908 would apply.

204-B. Duties of the Insurance Company— (1) The Insurance Company, who has insured the vehicle, involved in the accident, shall ascertain and verify the facts about insurance and insurance policy of the vehicle and shall file the requisite copies of the Insurance Policy along with the written statement/ objection in the claim petition before the Tribunal.

(2) The Insurance Company shall deposit with the written statements in the Tribunal the amount equivalent to the compensation awardable on the principle of no-fault liability under Section 140 of the Act in such cases where death or permanent disability has been caused as a result of the case of motor vehicle covered by the Insurance Policy.

(3) The amount of compensation deposited under sub-rule (2) may be paid in part or full to the claimant on the terms and conditions reasonably imposed by Tribunal as interim compensation subject to adjustment with the final award in the matter.]

205. Examination of an applicant— On receipt of an application under Rule 204 the Claims Tribunal may, if the applicant is present personally, examine him on oath, and the substance of such an examination, if any, shall be reduced to writing and it shall form part of the record.

206. Summary dismissal of application— The Claims Tribunal may, after considering the application and the statement, if any, recorded under Rule 205 dismiss the application summarily if, for reasons to be recorded, it is of the opinion that there are no sufficient grounds for proceeding therewith.

207. ¹[Notice to parties involved— (1) If the application is not dismissed under Rule 206, the Claims Tribunal shall send to the owner of the motor vehicle involved in the accident and its insurer, a copy of the application and documents filed together with a notice of the date on which it will hear the application, and shall call upon the opposite parties to produce on that date any evidence which they may like to produce.

(2) Each Insurance Company shall nominate its counsel with an authority to receive notices, issued in the claim petition by the Tribunal on behalf of the Insurance Company with the intimation in writing to the District Judge/ Tribunal;

Provided that the nominated counsel, so appointed, shall receive the notice issued by the Tribunal in the claim petition on behalf of the Insurance Company concerned and refusal of notice by him shall be treated as refusal of notice by the Insurance Company concerned.]

207-A. Creation of Websites by the Insurance Companies— All the Insurance Companies shall, create a website of all its pending claim cases with complete details. The website shall contain the cases district-wise of the States separately so that duplicacy etc. of cases may be identified.

208. ¹[Appearance and oral examination of parties— (1) The owner of the motor vehicle, and the Insurer, may, at or before the first hearing or within such further time as the Claims Tribunal may allow, file a written statement, dealing with the claim raised in the application, and any such written statement shall form part of the record.

(2) Where the claim is contested, the Claims Tribunal shall, with a view to elucidating matters in controversy between the parties, examining orally such of the parties to the claim proceeding as it deems fit and shall reduce the substance of the examination, if any, to writing.

(3) The date of first hearing for filing written statement under sub-rule (1) shall not be more than one month from the date of issuance of notices to owner /driver and insurer of the Motor Vehicle and no further time, more than one month shall be given for that.

(4) The opposite parties shall file their written statement, all the documents and affidavits for the proof thereof and in support of all facts on which, they rely in context of their defence duly entered in a list of documents and shall give copies of written statement, documents and affidavits so filed, to the applicant:

Provided that the Tribunal may not allow the opposite party to rely on any document or affidavit in support of [their] defence, not filed along with the written statement unless, it is satisfied that for good or sufficient reasons, he was prevented from filing such documents or affidavit earlier.

(5) The application for compensation shall be decided on the date of filing of written statement when the claim is not denied/opposed by any of the opposite parties.]

208-A. Reference for settlement in Lok Adalat— (1) After appearance and filing of written statement by the opposite parties, the Claims Tribunal shall make efforts for disposal of the claim petition through mutual settlement or composition and may refer to Lok Adalat for settlement through mediation and conciliation:

1. Rule 207 and 208 substituted by Notification No.777/XXX-4-2011-4(3)-2010, dated 26th September, 2011 (Eleventh Amendment) Rules, 2011 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 26th September, 2011 (w.e.f. 26-09-2011)

Provided that parties to the petition and their agents, may be asked by the Claims Tribunal to appear and participate in the Lok Adalat on a date fixed.

(2) The case referred to Lok Adalat under sub-rule (1) if not settled, shall not be retained more than two months in Lok Adalat and may be sent back to the Tribunal after fixing a date to appear therein.

209. Framing of issues— After considering the application and the written statements and oral statements of the parties, the Claims Tribunal shall proceed to frame the issues on which the right decision of the claim appears to it to depend,

210. ¹[Summoning of witnesses— (1) Where an application is presented by any party to the proceeding for summoning of witnesses, the Claims Tribunal shall on payment of the expenses involved, if any, issue summons for the appearance of such witnesses, unless it considers that their appearance is not necessary for just decision of the case.

(2) If in the opinion of the Claims Tribunal, the party is financially poor, it may not insist him for the payment of expenses involved in summoning the witnesses and the same shall be borne by the Government:

Provided that in case the party succeeds in whole or in part in the claim case, the expenses so incurred by the Government, shall be directed to be paid to the Government by the opposite party.]

211. Determination of issues— After framing the issues the Claims Tribunal shall proceed to record evidence thereon which each party may like to produce.

²[211-A. Presumption about the papers— The reports, certificates and papers submitted or issued under Rules 203-A, 203-C and 203-D shall be presumed to be correct and shall be read in evidence without formal proof, unless proved contrary,]

212. ³[Method of recording evidence— (1) The Claims Tribunal shall, as examination of a party or a witness proceeds, make a brief memorandum of the substance of what is deposed and such memorandum shall be written and signed by the Claims Tribunal and shall form part of the record:

Provided that the evidence of any medical witness shall, as nearly as may be, be taken down word for word:

Provided further that where the Claims Tribunal is unable to make a memorandum it shall cause the reason of such inability to be recorded and shall cause the memorandum to be made in writing from its dictation.

(2) The copies of medico-legal reports, post-mortem reports, papers relating to reports submitted by Investigating Police Officer or any other person which the Claims Tribunal deems appropriate, shall be admissible in evidence without formal proof thereof. However, the witness relating to these documents and papers may be examined on oath if required necessary in the circumstances of the case.

1. Rule 210 substituted by Notification No.777/XXX-4-2011-4(3)-2010, dated 26th September, 2011 (Eleventh Amendment) Rules, 2011 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 26th September, 2011 (w.e.f. 26-09-2011)

2. Rule 211-A inserted by Notification No.777/XXX-4-2011-4(3)-2010, dated 26th September, 2011 (Eleventh Amendment) Rules, 2011 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 26th September, 2011 (w.e.f. 26-09-2011)

3. Rule 212 and 213 substituted by Notification No.777/XXX-4-2011-4(3)-2010, dated 26th September, 2011 (Eleventh Amendment) Rules, 2011 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 26th September, 2011 (w.e.f. 26-09-2011)

213. Local Inspection— (1) The Claims Tribunal may, at any stage of an enquiry before it and after due notice to the parties, visit and inspect the site at which the accident occurred or any other place or thing which it is in its opinion, necessary to view for a proper decision of the case.

(2) A party to proceeding or his representative may be present at the time of the local inspection by the Claims Tribunal.

(3) As soon as may be after the local inspection the Claims Tribunal shall record memorandum of any relevant 'fact observed as such inspection, and such memorandum shall form part of the record.

(4) The Claims Tribunal during the local inspection under this rule or at any other stage of the case pending before it, may examine summarily any person likely to be able to provide information relating to such case, whether such person has been or is to be called as witness in the case or not and whether any or none of the parties are present or not.]

214. Inspection of the vehicle— The Claims Tribunal may if it thinks fit, require the motor vehicle involved in the accident to be produced by the owner thereof for inspection at particular time and place to be mentioned by it.

215. Power of examination— The Claims Tribunal may if it thinks necessary, examine any person likely to be able to give information relating to the injury irrespective of the fact whether such person has been or is to be called as a witness or not.

216. Adjournment of hearing— The Claims Tribunal may for reasons to be recorded, on the application of a party or otherwise, adjourn the hearing from time to time. When adjournment is granted on application the Claims Tribunal may make such order as it thinks fit with respect to the costs occasioned by the adjournment.

217. Appearance through legal practitioner—The Claims Tribunal may, in its discretion, allow any party to appear before it through a legal practitioner.

218. Co-opting of persons during inquiry— (1) The Claims Tribunal may, if it thinks fit, choose one or more persons possessing special knowledge of any matter relevant to the inquiry to assist it in holding the inquiry.

(2) The remuneration to be paid to the person or persons co-opted under sub-rule shall in every case be determined by the Claims Tribunal.

219. Diary— The Claims Tribunal shall maintain a brief diary of the proceedings relating to an application.

220. Judgment and award of compensation— (1) The Claims Tribunal, in passing orders, shall record concisely in judgment the findings on each of the issues framed and the reasons for such finding and make an award, specifying the amount of compensation to be paid by the insurer or in the case of a vehicle exempted under sub- section (2) or (3) of Section 146 by the owner thereof and shall also specify the person or persons to whom compensation shall be payable.

(2) Where compensation is awarded to two or more persons under sub-rule (1) the Claims Tribunal shall also specify the amount payable to each of them.

(3) The Claims Tribunal may, while disposing of claims for compensation, make such order regarding costs and expenses incurred in the proceeding as it thinks fit.

¹[220-A. **Determination of compensation**— (1) The multiplier for determination of loss of income payable as compensation in all the claims cases shall be applied as per Second Schedule provided in the Act.

(2) Deduction for personal and living expenses of a deceased, shall be as follows—

- (i) The deduction towards personal expenses of a deceased unmarried shall be 50%. Where the family of a bachelor is large and dependent on the income of the deceased, the deduction shall be 1/3 (33.33%).
- (ii) The deduction towards personal and living expenses of a married person deceased shall be 1/3rd where dependent family members are 2 to 3 in number, 1/4th where dependent family members are 4 to 6 in number and 1/5th where dependent family member sare more than 6 in number.
- (iii) For the purpose of calculation of number of family members in clause (ii) a minor dependent will be counted as half.

(3) The future prospects of a deceased, shall be added in the actual salary or minimum wages of the deceased as under—

- (i) Below 40 years of age: 50% of the salary.
- (ii) Between 40-50 years of age: 30% of the salary.
- (iii) More than 50years of age: 20% of the salary.
- (iv) When wages not sufficiently proved: 50% towards inflation and price index.

(4) The non-pecuniary damages shall also be payable in the compensation as follows—

- (i) Compensation for loss of estate: Rs. 5000 to Rs. 10,000.
- (ii) Compensation for loss of consortium: Rs.5000 to10,000.
- (iii) Compensation for loss of love and affection: Rs.5000 to Rs. 15,000.
- (iv) Funeral expenses, costs of transportation of body; Rs. 5000 or actual expenses whichever is less.
- (v) Medical expenses: actual expenses proved to the satisfaction of the Claims Tribunal.

(5) For determination of compensation in case of injuries, partial or permanent disability provisions of Second Schedule of the Act shall apply:

Provided that the Claims Tribunal may also award compensation for future prospects according to sub-rule (3) in case of permanent disability depending upon the nature, extent and its effect on the future of disabled claimants.

(6) The rate of interest shall be 7% *pendente lite* and future till the actual payment.

220-B. Securing the interest of Claimants— (1) Where any lump-sum amount of compensation, deposited with the Claims Tribunal is payable to a woman or a person under legal disability/ such sum may be invested, applied or otherwise dealt with for the benefit of the woman or such person during his disability in such manner as the Claims Tribunal may direct to be paid to any dependent of the injured or heirs of the deceased or to any

1. New Rule 220-A and 220-B inserted by Notification No.777/XXX-4-2011-4(3)-2010, dated 26th September, 2011 (Eleventh Amendment) Rules, 2011 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 26th September, 2011 (w.e.f. 26-09-2011)

other person whom the Claims Tribunal thinks best fitted to provide for the welfare of the injured or the heir of the deceased.

(2) Where an application made to the Claims Tribunal in this behalf otherwise, the Claims Tribunal is satisfied that on account of neglect of the children on the part of the parents, or on account of the variation of the circumstances of any dependent, or for any other sufficient cause, an order of the Claims Tribunal as to the distribution of any sum paid as compensation or as to the manner in which any sum payable to any such dependent is to be invested applied or otherwise dealt with, ought to be varied, the Claims Tribunal may make such further orders for the variation of the former order as it thinks just in the circumstances of the case.

(3) The Claims Tribunal shall, in the case of minor, order that amount of compensation awarded to such minor be invested in fixed deposits till such minor attains majority. The expenses incurred by the guardian or the next friend may be allowed to be withdrawn by such guardian or the next friend from such deposits before it is deposited:

Provided that the interest payable on such deposits may be allowed to be utilized for education, maintenance and development of the minor with the permission of the Claims Tribunal.

(4) The Claims Tribunal shall, in the case of illiterate claimants, order that the amount of compensation awarded be invested in fixed deposits for a minimum period of three years, but if any amount is required for effecting purchase of any movable or immovable property for improving the income of the claimant, the Claims Tribunal may consider such a request after being satisfied that the amount would be actually spent for the purpose and the demand is not a ruse to withdraw money.

(5) The Claims Tribunal shall, in the case of semi-literate person resort to the procedure for the depositor award amounts set out in sub-rule (4) unless if is satisfied, for reasons to be recorded in writing that the whole or part of the amount is required for the expansion of any existing business or for the purchase of some property as specified and mentioned, in sub-rule (4) in which case the Claims Tribunal shall ensure that the amount is invested for the purpose for which it is prayed for and paid.

(6) The Claims Tribunal may in the case of literate persons also resort to the procedure for deposit of awarded amount specified in sub-rules (4) and (5) if having regard to the age, fiscal background and state of society to which the claimant belongs and such other consideration/ the Claims Tribunal in the larger interest of the claimant and with a view to ensure the safety of the compensation awarded, thinks it necessary to order.

(7) The Claims Tribunal, may in personal injury cases, if further treatment is necessary, on being satisfied which shall be recorded in writing, permit the withdrawal of such amount as is necessary for the expenses of such treatment.

(8) The Claims Tribunal may, in the matter of investment of money, have regard to maximum return by ways of periodical income to the claimant, deposit with public sector under taking of the State or Central Government which offers higher rate of interest.

(9) The Claims Tribunal shall, in investing money, direct that the interest on the deposits be paid directly to the claimants or the guardian of the minor claimants by the institution holding the deposits under intimation to the Claims Tribunal.]

221. Code of Civil Procedure to apply in certain cases— The following provisions of the First Schedule to the Code of Civil Procedure, 1908 shall so far as may be apply to proceedings before the Claims Tribunal, namely, Rules 9 to 13 and 15 to 30 of

Order V; Order IX, Rules 3 to 10 of Order XIII, Rules 2 to 21 of Order XVI; Order XVII; and Rules 1 to 3 of Order XXIII.

222. Form and number of appeals against the decision of Claims Tribunal— (1) An appeal against the award of a Claims Tribunal shall be preferred in the form of a memorandum stating concisely the grounds on which the appeal is preferred.

(2) It shall be accompanied by a copy of the judgment and award appealed against.

¹[CHAPTER IX A
Special Provisions for School vehicles.

222 A. Requirement of permit- The owner or operator of a motor vehicle shall not allow a vehicle to be used as transport vehicle to carry school children in public place unless a permit is issued under section 76 of the Act for an educational institution bus or contract carriage permit under section 74 of the Act.

222 B. Grant of permit for carrying school children- (1) An Educational institution bus shall have to obtain permit of private service vehicle under section 76 of the Act. The owner shall apply in Form SR-23A before Competent Authority and the authority may grant permit in accordance with application or with such modification as it deems fit or refuse to grant such permit. The permit shall be issued in form SR-29 A.

(2) An owner of a private bus, who has a written agreement with school authority shall apply before the Competent Authority under section 73 of the Act in form SR-21A and the authority may grant permit in accordance with application or with such modifications as it deems fit or refuse to grant such permit. The permit shall be issued in form SR-27A.

(3) The owner of school van having an agreement with guardians or group of guardians for transporting the school children shall apply under section 73 before the Competent Authority in form SR-21B along with copy of agreement duly forwarded by the school. The authority may grant permit in accordance with application or with such modifications as it deems fit or refuse to grant such permit. The permit shall be issued in form SR-27B.

(4) Every school, before going to an agreement with a private operator, shall ensure that;

- (a) the vehicle complies all the norms prescribed in these rules and directions of the State Government from time to time.
- (b) The character certificate of vehicle owner and driver is obtained.
- (c) the agreement shall not be terminated before one year except in unavoidable circumstances.

222 C. Fees- The fee for permit shall be charged under the provisions of rule-125.

222 D. Age limit of School Vehicle- (1) The educational institution bus (diesel and clean fuel driven) shall not be more than 15 years old from the date of initial registration.

¹[(2) The diesel/CNG driven private bus (contract carriage) shall not be more than 15 years old from the date of initial registration.

(2) The school van, driven by diesel/petrol/CNG, shall not be more than 15 years old from the date of initial registration.]

222 E. Constitution of the District School Vehicle Transport Safety Committee- (1) There shall be a District School Vehicle Transport Safety Committee for each district to discuss, decide and recommend the issues pertaining to safety of children and their transportation, consisting of: -

1. New Chapter-IXA inserted by Notification No.12/2019/805/xxx-4-2019-17(Sa)/2018, dated 27th May, 2019 (Twenty Sixth Amendment) Rules, 2019 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 27th May, 2019 (w.e.f. 27-05-2019)

2. Sub rule (2) and (3) substituted by Notification No.2/2022/526/xxx-4-2022-17(Sa)/2018, dated 02nd May, 2022 (Twenty Eighth Amendment) Rules, 2022 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 02nd May, 2022 (w.e.f. 02-05-2022)

(i) District Magistrate	Chairperson
(ii) Senior superintendant of Police/Superintendant of Police	Vice Chairperson
(iii) The Regional Transport Officer (Enforcement) of the concerned region	Member
(iv) The Assistant Regional Transport Officer (Enforcement) of the concerned district	Member Secretary
(v) Executive officer of municipality nominated by District Magistrate or Municipal Commissioner as the case may be.	Member
(vi) District Inspector of School	Member
(vii) Basic Shiksha Adhikari	Member
(viii) Two representatives of school transport business to be nominated by the chairperson	Member

Explanation- In this clause "School transport business" means the vehicle owners who operate the vehicles for schools.

(2) The quorum of the meeting of the committee shall be five members.

(3) The committee shall meet twice in a year in the month of January and July.

222 F. Functions of the committee- (1) The committee shall ensure that the technical inspection of the vehicle be held in the school campus or at the appointed place. This inspection shall be conducted by Regional Inspector (technical) or an officer higher than him.

(2) The committee will fix the inspection schedule of school vehicles in the manner that all vehicles must be inspected at least once in a year.

(3) The committee will monitor the performance of school transport safety committee and ensure the compliance of the direction given by the Hon. Supreme Court/High Court and the State Government from time to time.

222 G. The School Transport Safety Committee- (1) There shall be a School Transport Safety Committee to look into the matters pertaining to safety of school children, consisting of: -

(a)	The school authority of the concerned school	Chairperson
(b)	An officer nominated by District Magistrate concerned not below the rank of Nayab Tehsildar	Member
(c)	Two representatives of the guardians nominated by school authority	Member

(d)	Station House Officer/ Chauki Incharge of the concerned police station.	Member
(e)	An Officer nominated by Basic Siksha Adhikari not below the rank of Assistant Basic Siksha Adhikari	Member
(f)	An Officer nominated by District Inspector of School not below the rank of Sub Divisional Inspector	Member
(g)	Two representatives of the school vehicle operators	Member
(h)	One representative of local body nominated by Chairperson or mayor as the case may be	Member

(2) The quorum of the meeting of school transport safety committee shall be five members.

(3) The school transport safety committee shall meet in the month of July, October, January and April in every year and at such time as may be decided by Chair person.

222 H. Function of The School Transport Safety Committee- The School Transport Safety Committee shall -

- (a) examine the documents of the vehicles engaged in schools, such as registration certificate, fitness certificate, insurance certificate, permit, pollution under control certificate, driving license and ensure the compliance of prescribed norms.
- (b) Determine the fee and identify the bus stops.
- (c) forward its recommendations if any to the district level committee for necessary action.
- (d) organize a health-eye check-up camp of the drivers of the school vehicles once in a year with the help of district level committee.
- (e) Ensure the police verification of each driver.
- (f) comply the directions issued by District School Vehicle Transport Safety Committee or the State Government from time to time.

222 I. Parking and halting place of vehicle- (1) The School Transport Safety Committee in consultation with police and municipal authorities concerned shall identify the parking and halting stations of the school vehicles.

222 J. Eligibilities and duties of drivers of school vehicles- (1) No vehicle owner or school authority shall allow a driver of the school vehicle to drive until he: -

- (a) possesses a valid driving license.
 - (b) Has an experience of driving of at least 05 years.
 - (c) Has not been punished twice in a year of jumping red light, breaking the lane discipline, or allowing unauthorized person to drive.
- (2) Every driver shall: -
- (a) participate in the health/eye check up organized by the ‘school transport safety committee’.
 - (b) prepare a logbook of the vehicle and all the defects of the vehicle shall be entered on the daily basis.
 - (c) Not violate the speed limit fixed for school vehicles.
 - (d) Ensure that all school children shall fasten the seat belt.

222 K. Uniform of the driver and attendant- (1) Driver of a school bus shall wear the following uniform: -

- (a) Khakhi bush-shirt.
- (b) Khakhi full pant.
- (c) Identity card and name plate with mobile number issued by the school.
- (2) The attendant of a school bus shall wear the following uniform: -
 - (a) Navy blue bush-shirt.
 - (b) Navy blue full pant.
 - (c) Identity card and name plate with mobile number issued by the school.
- (3) In case of lady attendant, she will wear navy blue saree.
- (4) The driver of school van shall wear the following uniform: -
 - (a) Gray shirt.
 - (b) Gray full pant.
 - (c) Name plate with mobile number issued by the school in case of school owned vehicle or by the registered owner in case of vehicle owned by a private person.
- (5) The attendant of school van shall wear the following uniform: -
 - (a) Navy blue bush-shirt.
 - (b) Navy blue full pant.
 - (c) Name plate with mobile number issued by the school in case of school owned vehicle or by the registered owner in case of vehicle owned by a private person.
- (6) In case of lady attendant, she will wear navy blue saree.

222 L. General Conditions for School Vehicle Permit- (1) Educational Institution Bus—

An educational institution bus—

- (a) shall be painted in yellow colour and the word “School Bus” will be written on the front and rear side and the name of school shall be written on both the sides of bus for recognition of school.
- (b) ¹[other than mini and midi buses, shall have an emergency exit on the opposite side of service door. In addition, there shall be an emergency exit on the rear side of bus. However, in case of mini and midi buses there shall be minimum one emergency exit and it shall be situated either on the opposite side of service door or at the rear side of the bus. The lower edge of the emergency door shall be at the level of bus floor and top edge shall be at the level of upper edge of window. The width of emergency exit shall be 550 mm.]
- (c) shall be fixed with the convex cross mirrors so that the driver may see the entry and exit gate and the front of the rear wheels and the bus will also be equipped with parabolic rear-view mirror so that the driver may see clearly the inside scene of the Bus.
- (d) shall have doors fitted with reliable locks and a hand rail will also be fixed in the lowest step of the front gate so that children may enter and come out.

1. Clause (b) in Rule 222 L (1) substituted by Notification No. 2/2022/526/xxx-4-2022-17(Sa)/2018, dated 2nd May, 2022 (Twenty Eighth Amendment) Rules, 2022 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 2nd May, 2022 (w.e.f. 02-05-2022)

- (e) Shall have tightly fixed holding rod on the roof. It should not be slippery.
- (f) shall not be fitted with the pressure horn or the multi tone horn in any case, but there should be an alarm bell/siren, which will be used in emergency.
- (g) must be fitted with a transparent first aid box and 02 BIS mark fire extinguishers, having capacity of 02 kg of which one should be fitted in the cabin and other near the rear emergency gate.
- (h) Should have no provision of seat on the cylinder in the CNG driven vehicles.
- (i) must be equipped with rack below the seat so that bags of children may be kept properly.
- (j) ¹[shall be equipped with seat belts.]
- (k) Shall have hazard warning light which shall be activated at that time when the vehicle will be stopped for boarding or alighting of the children.
- (l) Must have steel rods fitted parallel in the window in such way that the gap between two may not be more than 05 centimeters.
- (m) shall be fitted with speed limit device so that the speed thereof may not cross the speed limit of 40 km per hour.
- ²[(m-i) shall not carry more number of students than the seating capacity mentioned in the certificate of registration.

Provided that in the case of School Buses, carrying children below the age of twelve years, 1.5 times of the seating capacity shall be permitted.]

- (n) ¹[must be equipped with Vehicle Location Tracking Device. This provision shall come into effect from the date notified separately by State Government.
- (o) The provision of CCTV camera in such bus will be compulsory. This provision shall come into effect from the date notified separately by State Government.
- (p) there shall be one attendant in addition to the driver and in case of girl children the attendant should be female. One teacher may also travel in such bus as far as possible.]
- (q) the list of the school children being carried must be kept with details as the name of children (as in school), class, home address, phone no., mobile no., blood group and nearby place of his/her house. This list will be verified by the principal of the school concerned and the details of the routes there of will also be mentioned.

1. Clause (j) (n) (o) (p) in Rule 222 L (1) substituted by Notification No. 2/2022/526/xxx-4-2022-17(Sa)/2018, dated 2nd May, 2022 (Twenty Eighth Amendment) Rules, 2022 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 2nd May, 2022 (w.e.f. 02-05-2022)

2. Clause (m-i) in Rule 222 L (1) inserted by Notification No. 2/2022/526/xxx-4-2022-17(Sa)/2018, dated 2nd May, 2022 (Twenty Eighth Amendment) Rules, 2022 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 2nd May, 2022 (w.e.f. 02-05-2022)

- (r) That the driver or attendant must carry one set of mobile phone, so that in case of emergency the bus driver or the attendant may inform about the incident to the School Authority and make necessary arrangements for safety of school children.
- (s) If the authorised person (recognized mutually by the school and parents) does not come to pick the child of nursery or kindergarten class then such children will be brought back to the school and will be handed over to guardian by calling them in school.
- (t) space for safe boarding and off loading inside the school campus is provided as per requirement.
- (u) In case of physically handicapped children, the attendant or the driver shall himself ensure safe boarding and off loading in the bus.

(2) Contract carriage bus: -

A contract carriage bus—

- (a) plying exclusively in a school, shall be painted in yellow colour and the word “School Bus” will be written on the front and rear side. The name of school shall be exhibited on both the sides of bus for recognition of school.
- (b) having contract in addition to this contract shall not be required to be painted in yellow colour. Provided that yellow strip of 400 mm shall be painted on all sides of the bus 300 mm below the window.
- (c) ¹[other than mini and midi buses, shall have an emergency exit on the opposite side of service door. In addition, there shall be an emergency exit on the rear side of bus. However, in case of mini and midi buses there shall be minimum one emergency exit and it shall be situated either on the opposite side of service door or at the rear side of the bus. The lower edge of the emergency door shall be at the level of bus floor and top edge shall be at the level of upper edge of window. The width of emergency exit shall be 550 mm.]
- (d) shall be fixed with convex cross mirrors so that the driver may see the entry and exit gate and the front of the rear wheels and the bus will also be equipped with parabolic rear-view mirror so that the driver may see clearly the inside scene of the bus.
- (e) shall have doors fitted with reliable locks and a hand rail will also be fixed in the lowest step of the front gate so that children may enter and come out.
- (f) Shall have tightly fixed rod on the roof. It should not be slippery.
- (g) ¹[shall be equipped with seat belts.]
- (h) shall not be fitted with the pressure horn or the multi tone horn in any case, but there should be a alarm bell/siren which will be used in emergency.

1. Clause (c) and (g) in Rule 222 L (2) substituted by Notification No. 2/2022/526/xxx-4-2022-17(Sa)/2018, dated 2nd May, 2022 (Twenty Eighth Amendment) Rules, 2022 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 2nd May, 2022 (w.e.f. 02-05-2022)

- (i) must be fitted with a transparent first aid box and 02 BIS mark fire extinguishers having capacity of 02 kg of which one should be fitted in the cabin and other near the rear emergency gate.
- (j) Should have no provision of seat on the cylinder in the CNG driven vehicles.
- (k) must be equipped with rack below the seat so that bags of children may be kept properly.
- (l) Shall have hazard warning light which shall be activated at that time when the vehicle will be stopped for boarding or alighting of the children.
- (m) must have, steel rods fitted parallel in such a way that the gap between two may not be more than 05 centimeters.
- (n) shall be fitted with speed limit device so that the speed there of may not cross the speed limit of 40 km per hour.

¹[(n-i) shall not carry more number of students than the seating capacity mentioned in the certificate of registration.

Provided that in the case of School Buses, carrying children below the age of twelve years, 1.5 times of the seating capacity shall be permitted.]

- (o) ²[must be equipped with Vehicle Location Tracking Device. This provision shall come into effect from the date notified separately by State Government.
- (p) The provision of CCTV camera in such bus will be compulsory. This provision shall come into effect from the date notified separately by State Government.

Every owner of contract carriage or School Authority as case may be shall ensure that-

- (q) there shall be one attendant in addition to the driver and in case of girl children the attendant should be female. One teacher may also travel in such bus as far as possible.]
- (r) The list of the school children shall be carried therein with details of the children as the name of children (as in school), class, home address, phone no. and mobile no of the guardian, blood group and nearby place of his/her house. This list will be verified by the principal of the school concerned and the details of the routes there of will also be mentioned.
- (s) the driver or attendant must carry one set of mobile phone, so that in case of emergency the bus driver or the attendant may inform about the incident to the School Authority and make necessary arrangements for safety of school children.
- (t) If the authorised person (recognized mutually by the school and parents) does not come to pick the child of nursery or kindergarten class then such children will be brought back to the school and will be handed over to guardian by calling them in school.

1. Clause (n-1) in Rule 222 L (2) inserted by Notification No. 2/2022/526/xxx-4-2022-17(Sa)/2018, dated 2nd May, 2022 (Twenty Eighth Amendment) Rules, 2022 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 2nd May, 2022 (w.e.f. 02-05-2022)

2. Clause (o) (p) (q) in Rule 222 L (2) substituted by Notification No. 2/2022/526/xxx-4-2022-17(Sa)/2018, dated 2nd May, 2022 (Twenty Eighth Amendment) Rules, 2022 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 2nd May, 2022 (w.e.f. 02-05-2022)

- (u) space for safe boarding and off loading inside the school campus must be provided as per requirement.
- (v) In case of physically handicapped children, the attendant or the driver shall himself ensure safe boarding and off loading in bus.

(3) School van

A school Van–

- (a) shall be painted in yellow colour. It shall display a board of the size 18 inches in length and 8 inches height on front and rear of the vehicle. The name of the school shall be exhibited on the board. Vans not exclusively used for school duty will have yellow strip of 250 mm on all sides of van 200mm below window level.
- (b) shall be closed body type. No vehicle with canvas hood shall be permitted as school van.
- (c) Must be attached with a carrier to carry the tiffins and bags of the children.
- (d) ¹[shall be equipped with first aid box and one fire extinguisher of 02Kg of BIS mark.]
- (e) Shall have no provision of seat on the cylinder if it is a CNG driven vehicle.
- (f) ¹[shall be equipped with seat belts.]
- (g) shall not be fitted with the pressure horn or the multi tone horn in any case, but there should be an alarm bell/siren which will be used in emergency.
- (h) shall be fitted with speed limit device so that the speed there of may not cross the speed limit of 40 km per hour.

²[(h-i) shall not carry more number of students than the seating capacity mentioned in the certificate of registration.

Provided that in the case of School vans, carrying children below the age of twelve years, 1.5 times of the seating capacity shall be permitted.]

- (i) ¹[must be equipped with Vehicle Location Tracking Device. This provision shall come into effect from the date notified separately by State Government.
- (j) The provision of CCTV camera in such school vans shall be compulsory. This provision shall come into effect from the date notified separately by State Government.

The Van owner or School Authority as the case may be shall ensure that: -

- (k) ¹[there shall be one attendant in addition to the driver and in case of girl children the attendant should be female.]

1. Clause (d) (f) (i) (j) and (k) in Rule 222 L(3) substituted by Notification No. 2/2022/526/xxx-4-2022-17(Sa)/2018, dated 2nd May, 2022 (Twenty Eighth Amendment) Rules, 2022 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 2nd May, 2022 (w.e.f. 02-05-2022)

2. Clause (h-i) in Rule 222 L(3) inserted by Notification No. 2/2022/526/xxx-4-2022-17(Sa)/2018, dated 2nd May, 2022 (Twenty Eighth Amendment) Rules, 2022 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 2nd May, 2022 (w.e.f. 02-05-2022)

- (l) the list of the school children being carried shall be kept with details as the name of children (as in school), class, home address, phone no., mobile no., blood group and nearby place of his/her house. This list will be verified by the principal of the school concerned and the details of the routes there of will also be mentioned.
- (m) the driver or the attendant must carry one set of mobile phone, so that in case of emergency the van driver or the attendant may inform about the incident to the School Authority and make necessary arrangements for safety of school children.
- (n) If the authorised person (recognized mutually by the school and parents) does not come to pick the child of nursery or kindergarten class then such children will be brought back to the school and will be handed over to guardian by calling them in school.
- (o) If the authorised person (recognized mutually by the school and parents) does not come to pick the child of nursery or kindergarten class then such children will be brought back to the school and will be handed over to guardian by calling them in school.
- (p) space for safe boarding and off loading inside the school campus must be provided as per requirement.
- (q) In case of physically handicapped children, the attendant or the driver shall himself ensure safe boarding and off loading in bus.

222 M. Interpretation: - For the purpose of this chapter-

- (a) “Attendant” means a person appointed by a school to carry out the work of attendant.
- (b) “Committee” means the District School Vehicles Transport Safety Committee constituted under rule 222 E.
- ¹[(b-i) — “Midi Bus” means an omni bus having seating capacity 23 to 37.
- (b-ii) — “Mini Bus” means an omni bus having seating capacity 13 to 22.]
- (c) “School” means a government or a private institution which imparts education to the students from nursery to class-12th.
- (d) “School Authority” means the Principal, the Head Master or a senior teacher authorised by the principal of a school.
- (e) “School Van” means a contract carriage vehicle which is used exclusively in aschool, or a college for transporting school children and having seating capacity upto13 including driver.
- (f) “School Vehicle” means such a vehicle being exclusively used to transport the school children, either owned by school or on contract.
- (g) The School Transport safety committee means the committee constituted U/R 222-G.

1. Clause (b-i) and (b-ii) in Rule 222 M inserted by Notification No. 2/2022/526/xxx-4-2022-17(Sa)/2018, dated 2nd May, 2022 (Twenty Eighth Amendment) Rules, 2022 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 2nd May, 2022 (w.e.f. 02-05-2022)

CHAPTER X MISCELLANEOUS

223. Authorities to recover penalty— The penalties under sub-section (1) of Section 201 shall be recoverable by the following officers having jurisdiction over the area where the disabled vehicle is kept: —

- (i) officer of the Transport Department not below the rank of Assistant Transport Officer;
- (ii) an Executive Magistrate not below the rank of Sub-Divisional Magistrate; and
- (iii) a police officer in uniform not below the rank of Deputy Superintendent of Police.

224. Undercharge of fees under Chapters II, III, IV and V of the Act and Rules— (1) If any undercharge in the levy of fees provided in the Motor Vehicles Act, 1988 and rules made there under is discovered at any time in respect of any person, the authority prescribed in Chapters II, III, IV and V of the Act or the Rules made there under, shall issue a notice to the person concerned to pay up the deficiency.

(2) Such notice may be sent to the person by post or may be served upon him in person or upon any adult member of his family. If the notice cannot be served in the manner aforesaid, it may be served by affixing it in some conspicuous part of his place of residence or business or in such manner as the authority competent to recover such deficiency may think fit.

(3) If such person fails to pay up the deficiency within two weeks from the date of service of the said notice, the authority so prescribed shall forward to the Collector, a certificate under his signature specifying the amount of deficiency recoverable from such person and the Collector, on receipt of such certificate shall proceed to recover such deficiency as if it were arrears of land revenue.

225. Temporary authorisation in lieu of certain documents— (1) Where the holder of a permit submits the permit to the State or Regional Transport Authority for renewal or countersignature of the permit or for any other purpose or a police officer or any Court or other competent authority takes temporary possession of a permit or the registration certificate of fitness or the driving licence or the conductor's licence hereinafter called in this rule "the document" from the holder thereof for any purpose, the State or Regional Transport Authority or the police officer or the Court or other competent authority, as the case may be, shall immediately, furnish to the holder a receipt for the document and a temporary authority in Form SR-32 to ply the vehicle during such period as may be specified in the said temporary authorisation, and during the said period, the production of the temporary authorisation on demand shall be deemed to be the production of the document:

Provided that the authority by which the temporary authorisation was granted shall extend the period for which the temporary authorisation is to remain valid until the document is returned but such extension shall not be beyond the period of validity of the document.

(2) Until the document referred to in sub-rule (1) is returned to the holder thereof, the vehicle concerned shall not be plied beyond the period specified in the temporary authorisation referred to in sub-rule (1) or, as the case may be, as extended under the proviso to that sub-rule.

(3) No fee shall be payable in respect of such temporary authorisation.

226. Duties, powers and functions of the officers of the Transport Department— (1) All officers of the Transport Department shall be responsible to administer and enforce the provisions of the Act and the rules, regulations, or notifications made or used thereunder and carry out such duties as have been assigned to them under these rules or such other duties as may be assigned to them.

(2) The officers of the Transport Department shall be responsible for the regulation and proper control of traffic and transport within their respective charge and inspection of stands, collecting, forwarding and or distributing agents, Drivers Training Schools, and Authorised Testing Stations with a view to ensuring adequacy of the provisions of amenities for the public in general.

227. Officer of Transport Department: Powers of— ¹[(1) The officers of the Transport Department specified in Column 2 below, shall exercise the powers under the provision of sections specified against them in Column 3:

Sl. No.	Officer	Sections
1.	Transport Commissioner, Uttar Pradesh	114(1),130(2),130(3),136,203, 206,207 and 213(5)
2.	Additional Transport Commissioner, Uttar Pradesh	-do-
3.	Deputy Transport Commissioner	-do-
4.	Secretary, State Transport Authority, Uttar Pradesh	-do-
5.	Additional Secretary, State Transport Authority, Uttar Pradesh	-do-
6.	Assistant Transport Commissioner, Uttar Pradesh	-do-
7.	Regional Transport Officer	-do-
8.	Assistant Regional Transport Officer	-do-
9.	Passenger/Goods Tax Officer	114(1),130(2),130(3),136,203, 206 and 207(1)
10.	Passenger/Goods Tax Superintendent	114(1) and 206]

1. Sub-rule (1) in Rule 227 substituted by Notification No. 1513/xxx-4-2013-88-89, dated 31st October, 2013 (Fifteenth Amendment) Rules, 2013 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 31st October, 2013 (w.e.f. 31-10-2013)

(2) An officer of the Transport Department specified in Column 1 of sub-rule (1) shall carry with him an identity-card issued by the Transport Commissioner in Form SR-50.

(3) ¹[The uniform to be worn by the various officers of the Transport Department mentioned in Column 2 below, shall be such as mentioned against each in Column 3:

Sl.No.	Officer	Uniform
1	2	3
(1)	Additional Transport Commissioner Enforcement)	(i) Khaki forage cap with monogram UP.T.S.;
		(ii) Khaki Coat (open collar) khaki bush shirt or khaki shirt with trousers of police pattern;
		(iii) Tie and round weeven whistle cord of light khaki colour;
		(iv) Shoulder with monogram U.P.T.S.;
		(v) Cross belt of police pattern of dark brown leather with silver fittings;
		(vi) Ashok Stambh emblem along with two five-pointed stars on the shoulder strap;
		(vii) Brown shoes (as in the case of Indian Army);
		(viii) Name badge with name and designation prominently exhibited on the front of the uniform
(2)	Regional Transport Officer Enforcement)	(i) Khaki forage cap with monogram UP.T.S.;
		(ii) Khaki Coat (open cottar) khaki bush shirt or khaki shirt with trousers of police pattern;
		(iii) Tie and round weeven whistle cord of light khaki colour;
		(iv) Shoulder with monogram U.P.T.S.;
		(v) Cross belt of police pattern of dark brown leather with silver fittings;

1. Sub-rule (3) in Rule 227 substituted by Notification No. 1513/xxx-4-2013-88-89, dated 31st October, 2013 (Fifteenth Amendment) Rules, 2013 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 31st October, 2013 (w.e.f. 31-10-2013)

Sl. No.	Officer	Uniform
1	2	3
		(vi) Ashok Stambh emblem on the shoulder strap;
		(vii) Brown shoes (as in the case of Indian Army);
		(viii) Name badge with name and designation prominently exhibited on the front of the uniform
(3)	Assistant Regional Transport Officer (Enforcement)	(i) Khaki forage cap with monogram U.P.T.S.;
		(ii) Khaki Coat (open collar) khaki bush shirt or khaki shirt with trousers of police pattern in khaki;
		(iii) Tie and round weeven whistle cord of light khaki colour;
		(iv) Shoulder badge with monogram U.P.T.S.;
		(v) Cross belt of police pattern of dark brown leather with silver fittings;
		(vi) Three five-pointed silver printed star on the shoulder strap;
		(vii) Brown shoes (as in the case of Indian Army);
		(viii) Name badge with name and designation prominently exhibited on the front of the uniform.
(4)	Passenger / Goods Tax Officer or Senior Motor Vehicle Inspector	(i) Khaki forage or beret cap with monogram U.P.T.D.;
		(ii) Khaki Coat (open collar) khaki bush shirt or khaki shirt with trousers of police pattern in khaki;
		(iii) Tie and round weeven whistle cord of light khaki colour,
		(iv) Shoulder badge with monogram U.P.T.D.;
		(v) Cross belt of police pattern of dark brown leather with silver fittings;
		(vi) Three five-pointed yellow printed stars on half red half black parallel shoulder strap,
		(vii) Brown shoes (as in the case of Indian Army);
		(viii) Name badge with name and designation prominently exhibited on the front of the uniform.

Sl. No.	Officer	Uniform
1	2	3
(5)	Passenger Tax Superintendent	(i)Khaki for age cap with monogram U.P.T.D.;
		(ii) Khaki Coat (open collar) khaki bush shirt or khaki shirt with trousers of police pattern in khaki;
		(iii)The round weeven whistle cord of light blue colour;
		(iv) Cross belt of police pattern of dark brown leather with silver fittings;
		(v)Silver printed buttons;
		(vi)Black shoes;
		(vii) Two five pointed stars measuring 25 mm in diametre. The star should be slightly frosted but without any decision in the center. Shoulder Badge with letters U.P.T.D, in black letters will be worn at the base of shoulder strap. The stars and letters will be of white metal;
		(viii) Name badge with name and designation prominently exhibited on the front of the uniform.]

(4) ¹[Any police officer or officers specified in sub-rule (1) shall seize and detain the vehicle under Section 207 and shall keep the same in safe custody to the police station or traffic post or any other place duly notified by the Transport Commissioner for this purpose.

(5) The officer in-charge of the police station or traffic post or the officer/person in-charge of the other place as specified in sub-rule (4) shall ensure that the vehicle is kept in safe custody along with the goods contained therein, if any, at the time of keeping the same in custody.

(6) The owner or concerned person of the seized vehicle may get the vehicle released on the production of an order issued by the competent authority to the officer- in-charge of the police station or traffic post or other place specified in sub-rule (4) after payment of rental charges as specified in sub-rule (7). Procedure for payment of rental charges and expenditure shall be such as may be laid down by order of the Transport Commissioner.

1. Sub-rule (4), (5), (6) & (7) in Rule 227 substituted by Notification No. 249/xxx-4-2014-8(19)-2013, dated 28th February, 2014 (Sixteenth Amendment) Rules, 2014 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 28th February, 2014(w.e.f. 28-02-2014)

(7) The rental charges to be charged under sub-rule (6) shall be as follows: —

(i)	For heavy motor vehicles	Rupees one thousand and five hundred per vehicle for first week or part thereof and after that, rupees one fifty per day.
(ii)	For medium motor vehicles	Rupees one thousand per vehicle for first week or part (hereof and after that, rupees one hundred per day.
(iii)	For light motor vehicles	Rupees one hundred per vehicle for first week or part thereof and after that, rupees fifty per day.]

228. Power of the State Government to give directions— The State Government may, from time to time, in public interest by notified order, give to a transport authority referred to in Section 68, such directions or guidelines consistent with the Act as it considers necessary and in performance of its functions, the authority shall comply with such directions or guidelines.

¹[FIRST SCHEDULE
[See Rule 41(6)]

Letters allowed to the Registering Authority to be used in assigning the Temporary Registration mark: —

S. No.	Name of District	Letter Allotted
1.	Agra	UBA
2.	Aligarh	UBB
3.	Allahabad	UBC
4.	Ambedkar Nagar	UBE
5.	Amethi	UEA
6.	Auraia	UBF
7.	Azamgarh	UBD
8.	Badaun	UBP
9.	Bagpat	UBR
10.	Bahraich	UBG
11.	Ballia	UBH
12.	Balrampur	UBS
13.	Banda	UBJ
14.	Barabanki	UBK
15.	Bareilly	UBM
16.	Basti	UBL
17.	Bijnore	UBN
18.	Bulandshahar	UBQ
19.	Chandauli	UBT
20.	Chitrakut	UBU
21.	Deoria	UBV
22.	Etah	UBW
23.	Etawah	UBX
24.	Faizabad	UBY
25.	Farrukhabad	UB2
26.	Fatehpur	UCA
27.	Firozabad	UCB
28.	Gautambuddh Nagar	UCF
29.	Ghaziabad	UCG
30.	Ghazipur	UCC
31.	Gonda	UCD
32.	Gorakhpur	UCE
33.	Hamirpur	UCH
34.	Hapur	UEB
35.	Hardoi	UCJ

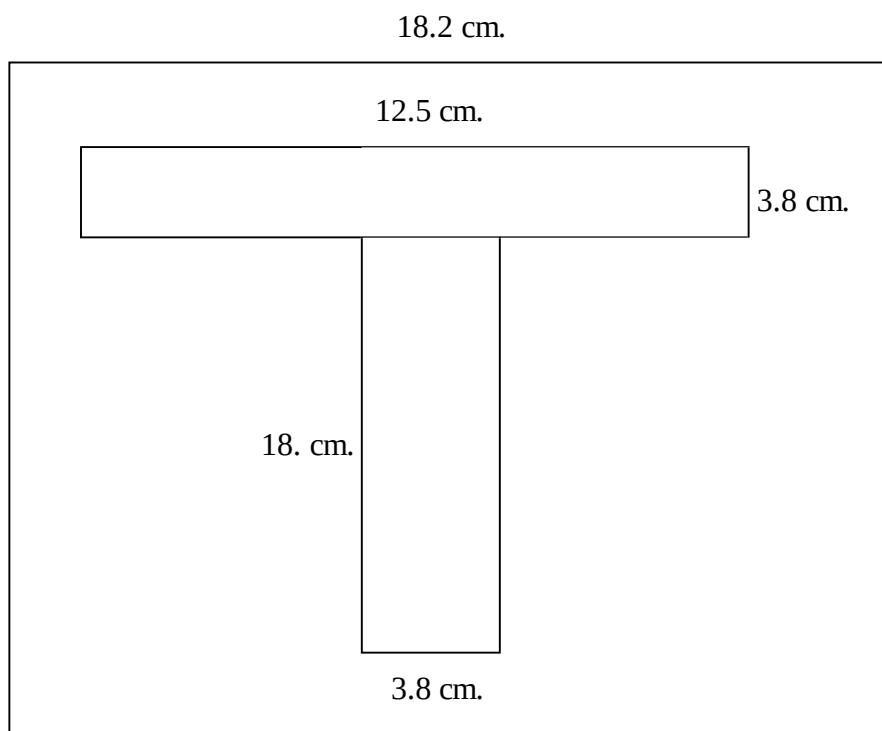
1. First Schedule substituted by Notification No. 252/xxx-4-2014-20(75)-2001, dated 25th February, 2014 (Seventeenth Amendment) Rules, 2014 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 25th February, 2014 (w.e.f. 25-02-2014)

S. No.	Name of District	Letter Allotted
36.	Hathras	UCK
37.	Jalaun	UCL
38.	Jaunpur	UCM
39.	Jhansi	UCP
43.	KanpurNagar	UCS
44.	Kashiramnagar	UCU
45.	Kaushambi	UCV
46.	Kheeri	UCQ
47.	Kushinagar	UCW
48.	Lalitpur	UCZ
49.	Lucknow	UCX, UCY
50.	Manarajganj	UDH
51.	Manoba	UDJ
52.	Mainpuri	UDA
53.	Mathura	UDE
54.	Mau	UDG
55.	Meerut	UD8
56.	Mirzapur	UDC
57.	Muradabad	UDD
58.	Muzaffarnagar	UDF
59.	Pilibhit	UDL
60.	Pratapgarh	UDK
61.	Rae-Bareilly	UDM
62.	Rampur	UDN
63.	Saharanpur	UDP
64.	Sambhal	UEC
65.	Sant Kabir Nagar	UDQ
66.	Sant Ravidas Nagar	UDR
67.	Shahjahanpur	UDS
68.	Shamli	UED
69.	Shravasti	UDT
70.	Siddharthnagar	UDW
71.	Sitapur	UDU
72.	Sonbhadra	UDX
73.	Sultanpur	UDV
74.	Unnao	UDY
75.	Varanasi	UDZ

SECOND SCHEDULE

[See Rule 174(1)]

DISTINGUISHING MARK FOR TRAILER AND THE VEHICLE DRAWING IT



Note: — The dimensions shall not be less than those shown above.

FORM SR-1

[See Rule 8]

Intimation of loss or destruction of licence and application for duplicate

To,

The Licensing Authority,
.....

I of (permanent address)
..... and (present address)
(father's name) here by report that driving licence no
..... issued by the Licensing Authority.....
on or about the day.

1. Has been lost/destroyed in the following circumstances.
2. I hereby apply for a duplicate licence.
3. I have paid the prescribed fee Rs.....vide receipt No
dated
4. I attach three clear copies of a recent photograph of myself.

* Date

Signature or thumb-impression of applicant

For use in the office of Licensing Authority

PART 1

- (1) Duplicate of driving licence no..... first granted
on..... has been Issued by me this day of
- (2) Application refused vide letter No.....dated.....
address..... to the applicant giving reason.

Date.....
authority

Signature and seal of the licensing

*Strike out alternative not required.

PART II

(Parts II, III and IV will be printed on a separate sheet to Part I and will be used if the application is made (to an authority other than the original licensing authority). Forwarded to the licensing authority for verification and completion of Part III

Date

Signature and seal of the licensing authority

PART III

Returned to the licensing authority.....

The photograph and signature/thumb-impression have been compared with my records.

No such licence appears to have been issued by this office.

Or

I am not satisfied that the applicant was the holder of the licence described.

Or

I am satisfied that the applicant was the holder of a licence by this office as follows:

- (1) Date of birth
- (2) Educational qualification
- (3) Blood group with RH factor
- (4) No
- (5) Date of issue
- (6) Last renewed by the licensing authority
- (7) Date of expiry
- (8) *Classes of vehicles
- (9) The licence

- (a) Entitled the holder to drive a transport vehicle w.e.f.

Or

- (b) Carried the following endorsement

Date

Signature and seal of the licensing authority

*Here fill in (a), (b), (c) etc. as specified in section 10(2) of the Act.

PART IV

Returned to the licensing authority for record

A duplicate licence has been issued by me on the day of* and a copy of the photograph affixed there to is attached.

I have, in my letter No.....dated.....declined to issue the duplicate licences applied for. A copy of that letter is attached.

Date.....

Signature and seal of the licensing authority

*Strike out alternative not required.

FORM SR-2
[See Rule12(a)]

Transport Vehicle Driver's Badge: Diameter of the badge to be 7 cms.

Name of the district from where authorisation is
issued.....

Transport Vehicle Driver No

FORM SR-3
[See Rule 17(XXVI)]

Record to be kept on goods carriages

Name and address of permit-holder

Registration No. of the vehicle

Name of the consignor

Name of the consignee

Date of origin

Point of origin

Point of destination

Nature & No. of Goods carriage	Weight in Kilogram	Total Freight Charges		Freight Charges	
		Rs.	P.	Rs.	P.

Name and address of the driver.....

No. of driving licence and its validity.....

Signature of the consignor.....dated.....

Signature of the Consignee

Signature of the Carrier

FORM SR-4

[See Rule 21(2)]

*Form of intimation to licensing authority when acting as
a conductor without conductor's licence.*

PART A

(To be filled in by the applicant)

To,
The licensing authority,
.....

I, son of permanent resident of.....
..... and presently residing at
intend to act as a conductor of the stage carriage bearing registration No.....
running on route for a Period ofdays
from.....to.....

I further declare that.....

- (a) My age, as on today, is.....
- (b) I have not been previously disqualified from holding a conductor's licence;
- (c) *I have not held conductor's licence issued by any licensing authority before;
- (d) I do not suffer from any disease or disability; and]
- (e) Reason for not being in possession of a conductor's licence is
- (f) *I have acted on previous occasions as a conductor without a licence for the
period from to on the service Run by on route or
area and have informed the licensing authority
vide letter dated..... (copy enclosed).

Dated.....

Signature of applicant

*Strike out whichever is not applicable.

PART B

(To be filled in by the permit holder)

Reasons for temporarily employing the above applicant as conductor;

.....
.....
.....

(Place)

Dated.....

Signature of the permit-holder with
permit number, vehicle number and
registration and the name of route.

PART C

(To be filled in by the licensing authority and returned to the applicant)

Sri son of presently residing at
..... is temporarily permitted to act as a conductor of stage carriage
No From..... to*/ is not permitted to
temporarily act as a conductor.

Date

Signature and seal of the
licensing authority

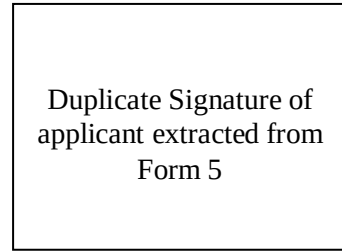
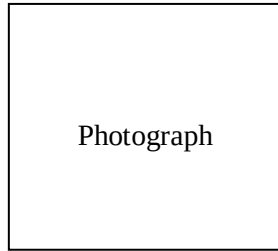
*Strike out whichever is not applicable.

FORM SR-5
[See Rule 22(1)]

Government of Uttar Pradesh Conductor's Licence

No.....

Name Sri son of..... of (present
address) (permanent address)
..... born on



Is licensed as a conductor and has been issued.....conductor's badge No.....
This licence is valid from to

Date.....

Signature and seal of the
Licensing Authority.

Renewals

Date of Renewal	Date of Expiry	Signature and seal of the Licensing Authority

Endorsements

Date	Particulars of the orders of disqualification in brief	Reasons for order of Disqualification in brief	Signature and seal of the endorsing authority

FORM SR-6
[See Rule 22(4)]

Form of application for conductor's licence

1. Name of applicant
2. Name of father.....
3. Present address.....
4. Permanent address.....
5. Date of birth..... (Proof to be furnished)
6. Educational qualifications..... (Proof to be furnished)
7. I have not previously held a conductor's licence No.....valid
up to issued by the licensing authority.....
8. I was disqualified for holding a conductor's licence for reasons mentioned
hereunder
9. I am not disqualified for holding a conductor's licence.
10. I enclose three copies of a recent photograph of myself, as required by the rules.
11. I enclose medical fitness certificate dated.....issued by.....
12. I here by declare that the above statements are true.
13. I have paid prescribed fee Rs..... vide receipt....., dated.....

Dated

Signature of Applicant

Duplicate Signature of
Applicant

FORM SR-7
[See Rule 22(6)]

*Medical certificate in respect of an applicant for
obtaining conductor's licence*

PART-A
(To be filled in by the applicant)

1. Name of the applicant
2. Father's name
3. Permanent address
4. Present address
5. Date of birth
6. Identification marks

Dated

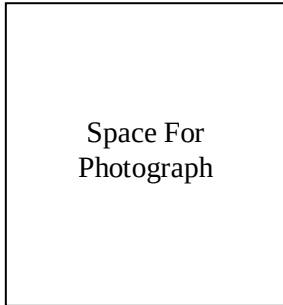
Signature of applicant

PART-B
(To be filled in by a registered medical practitioner,
authorised under the Rules)

1. Name of person examined
2. Father's name
3. Present address
4. Age
5. Identification marks
 - a)
 - b)
6. Is the applicant, to the best of your judgment, subject to epilepsy, vertigo or any mental ailment likely to affect his efficiency.
7. Does the applicant suffer from any heart or lung disorder which might interfere with the performance of his duties as a conductor
8. Does he show any evidence of being addicted to the excessive use of alcohol, tobacco or drug
9. Is he in your opinion generally fit as regards -
 - (i) bodily health
 - (ii) eyesight
 - (iii) mental ability..... and
 - (iv) hearing ability
10. Signature of the person examined

THE UTTAR PRADESH MOTOR VEHICLE RULES, 1998

I certify that the person examined has affixed his signature or thumb impression here to in my presence and that to the best of my knowledge and belief the above statements are true and that the attached photograph is reasonably correct likeness of the person described.



Name of registered medical practitioner.....

Registration No.....

Signature.....

Designation

(Regd. Medical Practitioner)

(Registered medical practitioner shall also sign on the photograph in a manner that part of his signature is on the form).

FORM SR-8

[See Rule 24(1)]

*Form of an application for renewal of a
Conductor's Licence*

I, here by apply for renewal of the conductor's licence No..... under the Uttar Pradesh Motor Vehicles Rules, 1998, which is due to expire / has expired on and was issued to me on the date of by the Licensing Authority.....

I, hereby declare that I am not subject to any disease or disability that is likely to hamper me in the performance of my duties, as a conductor of stage carriage, I enclose medical fitness certificate, dated issued by.....

I also declare that I have not been challenged or convicted under the Motor Vehicles Act, 1988 during the last three years nor my licence been suspended or cancelled by any competent authority, (in case of convictions or challans the same be mentioned in respect of previous three years)

Dated

Signature of the applicant

*Strike out whichever is not applicable.

FORM SR-9
[See Rule 24(2)]

Intimation of renewal of Conductor's Licence

From,

The Licensing authority

.....

To,

The Licensing authority

.....

Conductor's Licence No.....dated the.....issued by you in
favour of.....

Name

Name of father

Permanent address

has been renewed by me for a period of three years with effect from

Dated.....

Signature and seal of licensing authority

FORM SR-10

[See Rule 27(1)]

*Intimation of loss or destruction of conductor's
licence and application for duplicate*

PART-A

(To be filled in by the applicant)

To,

The Licensing Authority

I, son of
permanent resident of and presently residing at
do hereby report that Conductor's Licence No issued to me by
the Licensing Authority on the day of has been *lost/destroyed in
the following circumstances: —

(To be filled in.....)

2. I hold a Conductor' Badge No.....issued by the licensing authority.....
3. I hereby apply for a duplicate conductor's licence and tender rupees..... by
Cash/Challan No.....of Treasury.
4. I attach three clear copies of a recent photograph of myself.
5. I further declare that my conductor's licence is not impounded by any authority;
the licence has not been suspended or revoked by any authority and that the
licence has not, ceased to be valid by efflux of time.
6. I hereby declare that there have been *following/*no endorsement since the
date of last renewal/grant*.

Serial	Date of Endorsement	Particulars of the order of Endorsement	Reasons for the order of Endorsement	Name of the Authority making Endorsement
1	2	3	4	5
1.				
2.				

Dated.....

Signature of applicant

*Strike out alternative not required.

(For use in the office of the Licensing Authority)

PART-B

*Duplicate of Conductor's Licence No first granted on
has been issued by me this day of

*Application refused in letter No dated to
the applicant giving reasons.

Date

Signature and seal of the Licensing Authority

*Strike out alternative not required.

PART-C

(Part C, D and E will be printed on a separate sheet to Parts A and B and will be used, if the application is made to an authority other than the original licensing authority).

Forward to the Licensing Authority.....for verification and completion of Part D.

Dated

Signature and seal of the Licensing authority

PART-D

Returned to the Licensing Authority for record.

The photograph and signature* have been compared with my records. No such conductor's licence appears to have been issued by this office*.

*I am not satisfied that the applicant was the holder of the Conductor's Licence described.

*I am satisfied that the applicant was the holder of a badge and Conductor's Licence issued by this office as follows:

- (1) Badge No.....
- (2) Conductor's Licence No.....
- (3) Date of issue.....
- (4) Last renewed up to by the licensing authority.....

Date

Signature and seal of the Licensing Authority

*Strikeout alternative not required.

PART-E

Returned to the Licensing Authority for record.

A duplicate licence has been issued by me on the day of and a Copy of photograph affixed thereto Is attached.

*I, have in my letter No Dated declined to issue the duplicate conductor's licence applied for and I attach a copy of that letter.

Date

Signature and seal of the licensing authority

*Strikeout alternative not required.

FORM SR-11

[See Rule 31(1)]

Stage-carriage conductor's badge

District of the Licensing Authority Stage-Carriage Conductor I. No.
--

Badge shall bein a rectangular shape of 5x4 cms.

¹ [FORM SR-12

[See Rule 39(1)(e)]

Application for certificate of fitness grant/renewal

(To be filled in by the Inspecting Officer)

Inspection report of Transport vehicle No
 Regional/Sub-Regional Officer
 Place of inspection Date Serial No
 Name and address of the registered owner
 Registration No
 Type of body
 Name of manufacturer of vehicle
 Year of manufacturer
 Wheel base
 Chassis No
 Engine No
 Horse Power
 Unladen weight of the vehicle
 Gross vehicle weight
 Number and size of Tyre
 Front Axle Rear Axle
 Any Other Axle Tandem Axle

1. Body of the vehicle:

- (a) General condition of the body.....
- (b) Paint work.....
- (c) Upholstery.....
- (d) Length of the vehicle cms.....
- (e) Width of the vehicle cms
- (f) Height of the vehicle cms (Measures from ground).....
- (g) Head room cms
- (h) Gangway cms
- (i) Distance between back of two seatscms

1. Form S.R.-12, Substituted by Notification No.17/2023/715/xxx-4-2023-30-4099/22/2022, dated 19th May, 2023 (Twenty-Nine Amendment) Rules, 2023 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 19th May, 2023 (w.e.f. 19-05-2023)

- (j) Width of seat cms
- (k) Depth of seat cms
(In compliance with sub-rule (1), (2), (5), (6) and (7) of Rule 125C of CMVR as specified in AIS)
- (l) No. of Seat/Sleeper
- (m) Overhang cms
- (n) Distance between driver's seat and steering cms.
- (o) Steps distance from ground to the top of the lowest step cms.
- (p) Door Width cms.....
- (q) Emergency Exit/Gate –
 - (i) Back Side
 - (ii) Opposite side of the entrance
 - (iii) In rooftop
- (r) Grab rail cms.
- (s) Vehicle Location Tracking Device and Panic button
- 2. Front Axle and Steering:
 - (a) Steering lock
 - (b) Wheel free movement
 - (c) Steering connection
 - (d) Steering turning circle and back lash
 - (e) King pin and bushed
 - (f) Front wheel bearings
 - (g) Front wheel alignment
- 3. Transmission:
 - (a) Clutch
 - (b) Gear Box
 - (c) Universal joint
 - (d) Propeller shaft
 - (e) Differential
- 4. Engine:
 - (a) Fuel system
 - (b) Exhaust system
 - (c) Ignition system (Spark plug/suppress or cape/high-tension cable)
 - (d) Smoke emission density
 - (e) Valid PUC certificate

5. Lamps and Electric System:
 - (a) Head light and head light focus
(Bulb voltage to be ensured as per rules.)
 - (b) End-out line marker light
 - (c) Parking light
 - (d) Stop light
 - (e) Signal indicator
 - (f) Dipper
 - (g) Internal lightening system
 - (h) Fog lamp (if fitted)
 - (i) Warning light in ambulance
 - (j) Hazard warning light
 - (k) Number Plate light
 - (l) Battery
6. Silencer.....
(Ensure that there is no leakage in the silencer)
7. Breaks:
 - (a) Foot
 - (b) Hand
 - (c) Booster System
(In compliance with Rule 96(8) of CMVR.)
8. Condition of Suspension System
9. Compulsary Equipments:
 - (a) Electric Horn
 - (b) Windshield wiper
 - (c) Rear view mirror
 - (d) Speedometer
 - (e) Tools
 - (f) Spare wheel
 - (g) First aid box
 - (h) Tarpaulin
 - (i) Reflector
 - (j) Windshield glass
 - (k) Dashboard equipment

- (l) Reflecting tape (as per standard)
 - (i) In front – white color
 - (ii) Back – red color
 - (iii) Side – yellow color
- (m) Speed Governor Make..... Unique No.....
- (n) Rear under run protection device (for N2, N3, T3&T4)
- (o) Lateral side protection device (for N2, N3, T3&T4)
- (p) Fastag
- (q) Seat Belt
- (r) Fire extinguisher
- (s) CCTV (For School bus)
- (t) Vehicle – AC / Non AC
- 10. Condition of Tyres (as per wear indicator)
- 11. Wiring Harness
- 12. Door and Glass
- 13. Availability of Inspection Lamp
- 14. Marking of Registration Mark on the both sides
- 15. High Security Registration Plate
- 16. Condition of Chassis Frame
- 17. Priority Seats, Signs, securing of crutches/ canes/walker, hand rail/stanchions, controls at priority seats for differently abled passengers and passengers with reduced mobility
- 18. Wheel chair entry/housing/ locking arrangement for wheel chair for differently abled passengers and passengers with reduced mobility.....
- 19. Spray Suppression Devices (Mudflap, Fender Lining)
- 20. Additional Tests to be conducted on Electric Vehicles (as per GSR 652(e), dated 23-09-2021)-
 - (a) Protection against electric shock If system voltage is 60 V DC or 30 V AC
 - (b) Insulation Resistance Measurement Test If system voltage is 60 V DC or 30 V AC
 - (c) State of Charge (SOC) Indicator on Dashboard
- 21. Test Condition in following machines/ equipment's in established Authorised Automated Testing Station. (as per GSR 652(e), dated 23-09-2021)-
 - (a) Smoke Density Test
 - (b) Braking System
 - (c) Steering Gear

- (d) Side Slip Test
- (e) Suspension Test (for LMV)
- (f) Joint Play
- (g) Speed Governor
- (h) Head light focus
- (i) Sound Test
- 22. Cleanliness:
- 23. Any other defects:
- (1)
- (2)
- (3)
- (4)
- 24. Recommendation:
 - (i) Fitness granted from to
 - (ii) Rectify defects as mentioned serial No
 - (iii) Fitness refused (mention reason)

Name and signature of
Inspecting authority.
Authorised Testing Station
(Seal)]

FORM SR-13

[See Rule 39(3)]

Application for the date of inspection when the same is not endorsed on Form SR-12

(To be filled in by the Inspecting Officer)

1[****]

1. Form SR-13, Omitted by Notification No.17/2023/715/xxx-4-2023-30-4099/22/2022, dated 19th May, 2023 (Twenty-Nine Amendment) Rules, 2023 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 19th May, 2023 (w.e.f. 19-05-2023)

FORM SR-14
[See Rule 39(6)]

*Temporary authorization for use of vehicle when the
certificate of fitness has expired*

**The certificate of fitness registration mark last
Renewed by on has expired on,

I hereby, authorise the use of the vehicle until the day of
provided that it is forthwith removed with all reasonable dispatch to the area of the
authority by whom the certificate of fitness is due to be renewed:

Provided also that, while being used under this authorisation, the vehicle shall not...

*(a) carry more than Persons excluding the driver;

*(b) carry any goods;

*(c) be driven at a speed in excess of Kilometers per hour.

Place:

Dated:

Signature and seal of
Registering Authority,
Designation and Seal

*Here enters brief description of vehicle.
--

**Strike out if not required.

*Here enters brief description of vehicle.

**Strike out if not required.

To,

The Registering Authority,

.....

.....

I have today authorised temporarily the use of Motor
Vehicle No for its removal to the authorisation
issued is valid upto

Place:

Dated:

Signature and seal of
Registering Authority.

FORM SR-15

[See Rule 39(7)]

*Temporary authorization for removal of
a damaged vehicle*

Registration mark of vehicle
Make and model
Type of vehicle
Certificate of fitness
Number
Issued by
Last renewed on
by Date of inspection
Name and address of owner

The vehicle described above fails in my opinion to comply the provision of Chapter VII of the Motor Vehicles Act, 1988 and rules framed there under because of the following defects:

I have therefore, impounded the certificate of fitness. The vehicle may be produced for examination, at (1) on (2) or at (1) or on (2)

On or before the day of the vehicle may be drive to for repairs and thereafter to

It shall not be driven at a speed in excess of kilometres as per hour and (3) passengers and goods may be carried.

Dated:

Name, signature and seal of Authority

- (1) Here enter time and place.
- (2) Here enter date.
- (3) Here enter the word "No" unless for any very special reason some load is to be allowed.

FORM SR-16

[See Rule 39(8)]

*Temporary authorization for removal of a motor vehicle when the
certificate of fitness has been cancelled*

- (1) Registration mark of vehicle.....
- (2) Make and model.....
- (3) Type of vehicle.....
- (4) Certificate of fitness.....
 - (a) Number.....
 - (b) Issued by.....
 - (c) Last renewed (i) on.....
(ii) by.....
- (5) Date of inspection
- (6) Name and address (both) (Permanent and present)
of the owner

I am satisfied that the above-mentioned vehicle has ceased to comply with the requirements of:

- (A) Motor Vehicles Act 1988 and rules framed thereunder.....
.....(mention facts)

I have, therefore, impounded the certificate of fitness. The vehicles may be produced for re-examination at (1) on (2)
or at (1) on (2)

On or before the day of the vehicle may be driven to for repairs and there after to it shall not be driven at a speed in excess of kilometers per hour and (3)
passenger and goods may be carried.

The certificate of registration and any permit granted in respect of this vehicle shall also be deemed to be suspended until a new certificate of fitness has been obtained.

Dated:

Name, signature and seal of Authority

- (1) Here enter time and place.
- (2) Here enter date.
- (3) Here enter the word "No" unless for any special reason some load is to be allowed.

FORM SR-17

[See Rule 41(2)]

Form of application for Temporary Registration of a Motor Vehicle

To,

The Registering/Prescribed Authority

1. Full name of the person to be registered owner Son/Wife/Daughter of.....
2. Permanent address of the applicant (evidence to be produced)
3. Place where vehicle shall be permanently registered
4. Name and address of the dealer or manufacturer from whom the vehicle was purchased (sale certificate and certificate of road worthiness issued by the manufacturer to be enclosed)
5. Class of vehicle—
(If Motor Cycle, whether with or without gear)
6. The Motor Vehicle is:
 - (a) A new vehicle.....
 - (b) Ex-army vehicle.....
 - (c) Imported vehicle
7. Type of vehicle
8. Type of body
9. Maker's name
10. Month and year of manufacturer
11. Horse power
12. Cubic capacity
13. Maker's classification or if not known, wheel base
14. Chassis number
- (Affix Pencil Print)
15. Engine number
16. Seating capacity
- (Including driver)
17. Fuel used in the engine
18. Unladen weight
19. Gross vehicle weight
- (a) As certified by the manufacturer
- (b) to be registered
20. Colour/colours of body, if any
21. Purpose of temporary registration
22. I have paid the prescribed fee of rupees
- (Fee shall be as prescribed in Rule 81 of Central Rules in respect of registration of vehicle applied for)

I have declare that the vehicle has not been registered in any State in India.

Signature of the owner.

FORM SR-18

[See Rule 41(3)]

Temporary Registration Certificate

Temporary Registration Mark

Name with Father/Husband

Name and address of owner

1. Chassis No. of vehicle

2. Maker's name

3. Engine No

4. Type of body

5. Seating capacity

6. Colour

7. Purpose of Temporary Registration

8. This vehicle is held by the owner under hire purchase agreement/lease/hypothecation with
(Full name and address of the person with whom such agreement has been entered into by the owner)

Under the provisions of the Motor Vehicles Act, 1988, the vehicle described above has been temporarily registered by me and the registration is valid until the date..... of

Signature or thumb-impression of the owner

Signature and seal of Registering Authority

FORM SR-19

[See Rule 53(2)]

*Monthly return of Motor Vehicle Stolen and Motor Vehicle recovered
throughout Uttar Pradesh*

DURING THE CALENDAR MONTH.....

S. No	Name of district/ police station		Particulars of vehicle stolen/recovered						Date of FIR about theft	If recovered date and place of recovery	Follow -up action taken (in brief)
	District	Police Station	Registration No.	Chassis No.	Engine No.	Class/ Category	Maker's name	Owner's Name and Address			
1	2	3	4	5	6	7	8	9	10	11	12

Signature and Seal
of the competent Authority

Note—

- If the stolen vehicle indicated in Columns 4 and 10 was not recovered during the month under report, then a cross (x) may be made against in Column 11.
- If the recovered vehicle indicated in Columns 4 and 11 was not stolen during the month under report, then a cross (x) may be made against it in Column 10.

FORM SR-20

[See Rule 64(1)]

Application for permit in respect of a Stage Carriage

To,

The State/Regional Transport Authority.

In accordance with the provisions of Sections 69,70 and 80 of the Motor Vehicles Act, 1988, I/We hereby apply for the grant of permit under Section 66 of the said Act in respect of a stage carriage/Service of stage carriage, as hereunder set out:

1. Full name
2. Status of the applicant (whether individual, company or partnership firm, cooperative society etc.)
3. Name of the Father/Husband, in the case of an individual, and in the case of a firm or company, the name of the managing partner or the managing director, as the case may be.
4. Full address:
 - (i) Permanent
 - (ii) Present
(To be supported by attested copy of ration card, electricity bill etc. or any other valid documentary proof to the satisfaction of the transport authority in the case of an individual and in the case of company or firm certified copy of the memorandum of association or copy of the partnership deed).
5. The route/area for which the permit is desired
6. (a) Type of vehicle and registration number, if any;
(b) Minimum and maximum number of trips to be provided
or
in the case of service of stage carriage
 - (i) The maximum number of vehicles which will ply at any one time under the terms of the permit in the area or on any route and the maximum number of daily trips
 - (ii) The minimum number of the vehicle which will ply at anyone time under the terms of the permit and the minimum number of daily trips
 - (iii) The type or types of the vehicles to be used on the service and the approximate seating capacity are vehicles of not less than seats vehicles of not less than and not more than seats vehicles of not less than and not more than seats.
7. Particulars of time-table(s) proposed is/are appended
8. The standard rate of fare proposed to be charged is Per passenger Per kilometre.
9. Number of vehicles to be kept in reserve to maintain the service regularly as also to provide for special occasions
10. Particulars of arrangements made for housing, repair and maintenance of vehicles
11. Particulars of arrangements made for comfort and convenience of passengers and for the storage and safe custody of luggage

12. Particulars of any valid stage carriage or contract carriage permit held by the applicant in respect of
 - (a) This vehicle
 - (b) Any other vehicle
13. Whether any of the permits stated above has been subject to an order of suspension or cancellation in last four years, if so, give details
14. Whether all the taxes in respect of the vehicle covered by permits stated above have been paid up-to-date. If so enclose no dues certificate of the concerned Taxation Officer. If not give details of the arrears (to be supported by the certificate of concerned Taxation Officer).
15. I/We have paid the prescribed application fee of Rs.
16. I/We are in the possession of the vehicle/vehicles, certificate(s) registration and insurance which are being enclosed
17. I/We have not yet obtained possession of the vehicle and I/We understand that the permit will not be issued until I/We have produced the certificate of registration.
18. I/We hereby declare that above statements are true and agree that they inter alia shall be conditions of the permit issued to me/us.

Dated

Signature or thumb-impression
of the applicant(s)

Note— Strike out whichever is not applicable.

To be filled in by the office of the Transport Authority

1. Date of receipt.....
2. Date of application.....
3. Granted/granted in modified form/rejected on.....
4. Number of Permit issued.....
5. Serial number of permit/permits issued

(Name) Secretary
.....Transport Authority

To be filled in by the office and returned to the applicant

Received from Sri s/o Sri
R/o an application for permit in respect of stage carriage
for service of stage carriage the route/area on
and entered at Serial No of the register maintained under Rule 62 of
the Uttar Pradesh Motor Vehicles Rules, 1996.

Date:

Secretary,
.....Transport Authority

FORM SR-21

[See Rule 64(ii)]

Application for permit in respect of a contract carriage

To,

The State/Regional Transport Authority.

In accordance with the provisions of Sections 69, 73 and 80 of the Motor Vehicles Act, 1988, I/We, the undersigned hereby apply for permit under Section 66 of the said Act in respect of a contract carriage as hereunder set out:

1. Full name
2. Name of the father/husband in the case of an individual and in the case of a firm or company, the name of the managing partner or the managing director, as the case may be
3. Status of the applicant, whether individual, company or partnership firm, Co-operative society, etc
4. Full address:
 - (a) Permanent
 - (b) Present

(To be supported by attested copy of ration card, electricity bill or any other valid documentary proof of the satisfaction of the transport authority in the case of individual and in the case of company or firm certified copy of the memorandum of association or copy of the partnership deed).
5. Area or routes for which permit is desired
6. The type of the vehicle, its model and registration mark
7. Registered seating capacity
8. Particulars of service to be performed by the contract carriage (not-necessary in the case of motor cab), and the manner in which it is claimed that public convenience will be served.....
9. Whether fitted with taxi-metre (in the case of motor cab only)
10. Particulars of any valid stage carriage or contract carriage permit (or similar authorisation) held by the applicant:

(a) This vehicle:

Permit No	Issued by	Area	Period of Validity

(b) Any other vehicle

11. Particulars of any permit held by the applicant in respect of the use of any transport vehicle in any State during the last four years which has been the subject of any order of suspension or cancellation, if so, give details.
12. Whether all the taxes in respect of the vehicles covered by permits stated above have been paid up-to-date, if so, enclose no dues certificate of the concerned Taxation Officer, if not so give details of the arrears (to be supported by the

certificate of the concerned Taxation Officer).

13. Details of arrangements made for comfort and convenience of hirers and for the storage and safe custody of the luggage.....
14. I/We are in possession of vehicle and enclose herewith certificates of registration and insurance in respect of the vehicle.....
15. I/We have paid the prescribed application fee of Rs. in the shape of non-judicial stamps.
16. I/We have not yet obtained possession of the vehicle and I/We understand that the permit will not be issued until I/We produce the certificate of registration.
17. I/We hereby, declare that above statements are true and agree that they *inter alia* shall be conditions of the permits issued to me/us.

Date:

Signature or thumb-impression
of applicant(s)

*Strike out whichever is not applicable.

To be filled in by the office of the Transport Authority

1. Date of Receipt
2. Date of application
3. Date of
Circulation to members
Consideration at meeting

Decision by Chairman

4. Granted
Granted in modified form
Rejected
5. Number of permit

Secretary,
Transport Authority.

¹[FORM SR-21A
[See Rule 222 B(2)]

Application for permit in respect of a contract carriage
(If the contract between the Vehicle owner and the school is signed)

To,

The State/Regional Transport Authority.

In accordance with the provisions of Sections 69, 73 and 80 of the Motor Vehicles Act, 1988, I/We, the undersigned hereby apply for permit under Section 66 of the said Act in respect of a contract carriage as hereunder set out:

1. Full name
2. Name of the father/husband in the case of an individual and in the case of a firm or company, the name of the managing partner or the managing director, as the case may be
3. Status of the applicant, whether individual, company or partnership firm, Co-operative society, etc
4. Full address:
(c) Permanent
- (d) Present
- (To be supported by attested copy of ration card, electricity bill or any other valid documentary proof of the satisfaction of the transport authority in the case of individual and in the case of company or firm certified copy of the memorandum of association or copy of the partnership deed).
5. Area or routes for which permit is desired
6. The type of the vehicle, its model and registration mark
7. Registered seating capacity
8. Particulars of service to be performed by the contract carriage (not-necessary in the case of motor cab), and the manner in which it is claimed that public convenience will be served.....
9. Whether contract is served with school – Yes/No
10. Particulars of any valid stage carriage or contract carriage permit (or similar authorisation) held by the applicant:

(a) This vehicle:

Permit No	Issued by	Area	Period of Validity

(b) Any other vehicle

11. Particulars of any permit held by the applicant in respect of the use of any transport vehicle in any State during the last four years which has been the subject of any order of suspension or cancellation, if so, give details.

.....
1. Form SR-21-A , substituted by Notification No.02/2022/526/xxx-4-2022-17(Sa)-2018, dated 2nd May, 2022 (Twenty-Eighth Amendment) Rules, 2022 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 2nd May, 2022 (w.e.f. 02-05-2022)

12. Whether all the taxes in respect of the vehicles covered by permits stated above have been paid up-to-date, if so, enclose no dues certificate of the concerned Taxation Officer, if not so give details of the arrears (to be supported by the certificate of the concerned Taxation Officer).
13. Details of arrangements made for comfort and convenience of hirers and for the storage and safe custody of the luggage.....
14. I/We are in possession of vehicle and enclose herewith certificates of registration and insurance in respect of the vehicle.....
15. I/We have paid the prescribed application fee of Rs. in the shape of non-judicial stamps.
16. I/We have not yet obtained possession of the vehicle and I/We understand that the permit will not be issued until I/We produce the certificate of registration.
17. I/We hereby, declare that above statements are true and agree that they *inter alia* shall be conditions of the permits issued to me/us.

Date:

Signature or thumb-impression
of applicant(s)

*Strike out whichever is not applicable.

To be filled in by the office of the Transport Authority

1. Date of Receipt
2. Date of application
3. Date of
Circulation to members
Consideration at meeting

Decision by Chairman

4. Granted
Granted in modified form
Rejected
5. Number of permit

Secretary,
.....Regional Transport Authority.]

¹[FORM SR-21B
[See Rule 222 B (3)]

Application for permit in respect of a contract carriage

(If the contract between the vehicle owner and school or the guardian is signed)

To,

The State/Regional Transport Authority.

In accordance with the provisions of Sections 69, 73 and 80 of the Motor Vehicles Act, 1988, I/We, the undersigned hereby apply for permit under Section 66 of the said Act in respect of a contract carriage as hereunder set out:

1. Full name
2. Name of the father/husband in the case of an individual and in the case of a firm or company, the name of the managing partner or the managing director, as the case may be
3. Status of the applicant, whether individual, company or partnership firm, Co-operative society, etc.
4. Full address:
(e) Permanent
- (f) Present
- (To be supported by attested copy of ration card, electricity bill or any other valid documentary proof of the satisfaction of the transport authority in the case of individual and in the case of company or firm certified copy of the memorandum of association or copy of the partnership deed).
5. Area or routes for which permit is desired
6. The type of the vehicle, its model and registration mark
7. Registered seating capacity
8. Particulars of service to be performed by the contract carriage (not-necessary in the case of motor cab), and the manner in which it is claimed that public convenience will be served.....
9. Whether contract is served with school – Yes/No
10. Particulars of any valid stage carriage or contract carriage permit (or similar authorisation) held by the applicant:

(a) This vehicle:

Permit No	Issued by	Area	Period of Validity

(b) Any other vehicle

11. Particulars of any permit held by the applicant in respect of the use of any transport vehicle in any State during the last four years which has been the subject of any order of suspension or cancellation, if so, give details.

.....
1. Form SR-21-B, substituted by Notification No.02/2022/526/xxx-4-2022-17(Sa)-2018, dated 2nd May, 2022 (Twenty-Eighth Amendment) Rules, 2022 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 2nd May, 2022 (w.e.f. 02-05-2022)

12. Whether all the taxes in respect of the vehicles covered by permits stated above have been paid up-to-date, if so, enclose no dues certificate of the concerned Taxation Officer, if not so give details of the arrears (to be supported by the certificate of the concerned Taxation Officer).
13. Details of arrangements made for comfort and convenience of hirers and for the storage and safe custody of the luggage.....
14. I/We are in possession of vehicle and enclose herewith certificates of registration and insurance in respect of the vehicle.....
15. I/We have paid the prescribed application fee of Rs. in the shape of non-judicial stamps.
16. I/We have not yet obtained possession of the vehicle and I/We understand that the permit will not be issued until I/We produce the certificate of registration.
17. I/We hereby, declare that above statements are true and agree that they *inter alia* shall be conditions of the permits issued to me/us.

Date:

Signature or thumb-impression
of applicant(s)

*Strike out whichever is not applicable.

To be filled in by the office of the Transport Authority

1. Date of Receipt
2. Date of application
3. Date of
Circulation to members
Consideration at meeting

Decision by Chairman

4. Granted
Granted in modified form
Rejected
5. Number of permit

Secretary,
.....Regional Transport Authority.]

FORM SR-22

[See Rule 64(iii)]

Application for permit in respect of a goods carriage

To,

The State/Regional Transport Authority,

In accordance with the provisions of Sections 69,77 and 80 of the Motor Vehicles Act, 1988, I/We the undersigned here by apply for a permit under Section 66 of the said Act in respect of a goods carriage as here under set out:

1. Full name
2. Status of the applicant, whether individual, company or partnership firm, Co-operative society, etc.
3. Name of the father/husband (in the case of an individual and in the case of a firm or company, the name of the managing partner or the managing director, as the case may be).....
4. Full address:
(g) Permanent
(h) Present
(To be supported by attested copy of ration card, electricity bill or any other valid documentary proof of the satisfaction of the transport authority in the case of individual and in the case of company or firm certified copy of the memorandum of association or copy of the partnership deed).
5. Area or routes for which permit is desired
6. Nature of goods to be carried
(Specific mention to be made whether the applicant intends to carry dangerous and hazardous goods)
7. Type and capacity of vehicles including trailers and alternative trailers of articulated vehicle.....

Number of Vehicle	Type	Gross vehicle weight	Unladen Weight	Registration marks	Overall length	Overall width
1	2	3	4	5	6	7

8. Name, address and licence number of forwarding and collecting agency where to the vehicle to be attached
9. Particulars of any valid goods carriage permit (or similar authorisation held by the applicant)
10. Particulars of any permit held by the applicant which has been the subject to any order of suspension or cancellation during the preceding four years.
11. Standard rate of freight proposed to be charged for carriage of goods paisa per quintal per kilometre
12. I/We have paid the prescribed application fee of Rs. In the shape of non-judicial stamp.
13. I/We enclose the certificate(s) of registration of the vehicle(s).

14. I/We here by declare that the above statements are true and agree that they
Inter alia shall be conditions of any permit issued to me/us.

Date:

Signature or thumb-impression
of applicant(s)

To be filled in by the office of the Transport Authority

1. Date of Receipt
2. Date of application
3. Date of
Circulation to members
Consideration at meeting

Decision by Chairman

4. Granted
Granted in modified form
Rejected
5. Number of permit

Secretary,
Transport Authority
.....

FORM SR-23

[See Rule 64 (iv)]

Application for private service vehicle permit

To,
The Regional/State Transport Authority,
.....

In accordance with the provisions of Sections 69, 77 and 80 of the Motor Vehicles Act, 1988, I/We the undersigned, hereby apply for a private service vehicle permit under the provisions of Section 66 of the Act, as hereunder set out—

1. Full name
2. Name of the Father/Husband (in the case of an individual)
3. Address:
(a) Permanent
- (b) Present
4. The Area or routes for which permit is desired
5. The Purpose for which the permit is desired
6. The manner in which purpose of carrying persons, otherwise than for hire or reward or in connection with the trade or business carried on by applicant, will be served by the vehicle
7. Types and seating capacity of the vehicle—

Registration Mark of Vehicle	Type	Seating Capacity	Gross Vehicle Weight
1	2	3	4

Note— if the vehicle is not in the possession of the applicant, it will suffice if the figures in columns (3) and (4) are correct, within ten per cent above or below, subject to any limitation of weight in force. The certificate of registration must be presented to the transport authority so that the registration marks may be entered in the permit before the permit is issued.

8. The nature of the applicant's trade or business
9. Place of business (with postal address)
10. Specification of the persons to be carried to and from the place of business
11. Evidence of financial stability of the applicant
(e.g., particulars of the Income Tax and the Trade Tax return, for the immediately preceding year, furnished to the appropriate authorities)
12. I/We desire a permit valid for year, months and have paid the prescribed application fee of Rupees in the shape of non-judicial stamp.....
13. I/We here by, declare that the above statements are true and agree that they, Inter alia, shall be conditions of the permit issued to me/us.

Place:

Date:

Signature(s) or thumb

impression(s) of applicant(s)

To be filled in by the office of the Transport Authority

1. Date of Receipt
2. Date of application
3. Date of
Circulation to members
Consideration at meeting

Decision by Chairman

4. Granted
Granted in modified form
Rejected
5. Number of permit

Secretary,
Transport Authority
.....

¹[FORM SR-23A
[See Rule 222 B (1)]

Application for grant of permit to the educational Institution bus
(If the contract between the vehicle owner and the school is signed)

To,

Regional Transport Authority

In accordance with the provisions of Section 69, 70 and 71 of the Motor Vehicles Act, 1988, I/We, the undersigned hereby apply for a school bus/school van permit under section 66 of the act.

1. Full name
2. Name of the Father/Husband
3. Age
4. Address:
 - (a) Permanent
 - (b) Present(To be supported by attested copy of ration card, electricity bill or any other valid documentary proof of the satisfaction of the transport authority in the case of individual and in the case of company or firm certified copy of the memorandum of association or copy of the partnership deed).
5. Phone no
6. Area or routes for which permit is desired
7. School name and Time:
 1.
 2.
 3.
 4.
- 7A. The manner in which purpose of carrying persons, otherwise than for hire or reward or in connection with the trade or business carried on by the applicant, will be served by the vehicle
8. Seating capacity.....
9. The type of the vehicle, its model and registration mark.....
10. I/We are in possession of vehicle and enclose herewith certificates or registration and insurance in respect of the vehicle
11. I/We have not yet obtained possession of the vehicle and I/We will purchase and present the vehicle.
12. I/We hereby, declare that above statements are true.

Date:

Place:

1. Form SR-23-A substituted by Notification No.02/2022/526/xxx-4-2022-17(Sa)-2018, dated 2nd May, 2022 (Twenty-Eighth Amendment) Rules, 2022 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 2nd May, 2022 (w.e.f. 02-05-2022)

Signature or thumb-impression
of applicant(s)

To be filled in by the office of the Transport Authority

1. Date of Receipt
2. Date of application
3. Date of
Circulation to members
Consideration at meeting

Decision by Chairman

4. Granted
Granted in modified form
Rejected
5. Number of permit

Secretary,
..... Regional Transport Authority]

FORM SR-24

[See Rule 64(v)]

Application in respect of temporary permit

To,

The State/Regional Transport Authority,

.....

In accordance with the provisions of Sections 69 and 87 of the Motor Vehicles Act, 1988, I/We the under signed, hereby apply for a temporary permit under Section 66 of the Act, as here under set out:

1. Full name
2. Name of the Father/Husband (in the case of individual)
3. Address:
 - (c) Permanent
 - (d) Present
4. Nature of permit.....
Stage carriage / contract carriage /goods carriage
5. Purpose for which permit is required.....
6. Route/Area.....
7. Period of duration of permit from to..... (both days inclusive)
8. Justification of temporary need.....
9. Registration mark of the vehicle.....
10. Type and laden weight/seating capacity of the vehicle for which the permit is required.....
11. I have paid the prescribed application fee of Rs in the Shape of non-judicial stamps.....
12. I enclose no dues certificate of the concerned Taxation Officer in respect of the vehicle for which permit is required.....
13. I/We here by, declare that the above statements are true and agree that they, *inter alia*, shall be conditions of the permit issued to me/us.....

Date:

Place:

Signature or thumb-impression
of applicant(s)

To be filled in by the office of the Transport Authority

1. Date of receipt
2. Granted/granted in modified form/rejected on theday of
3. Permit number issued

Date:

Secretary,
Transport Authority

FORM SR-25

[See Rule 64(vi)]

Application for a Special Permit

To,

The Transport Authority

As my/our vehicle has been engaged by persons whose particulars are given below to visit the place mentioned hereunder, I/we, hereby, apply in accordance with the provisions of sub-section (8) of Section 88 of the Motor Vehicles Act, 1988, for grant of permit under Section 66 of that Act:

1. Name of the Registered owner.....
2. Name of the Father/Husband (in the case of individual)
3. Address:
(e) Permanent
- (f) Present
4. Registration mark of the vehicle
5. Purpose for which permit is required
6. Period of duration of permit from to
7. Type and seating capacity of the vehicle for which the permit is required
8. Routes through which the journey shall take place
9. Particulars of ordinary permit of the vehicle proposed to be engaged
- No. Route validity.....
10. I have paid the prescribed application fee of Rs in the Shape of non-judicial stamps.....
11. I/We have enclosed following bank drafts in lieu of the taxes of the concerned States Drafts / Drafts drawn through State Bank of India:

Sl. No.	Name of State	Amount	Nature of Tax	B.D. Number & Date	Authority whom remitted
1	2	3	4	5	6

12. I/We declare that there shall be two drives on the vehicle.
13. I/We here by, declare that the above statements are true and agree that they, *inter alia*, shall be conditions of the permit issued to me/us.
14. Particulars of the persons:

Sl. No.	Full Name	Father's / Husband's Name	Age	Place of Residence
1	2	3	4	5

Date:

Signature/thumb impression
of the applicant(s).

FORM SR-26

[See Rule 65(l)(i)]

Permit in respect of stage carriage

To,

.....Transport Authority
.....

Permit No

1. Name of the holder.....
2. Father's/Husband's name
(in the case of individual)
3. Address:
 - (a) Permanent
 - (b) Present
4.
 - (i) Registration mark of the vehicle
 - (ii) Model
 - (iii) Chassis Number
 - (iv) Engine Number
 - (v) Name of the financier, if any, with whom the vehicle is under hire purchase agreement
5. Number of passenger's seat with standing allowed if any,
6. Route/Area for which permit is valid
7. Period of validity/from to
8. Rate of fare approved Paise per passenger per kilometre.
9. Particulars of approved time-table
10. Number of daily single trips allowed
11. Goods, in addition to passengers and their personal luggage may be carried subject to the condition mentioned hereunder
12. Fare table shall be exhibited in the vehicle.
13. Time table shall be exhibited on the vehicle and at the bus stand.
14. Tickets shall be issued to passengers in Form (xiv) of the Uttar Pradesh Yatri Kar Niyamawali, 1962.
15. Monthly return shall be submitted to the Transport Authority in the manner prescribed by the State Government from time to time.
16. This permit shall be subject to the conditions laid down under Section 84 of the Motor Vehicles Act, 1988.

17. Other conditions:

- (1) That the vehicle covered by such a permit shall in no case be used in any public place during the period in which the registration certificate and token relating to it are or have been surrendered in accordance with the provision of the United Provinces Motor Vehicles Taxation Act 1935 and the Rules made thereunder have been suspended or cancelled;
- (2) That the vehicle covered by such a permit shall in no case be used in any public place unless the taxes levied by the State Government and payable in respect thereof have been duly paid and if tax is not duly paid within the period specified in the United Provinces Motor Vehicle Taxation Act, 1935, the Uttar Pradesh Motor Gadi (Yatri-Kar) Adhiniyam, 1962 or the Uttar Pradesh (Mal-Kar) Adhiniyam, 1964 as the case may be, it shall be presumed that the holder of permit has intentionally evaded the payment of such tax,
- (3) That save as provided in sub-section (2) of Section 82 the permit shall not be transferred to any other person except with the permission of the Transport Authority which granted the permit;
- (4) That the vehicle shall be used in the area or on the route or routes specified in the permit.
- (5) That the maximum number of persons or maximum weight of luggage that may be carried in the vehicle covered by the permit shall not exceed as given in the certificate of registration;
- (6) That only, such advertising matters as are directly related to the permit holder's business in furtherance of which the permit is obtained and which does not in any way change the identity of the vehicle, may be displayed on the vehicle save on any part of the bonnet, front screen, windscreen and dashboard of the vehicle:

Provided that no advertising matter shall cover or be at a distance of less than 20 Centimetres of any material descriptions painted, inscribed or fixed in or over the vehicle.

- (7) That the holder of the permit shall cause the permit to be carried in the vehicle in such a manner that it is readily available for inspection at any time by any authorised person.

18. Any other conditions

19. Under Rule 75 of the Uttar Pradesh Motor Vehicles Rules, 1998 the permit is also valid in the region and subject to the conditions set out below:

Region	Route(s) / Area	Conditions
1	2	3

Date:

Secretary,
Transport Authority

RENEWAL

This permit is here by renewed upto.....w.e.f.....
subject to the following further conditions:

- (1)
- (2)
- (3)
- (4)

It is effective also in the following State/Regions, subject to any conditions attached to the previous counter-signature.

- (1)
- (2)
- (3)
- (4)

Date:

Secretary,
..... Transport Authority.

COUNTER-SIGNATURE

..... Transport Authority. No.

Counter-signed for Route/Areasubject to
the following variation of conditions:

- (1)
- (2)
- (3)
- (4)

Date:

Secretary,
..... Transport Authority.

RENEWAL OF COUNTER-SIGNATURE

The counter-signature is here by renewed up to
Date:

Secretary,
..... Transport Authority.

FORM SR-27

[See Rule 65(1)(ii)]

Permit in respect of stage carriages

To,

.....Transport Authority
.....

Permit No

1. Name of the holder.....
2. Father's/Husband's name
(in the case of individual)
3. Address:
(a) Permanent
(b) Present
4.
(i) Registration mark of the vehicle
(ii) Model
(iii) Chassis Number
(iv) Engine Number
(v) Class of Vehicle

Motor-Cab	Maxi-Cab	Omni Bus / Bus
1	2	3
- (vi) The vehicle is under hire purchase with
5. Route/Area for which permit is valid
6. Date of expiry of the permit
7. Rate of fare per kilometre
8. This permit shall be subject to the conditions laid down in Section 84 of the Motor Vehicles Act, 1988
9. The records to be maintained and the date on which returns are to be submitted to the Transport Authority
10. Other conditions: —

- (1) That the vehicle covered by such a permit shall in no case be used in any public place during the period in which the registration certificate and token relating to it are or have been surrendered in accordance with the provisions of the United Provinces Motor Vehicles Taxation Act, 1935 and the rules made thereunder or have been suspended or cancelled;

- (2) That the vehicle covered by such a permit shall in no case be used in any public place unless the taxes levied by the State Government and payable in respect thereof have been duly paid and if tax is not duly paid within the period specified in the United Provinces Motor Vehicles Taxation Act, 1935, the Uttar Pradesh Motor Gadi (Yatri- Kar) Adhiniyam, 1962 or the Uttar Pradesh (Mal-Kar) Adhiniyam, 1964 as the case may be, it shall be presumed that the holder of permit has intentionally evaded the payment of such tax;
- (3) That save as provided in sub-section (2) of Section 82 the permit shall not be transferred to any other person except with the permission of the Transport Authority which granted the permit;
- (4) That the vehicle shall be used in the area or on the route or routes specified in the permit;
- (5) That the maximum number of persons or maximum weight of luggage that may be carried in the vehicle covered by the permit shall not exceed as given in the certificate of registration;
- (6) That only such advertising matters as are directly related to the permit holder's business in furtherance of which the permit is obtained and which does not in any way change the identity of the vehicle, may be displayed on the vehicle save on any part of the bonnet, front screen, windscreen and dashboard of the vehicle:

Provided that no advertising matter shall cover or be at a distance of less than 20 centimetres of any material descriptions painted, inscribed or fixed in or over the vehicle.

- (7) That the holder of the permit shall cause the permit to be carried in the vehicle in such a manner that it is readily available for inspection at any time by any authorised person.

11. Any other conditions
Date.....

Secretary,
..... Transport Authority.

12. The permit is valid also in the regions and subject to the condition set out below

Region	Route(s) / Area	Conditions
1	2	3

Date.....

Secretary,
..... Transport Authority.

RENEWAL

This permit is here by renewed upto.....days of
subject to the following further conditions—

- (1)
- (2)
- (3)
- (4)

It is effective also in the following State/Regions, subject to any conditions attached
to the previous counter-signature.

- (1)
- (2)
- (3)
- (4)

Date:

Secretary,
..... Transport Authority.

COUNTER-SIGNATURE

..... Transport Authority. No.

Counter-signed for Route/Areasubject to
the following variation of conditions:

- (1)
- (2)
- (3)
- (4)

Date:

Secretary,
..... Transport Authority.

RENEWAL OF COUNTER-SIGNATURE

The counter-signature is here by renewed up to
Date:

Secretary,
..... Transport Authority.

¹[FORM SR-27A
[See Rule 222 B (2)]

Permit in respect of contract carriage

(If the contract between the Vehicle owner and the school is signed)

.....Transport Authority

Permit No

1. Name of the Holder.....
2. Father's/Husband's name
(in the case of individual)
3. Address:
 - (a) Permanent
 - (b) Present
4.
 - (i) Registration mark of the vehicle
 - (ii) Model
 - (iii) Chassis Number
 - (iv) Engine Number
 - (v) Class of Vehicle
 - (vi) The vehicle is under hire purchase with
5. Route/Area for which permit is valid
6. Date of expiry of the permit
7. Rate of fare per kilometre
8. This permit shall be subject to the conditions laid down in Section 84 of the Motor Vehicles Act, 1988
9. The records to be maintained and the date on which returns are to be submitted to the Transport Authority
10. Other conditions:
 - (1) That the vehicle covered by such a permit shall in no case be used in any public place during the period in which the registration certificate and token relating to it are or have been surrendered in accordance with the provisions of the Uttar Pradesh Motor Vehicle Taxation Act, 1997 and the rules made there under or have been suspended or cancelled.;

1. Form SR-27-A substituted by Notification No.02/2022/526/xxx-4-2022-17(Sa)-2018, dated 2nd May, 2022 (Twenty-Eighth Amendment) Rules, 2022 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 2nd May, 2022 (w.e.f. 02-05-2022)

- (2) That the vehicle covered by such a permit shall in no case be used in any public place unless the taxes levied by the State Government and payable in respect there of have been duly paid and if tax is not duly paid in the Uttar Pradesh Motor Vehicle Taxation Act, 1997 as the case may be, it shall be presumed that the holder of permit has intentionally evaded the payment of such tax;
- (3) That save as provided in sub-section (2) of Section 82 the permit shall not be transferred to any other person except with the permission of the Transport Authority which granted the permit;
- (4) That the vehicle shall be used in the area or on the route or routes specified in permit;
- (5) That the maximum number of persons or maximum weight of luggage that may be carried in the vehicle covered by the permit shall not exceed as given in the certificate of registrations.
- (6) That only such advertising matters as are directly related to the permit holder's business in furtherance of which the permit is obtained and which does not in any way change the identity of the vehicle, may be displayed on the vehicle save on any part of the bonnet, front screen and dashboard of the vehicle:

Provided that no advertising matter shall cover or be at a distance of less than 20 centimetres of any material descriptions painted, inscribed or fixed in or over the vehicle.

- (7) That the holder of the permit shall cause the permit to be carried in the vehicle in such a manner that it is readily available for inspection at any time by any authorised person.

11. Any other conditions

Date.....

Secretary,
..... Transport Authority.

12. The permit is valid also in the regions and subject to the condition set out below

Region	Route(s) / Area	Conditions
1	2	3

Date.....

Secretary,
..... Transport Authority.

RENEWAL

This permit is here by renewed upto..... days of
subject to the following further conditions—

- (1)
- (2)
- (3)
- (4)

It is effective also in the following State/Regions, subject to any conditions attached
to the previous counter-signature.

- (1)
- (2)
- (3)
- (4)

Date:

Secretary,
..... Transport Authority.

COUNTER-SIGNATURE

..... Transport Authority. No.

Counter-signed for Route/Areasubject to
the following variation of conditions:

- (1)
- (2)
- (3)
- (4)

Date:

Secretary,
..... Transport Authority.

RENEWAL OF COUNTER-SIGNATURE

The counter-signature is here by renewed up to

Date:

Secretary,
..... Transport Authority.]

¹FORM SR-27B

[See Rule 222 B (3)]

Permit in respect of contract carriage

(If the contract between the Vehicle owner and the schoolor guardian is signed)

.....Transport Authority

Permit No

1. Name of the Holder.....
2. Father's/Husband's name
(in the case of individual)
3. Address:
 - (a) Permanent
 - (b) Present
4.
 - (i) Registration mark of the vehicle
 - (ii) Model
 - (iii) Chassis Number
 - (iv) Engine Number
 - (v) Class of Vehicle
 - (vi) The vehicle is under hire purchase with
5. Route/Area for which permit is valid
6. Date of expiry of the permit
7. Rate of fare per kilometre
8. This permit shall be subject to the conditions laid down in Section 84 of the Motor Vehicles Act, 1988
9. The records to be maintained and the date on which returns are to be submitted to the Transport Authority
10. Other conditions:
 - (1) That the vehicle covered by such a permit shall in no case be used in any public place during the period in which the registration certificate and token relating to it are or have been surrendered in accordance with the provisions of the Uttar Pradesh Motor Vehicle Taxation Act, 1997 and the rules made there under or have been suspended or cancelled.;

1. Form SR-27-B, substituted by Notification No.02/2022/526/xxx-4-2022-17(Sa)-2018, dated 2nd May, 2022 (Twenty-Eighth Amendment) Rules, 2022 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 2nd May, 2022 (w.e.f. 02-05-2022)

- (2) That the vehicle covered by such a permit shall in no case be used in any public place unless the taxes levied by the State Government and payable in respect there of have been duly paid and if tax is not duly paid in the Uttar Pradesh Motor Vehicle Taxation Act, 1997 as the case may be, it shall be presumed that the holder of permit has intentionally evaded the payment of such tax;
- (3) That save as provided in sub-section (2) of Section 82 the permit shall not be transferred to any other person except with the permission of the Transport Authority which granted the permit;
- (4) That the vehicle shall be used in the area or on the route or routes specified in permit;
- (5) That the maximum number of persons or maximum weight of luggage that may be carried in the vehicle covered by the permit shall not exceed as given in the certificate of registrations.
- (6) That only such advertising matters as are directly related to the permit holder's business in furtherance of which the permit is obtained and which does not in any way change the identity of the vehicle, may be displayed on the vehicle save on any part of the bonnet, front screen and dashboard of the vehicle:

Provided that no advertising matter shall cover or be at a distance of less than 20 centimetres of any material descriptions painted, inscribed or fixed in or over the vehicle.

- (7) That the holder of the permit shall cause the permit to be carried in the vehicle in such a manner that it is readily available for inspection at any time by any authorised person.

11. Any other conditions

Date.....

Secretary,
..... Regional Transport Authority.

12. The permit is valid also in the regions and subject to the condition set out below

Region	Route(s) / Area	Conditions
1	2	3

Date.....

Secretary,
..... Regional Transport Authority.

RENEWAL

This permit is here by renewed upto..... days of
subject to the following further conditions—

- (1)
- (2)
- (3)
- (4)

It is effective also in the following State/Regions, subject to any conditions attached
to the previous counter-signature.

- (1)
- (2)
- (3)
- (4)

Date:

Secretary,
..... Regional Transport Authority.

COUNTER-SIGNATURE

..... Transport Authority. No.

Counter-signed for Route/Areasubject to
the following variation of conditions:

- (1)
- (2)
- (3)
- (4)

Date:

Secretary,
..... Regional Transport Authority.

RENEWAL OF COUNTER-SIGNATURE

The counter-signature is here by renewed up to

Date:

Secretary,
..... Regional Transport Authority.]

FORM SR-28
[See Rule 65(1)(iii)]
Goods Carriage Permit

To,

..... Transport Authority

.....
Permit No.....

1. Name of the holder.....
2. Father's/Husband's name.....
(in the case of an individual)
3. Address:
 - (a) Permanent.....
 - (b) Temporary.....
4.
 - (i) Registration Mark of the vehicle.....
 - (ii) Model.....
 - (iii) Chassis Number.....
 - (iv) Engine Number.....
5. Route/Area for which permit is valid.....
6. Date of expiry of the permit.....
7. Load capacity of the vehicle.....
 - (i) Gross vehicle weight.....
 - (ii) Unladen weight.....
 - (iii) Pay load.....
8. Nature of goods to be carried.....
9. Record to be maintained and the date on which returns are to be submitted to the Transport Authority.....
10. The permit shall be subject to the conditions laid down in Section 84 of the Motor Vehicles Act, 1988.
11. No goods shall be collected from nor shall be delivered to a collecting, forwarding and distributing agent who engages in this business without obtaining valid license for the purpose.
12. Other conditions:
 - (1) That the vehicle covered by such a permit shall in no case be used in any public place during the period in which the registration certificate and token relating to it are or have been surrendered in accordance with the provision of the United Provinces Motor Vehicles Taxation Act, 1935 and the Rules made thereunder or have been suspended or cancelled;
 - (2) That the vehicle covered by such a permit shall in no case be used in any public place unless the taxes levied by the State Government and payable in respect thereof have been duly paid and if tax is not duly paid within the period specified in the United Provinces Motor Vehicle Taxation Act, 1935, the Uttar Pradesh Motor Gadi (Yatri-Kar) Adhiniyam, 1962 or the Uttar Pradesh (Mal-Kar) Adhiniyam, 1964, as the case may be, it shall be presumed

that the holder of permit has intentionally evaded the payment of such tax;

- (3) That save as provided in sub-section (2) of Section 82 the permit shall not be transferred to any other person except with the permission of the Transport Authority which granted the permit;
- (4) That the vehicle shall be used in the area or on the route or routes specified in the permit;
- (5) That the maximum number of persons or maximum weight of luggage that may be carried in the vehicle covered by the permit shall not exceed as given in the certificate of registration;
- (6) That only such advertising matters as are directly related to the permit holder's business in furtherance of which the permit is obtained and which does not in any way change the identity of the vehicle, may be displayed on the vehicle save on any part of the bonnet, front screen, windscreen and dashboard of the vehicle:

Provided that no advertising matter shall cover or be at a distance of less than 20 centimeters of any material descriptions painted, inscribed or fixed in or over the vehicle.

- (7) That the holder of the permit shall cause the permit to be carried in the vehicle in such a manner that it is readily available for inspection at any time by any authorised person.

13. Any other conditions.....
- (1)
 - (2)
 - (3)
 - (4)
 - (5)

Date:

Secretary,
..... Transport Authority.

FORM SR-29

[See Rule 65(l)(iv)]

Private Service Vehicle Permit

To,

..... Transport Authority,

.....

Permit No.....

1. Name of the holder.....
2. Father's/Husband's name.....
(In the case of an individual)
3. Address:
(a) Permanent
- (b) Present
4. Place and nature of.....business.....
(With postal address)
5. Area or route(s) for which permit is valid.....
6. Type and seating capacity of the vehicle:

Registration mark of the vehicles	Type	Seating Capacity	Gross vehicle weight	Chassis No. of the vehicle
1	2	3	4	5

7. Nature and maximum number of persons to be carried to and from the place of business
8. Date of expiry of the permit.....
9. Conditions: -
 - (a) The vehicle shall be used only in the area on the route or routes specified in the permit;
 - (b) No fare shall be realised from any person carried in the vehicle nor shall the expenses or any part of expenses incurred or likely to be incurred on the operation and maintenance of the vehicle be recovered from such person in any manner, whatsoever;
 - (c) The holder of the permit shall legibly display the words "PRIVATE SERVICE VEHICLE", not less than 10 cms. high, in black on vehicle ground on a board or place affixed to the front of the vehicle at the level of the roof;
 - (d) The maximum number of persons that may be carried in the vehicle covered by the permit shall not exceed and the maximum weight of luggage that may be carried shall not exceed quintals;
 - (e) Standards of comforts, cleanliness and maintenance of the vehicles as specified for public service vehicles in the Motor Vehicles Act, 1988 or rules made thereunder shall be maintained in the vehicle;

- (f) No advertising matter shall ordinarily be displayed on the vehicle. However, the holder of the permit may, with the written permission of and in the manner prescribed by the Transport Authority by which the permit is issued display such advertising matters on the vehicle as are directly related to his business in furtherance of which the permit is obtained;
- (g) The holder of the permit shall cause it to be carried on a glazed frame or other suitable container carried in or affixed to the interior of the vehicle in such away as to maintain it in a clean and legible condition, readily available for inspection at any time by any authorised person;
- (h) The holder of the permit shall furnish to the Transport Authority by which the permit is issued, such periodical returns, statistics and other information as the State Government may, from time to time, specify;
- (i) The holder of the permit shall also abide by -
 - (i) the conditions prescribed under Section 84 of the Motor Vehicles Act, 1988 and other provisions of the Act, insofar as they apply to the holder of the permit;
 - (ii) any other condition or conditions, that may be specified by the State Transport Authority or the Regional Transport Authority.
- (j) The Transport Authority by which the permit is issued may, after giving notice of not less than one month may vary the conditions of the permit or attach thereto any further conditions.

10. Any other conditions:

- (1) That the vehicle covered by such a permit shall in no case be used in any public place during the period in which the registration certificate and token relating to it are or have been surrendered in accordance with the provision of the United Provinces Motor Vehicles Taxation Act, 1935 and the rules made thereunder or have been suspended or cancelled;
- (2) That the vehicle covered by such a permit shall in no case be used in any public place unless the taxes levied by the State Government and payable in respect thereof have been duly paid and if tax is not duly paid within the period specified in the United Provinces Motor Vehicle Taxation Act, 1935, the Uttar Pradesh Motor Gadi (Yatri-Kar) Adhiniyam, 1962 or the Uttar Pradesh (Mal-Kar) Adhiniyam, 1964 as the case may be, it shall be presumed that the holder of permit has intentionally evaded the payment of such tax;
- (3) That save as provided in sub-section (2) of Section 82 the permit shall not be transferred to any other person except with the permission of the Transport Authority which granted the permit;
- (4) That the vehicle shall be used in the area or on the route or routes specified in the permit;
- (5) That the maximum number of persons or maximum weight of luggage that may be carried in the vehicle covered by the permit shall not exceed as given in the certificate of registration.

- (6) That only such advertising matters as are directly related to the permit holder's business in furtherance of which the permit is obtained and which does not in any way change the identity of the vehicle, may be displayed on the vehicle save on any part of the bonnet, front screen, windscreen and dash-board of the vehicle:

Provided that no advertising matter shall cover or be at a distance of less than 20 centimeters of any material descriptions painted, inscribed or fixed in or over the vehicle:

- (7) That the holder of the permit shall cause the permit to be carried in the vehicle in such a manner that it is readily available for inspection at any time by any authorised person.

11. The permit is valid also in the regions and subject to the conditions set out below:

Region	Route/Area	Conditions
1	2	3

Date:

Secretary,
.....Transport Authority

RENEWALS

Renewed upto

Subject to.....

Date:

Secretary,
.....Transport Authority

COUNTER-SIGNATURE

Permit No.

Counter-signed for the area subject to the following conditions:

.....
.....

Date:

Secretary,
.....Transport Authority

RENEWAL OF COUNTER-SIGNATURE

The above counter-signature is hereby renewed upto.....subject to the following conditions:

Date:

Secretary,
.....Transport Authority

¹[FORM SR-29A
[See Rule 222 B (1)]
Private Service Vehicle Permit

.....Transport Authority

Permit No

1. Name of the Holder.....
2. Father's/Husband's name.....
(In the case of an individual)
3. Address:
(a) Permanent.....
(b) Present.....
4. Place and nature of business
(With postal address)
5. Area or route(s) for which permit is valid.....
6. Type and seating capacity of the vehicle:

Registration mark of the vehicles	Type	Seating Capacity	Gross vehicle weight	Chassis No. of the vehicle
1	2	3	4	5

7. Nature and maximum number of persons to be carried to and from the place of school.....
8. Date of expiry of the permit.....
9. Conditions:
 - (a) The vehicle shall be used only in the area on the route of routes specified in the permit;
 - (b) The holder of the permit shall legibly display the words - "PRIVATE SERVICE VEHICLE", not less than 10 cms. high in black on vehicle ground on a board or place affixed to the form of the vehicle at the level of the roof;
 - (c) The maximum number of persons that may be carried in the vehicle covered by the permit shall not exceed and the maximum weight of luggage that may be carried shall not exceed quintals.
 - (d) Standards of comforts, cleanliness and maintenance of the vehicles as specified for public service vehicles in the Motor Vehicles Act, 1988 or rules made thereunder shall be maintained in the vehicle;
 - (e) No advertising matter shall ordinarily be displayed on the vehicle.
 - (f) The holder of the permit shall furnish to the Transport Authority by which the permit is issued, such periodical returns, statistics and other information as the State Government may, from time to time, specify;

1. Form SR-29-A substituted by Notification No.02/2022/526/xxx-4-2022-17(Sa)-2018, dated 2nd May, 2022 (Twenty-Eighth Amendment) Rules, 2022 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 2nd May, 2022 (w.e.f. 02-05-2022)

- (g) The holder of the permit shall also abide by-
- (i) the conditions prescribed under Section 84 of the Motor Vehicles Act, 1988 and other provisions of the Act, insofar as they apply to the holder of the permit;
 - (ii) any other condition or conditions that may be specified by the State Transport Authority or the Regional Transport Authority;
- (h) The Transport Authority by which the permit is issued may, after giving notice of not less than one month may vary the conditions of the permit or attach thereto any further conditions.
10. Any other conditions:
- (1) That the vehicle covered by such a permit shall in no case be used in any public place during the period in which the registration certificate and token relating to it are or have been surrendered in accordance with the provisions of the Uttar Pradesh Motor Vehicle Taxation Act, 1997 and the rules made there under or have been suspended or cancelled.;
 - (2) That the vehicle covered by such a permit shall in no case be used in any public place unless the taxes levied by the State Government and payable in respect thereof have been duly paid and if tax is not duly paid in the Uttar Pradesh Motor Vehicle Taxation Act, 1997 as the case may be, it shall be presumed that the holder of permit has intentionally evaded the payment of such tax;
 - (3) That save as provided in sub-section (2) of Section 82 the permit shall not be transferred to any other person except with the permission of the Transport Authority which granted the permit;
 - (4) That the vehicle shall be used in the area or on the route or routes specified in permit;
 - (5) That the maximum number of persons or maximum weight of luggage that may be carried in the vehicle covered by the permit shall not exceed as given in the certificate of registrations.
 - (6) That only such advertising matters as are directly related to the permit holder's business in furtherance of which the permit is obtained and which does not in any way change the identity of the vehicle, may be displayed on the vehicle save on any part of the bonnet, front screen and dashboard of the vehicle:

Provided that no advertising matter shall cover or be at a distance of less than 20 centimetres of any material descriptions painted, inscribed or fixed in or over the vehicle.
 - (7) That the holder of the permit shall cause the permit to be carried in the vehicle in such a manner that it is readily available for inspection at any time by any authorised person.
11. The permit is valid also in the regions and subject to the conditions set out below:

Region	Route/Area	Conditions
1	2	3

--	--	--

Date:

Secretary,
.....Regional Transport Authority

RENEWALS

Renewed upto

Subject to.....

Date:

Secretary,
.....Regional Transport Authority

COUNTER-SIGNATURE

Permit No.

Counter-signed for the area subject to the following conditions:

.....
.....

Date:

Secretary,
.....Regional Transport Authority

RENEWAL OF COUNTER-SIGNATURE

The above counter-signature is hereby renewed upto.....subject
to the following conditions:

Date:

Secretary,
.....Regional Transport Authority]

FORM SR-30
[See Rule 65(1)(v)]
Temporary Permit

To,

.....Transport Authority

.....

Permit No.

1. Name of the holder.....
2. Father's/Husband's name.....
(in the case of an individual)
3. Address:
 - (a) Permanent.....
 - (b) Present.....
4. Type of vehicle— Stage Carriage / Goods Carriage / Contract Carriage
5. (i) Registration mark.....
 - (ii) Chassis No.....
 - (iii) Seating capacity.....
 - (iv) Laden weight.....
6. Route/Area for which the permit valid.....
7. Purpose of Journey.....
8. Nature of goods if to be carried.....
9. Date of expiry.....
10. Number and description of the permit already held.....
11. Route/Area for which the permit already held is valid.....
12. Amount of additional tax paid under Article VIII of the First Schedule to the Motor Vehicles Taxation Act, 1935 *vide* receipt.....
13. This permit is granted subject to the condition that it shall be surrendered to the authority granting the permit within twenty-four hours of its expiry.
14. Any other conditions:
 - (1) That the vehicle covered by such a permit shall in no case be used in any public place during the period in which the registration certificate and token relating to it are or have been surrendered in accordance with the provision of the United Provinces Motor Vehicles Taxation Act, 1935 and the rules made thereunder or have been suspended or cancelled;
 - (2) That the vehicle covered by such a permit shall in no case be used in any public place unless the taxes levied by the State Government and payable in respect thereof have been duly paid and if tax is not duly paid within the period specified in the United Provinces Motor Vehicle taxation Act, 1935, the Uttar Pradesh Motor Gadi (Yatri-Kar) Adhiniyam, 1962 or the Uttar Pradesh (Mal-Kar) Adliiniyam, 1964, as the case may be, it shall be

presumed that the holder of permit has intentionally evaded the payment of such tax;

- (3) That save as provided in sub-section (2) of Section 82 the permit shall not be transferred to any other person except with the permission of the Transport Authority which granted the permit;
- (4) That the vehicle shall be used in the area or on the route or routes specified in the permit;
- (5) That the maximum number of persons or maximum weight of luggage that may be carried in the vehicle covered by the permit shall not exceed as given in the certificate of registration;
- (6) That only such advertising matters as are directly related to the permit holder's business in furtherance of which the permit is obtained and which does not in any way change the identity of the vehicle, maybe displayed on the vehicle save on any part of the bonnet, front screen, windscreen and dash-board of the vehicle:

Provided that no advertising matter shall cover or beat a distance of less than 20 centimetres of any material descriptions painted, inscribed or fixed in or over the vehicle.

- (7) That the holder of the permit shall cease the permit to be carried in the vehicle in such a manner that it is readily available for inspection at any time by any authorised person.

Date:

Secretary,
.....Transport Authority.

FORM SR-31
[See Rule 65(l)(v)]
Special Permit under Section 88(8)

.....Transport Authority
Special Permit No

Certified that the vehicle bearing:

- (i) Registration mark
- (ii) Chassis No.....
- (iii) Engine No

and owned by..... S/o.....R/o
.....and covered by regular Permit
No..... issued by the State/Regional Transport Authority
..... has been engaged as a contract carriage by the persons
whose particulars are given below—

Sl. No.	Full Name	Father's / Husband's Name	Age	Place of Residence
1	2	3	4	5

The above named persons will be visiting the following places through the routes indicated against them—

.....
.....

The permit is valid upto.....

Certified that in respect of the vehicle mentioned above all taxes and fees payable in this State as also the date of expiry of this permit have been paid.

This permit is valid for the places mentioned above without counter-signature of any other State/Regional Transport Authority.

Date:

Secretary,
..... Transport Authority.

FORM SR-32

[See Rule 84(1)]

Application for replacement of a vehicle covered by a permit

To,

TheTransport Authority,

In accordance with the provisions of Section 83 of the Motor Vehicles Act, 1988, I/We the undersigned apply for permission to replace the vehicle whose particulars are given in Column (2) below for Vehicle No..... covered by Permit Number Route/Area.....

Described in Column 1 below:

Old Vehicles		Vehicles to be replaced	
1		2	
1	Registration Mark.....	1	Registration Mark.....
2	Model.....	2	Model not below.....
3	Seating Capacity.....	3	Seating Capacity.....

2. *I/We herewith enclose the certificate of registration and insurance of the vehicle proposed to be replaced.

"Vehicle is not yet in our possession but we understand that we shall have to produce the registration certificate of the vehicle proposed to be replaced within time allowed for replacement, otherwise the permit will stand cancelled unless further time is allowed."

3. Reasons for seeking replacement.....
4. Details of the use of vehicle replaced.....
5. All taxes due in respect of the vehicle sought to be replaced has been paid upto date (Certificate attached).
6. I/We have paid the prescribed fee.....*vide* receipt No..... dated.....
7. I/We declare that all statements given above are true.

Date:

Signature / Thumb-impression
the applicant(s)

*Strike out the alternative which is not applicable.

FORM SR-33

[See Rule 87(1)]

Application for Transfer of a Permit

To,

The..... Transport Authority,

In accordance with sub-rule (1) of Rule 87 of the Uttar Pradesh Motor Vehicles Rules, 1998, I/We apply for transfer of the permit, the details whereof areas under:

1. Number of permit
2. Route/Area.....
3. Period of validity.....
4. Name of permit holder.....
5. Name of the transferee.....
6. Address of the transferee:
 - (a) Permanent.....
 - (b) Present.....
7. Reason for the transfer.....
8. I declare that no consideration has been received by me for the transfer of the above-mentioned permit.

Date:

Signature / Thumb-impression
the transferor

(II)

DECLARATION BY THE TRANSFEE

I/We here by declare that—

- (1) No consideration has been paid by me/us for transfer of the permit.
- (2) I/We shall abide by the conditions attached to the permit under transfer.
- (3) I/We shall produce the certificates of registration and insurance of the Vehicle as and when directed by the.....Transport Authority.

Date:

Signature/Thumb-impression of
the transferee

(To be filled in by the Transport Authority)

1. Date of receipt
2. Date of submission before RTA/STA
3. Transfer refused/allowed on
4. Transfer recorded on

Date:

Secretary,
.....Transport Authority.

FORM SR-34

[See Rule 98(1)]

Complaint Book

(To be kept on stage carriage in Triplicate)

To,

Manager Stage Carriage Service,

Name of complainant

Father's name

Address

Ticket No

Vehicle No

Complaint

Date.....

Signature/Thumb-impression
of the complainants

FORM SR-35

[See Rule 109(1)]

Temporary Authorisation in lieu of permit receipt for—

- (1) Registration Certificate
- (2) Road permit
- (3) Insurance Certificate
- (4) Conductor's Licence
- Registration mark of the vehicle
- Stage Carriage/Goods Carriage/Engine No
- Chassis No
- R.L.W. Seating Capacity.....
- Name of the owner
- Permit No
- Date of expiry
- Route
- Fitness upto
- Tax paid upto
- Insurance certificate upto
- Name of the Driver/Conductor
- Driving Licence/Conductor's Licence No
- Valid upto
- Conditions of the permit
- Other conditions, if any,

Date:

Signature of the Officer
with his Officer Stamp.

The above authorization is valid upto

Signature of the Officer

The above authorization is valid up to

Signature of the Officer

FORM SR-36

[See Rule 113(1)]

*Application for licence to work as agent in the business of collecting,
forwarding and distributing goods carried by goods carriages*

To,
Regional Transport Authority,
.....Region.

1. Full name
2. Name of Father/Husband (in the case of an individual)
3. Address:
 - (a) Permanent
 - (b) Present
4. Educational qualification or experience in the management of transport of business.....
5. (a) Place where the applicant proposes to engage as an agent for principal Establishment.....
(b) Place/places where he proposes to establish his sub-agencies/branch offices.....
6. Nature and extent of financial resources of the applicant.....
7. Particulars of goods carriages either owned by the applicant or under his control.....
 - (a) Total No.....
 - (b) Make.....
 - (c) Model or years of manufacture.....
 - (d) Registered laden weight.....
 - (e) Registration mark.....
8. Additional particulars to be supplied where the application is for a licence as forwarding agent or collecting and forwarding agent.....
 - (a) Particulars of the site and its location.....
 - (b) Description of the premises (nature of buildings, extent of the site etc.)
.....
 - (c) Facilities if any, provided by the applicant for parking the goods carriages.....
 - (d) Facilities provided by him for loading and unloading goods.....
 - (e) Particulars of weighing device provided at the above-mentioned places.....
9. I am/we are fully conversant with the conditions of goods carriages permits and the provisions of the Motor Vehicles Act, 1988 and the Rules made thereunder so far as they relate to the restrictions regarding the routes, weights, loading and unloading of goods and the duties and functions of agents.....

I/We hereby declare that the particulars given above are true to the best of my/our knowledge and belief.

Place and Date:

Signature of applicant

FORM SR-37
[See Rule 113(4)]
Agent's Licence

Licence No Issued on 19 by
which Name Son/daughter/wife of
Address is licenced to engage as agent
for collecting, forwarding, or distributing goods carried by goods vehicles plying for hire.

At
(Principal place)

He is also licenced to engage as agent at the following place-

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)
- (8)
- (9)
- (10)

(If there are more places, attach a separate sheet). The licence is valid
from.....to.....

So long as this agent's licence is valid and renewed from time to time for the
premises approved and which are maintained as per provisions of sub-rule (1) of Rule 119
the holder is authorised to engage himself for carrying on the business as agent for
collecting, forwarding or distributing goods carried by goods vehicles plying for hire.

This licence shall be subject to the following conditions:

- (i) The licensee shall, subject to the provisions of Rule 119 provide adequate
space for the parking of vehicles for the purpose of loading and unloading
goods.
- (ii) The licensee shall be responsible for proper arrangement for storage of goods
awaiting delivery or dispatch or both.
- (iii) The licensee shall -
 - (a) take all necessary steps for proper delivery of the goods to the consignee;
 - (b) be liable to indemnify the consignee for any loss or damage to goods
while in his possession by taking out adequate insurance cover, where
available at the cost of the consignor or consignee;
 - (c) issue to the consignor/consignee a note only after receipt of goods for
dispatch stating therein the weight, nature of goods destination,
approximate distance over which the goods are to be carried, the freight
charge, the service charge, if any, such as for local transport insurance
while in his custody and labour charge for loading and unloading
provided that the service charge shall be reasonable and proof of its
reasonableness established, if required by the licensing authority;

- (d) not deliver the goods to the consignee without receiving the consignee's note or any such note issued by the office which received the goods for dispatch or if the note is lost or misplaced an indemnity bond covering the value of goods;
- (e) issue a copy of every note issued to the consignor or consignee to the driver of the goods vehicles transporting the goods and shall not allow any consignment to be loaded without handing over a copy of the note in respect thereof to the driver;
- (f) maintain proper record of collection, dispatch or delivery, as the case may be, of goods, the registration mark of the vehicle in which goods are carried for transport and make the same available for inspection by the licensing authority or by any person duly authorised by it in this behalf;
- (g) maintain proper account of the commission charged by him to every operator of goods vehicles engaged by him;
- (h) maintain a weighing device in good condition and capable of weighing at a time not less than 250 kgs;
- (i) not refuse to accept goods for transport without valid reasons; and
- (j) comply with the provisions of Rule 117.

- (iv) The licensing authority may order the forfeiture in whole or in part of the security furnished by the licensee under sub- rule (1) of Rule 114;

Provided that no such forfeiture shall be made unless the licensee is given an opportunity of being heard.

- (v) In the event of forfeiture of a security deposit or part thereof by the licensing authority the licence shall cease to be valid if the licensee fails to make payment to bring the security furnished by him to its original value within fifteen days of the receipt of the order of forfeiture.

Date:

Signature of Licensing Authority

RENEWALS

Renewed on.....from.....to.....

Signature of Licensing Authority

Renewed on.....from.....to.....

Signature of Licensing Authority

*Strikeout whichever is not applicable.

FORM SR-38

[See Rule 112(4)]

Agent's Supplementary Licence

Principal Licence No.....

Supplementary Issued on.....

Licence No..... Name..... Son / daughter /wife of
.....Address.....is licensed

to engage as agent for collecting, forwarding or distributing goods carried by goods
vehicles plying for hire at (full address) and which
place is maintained as per provisions of sub-rule (1) of Rule 119.

The licence is valid from.....to.....

This licence shall be subject to the following conditions:

- (i) The licensee shall, subject to the provisions of Rule 119 and provide adequate space for the parking of vehicles for the purpose of loading and unloading goods.
- (ii) The licensee shall be responsible for proper arrangement for storage of goods awaiting delivery or dispatch or both,
- (iii) The licensee shall –
 - (a) take all necessary steps for proper delivery of the goods to the consignee;
 - (b) be liable to indemnify the consignee for any loss or damage to goods while in his possession by taking out adequate insurance cover;
 - (c) issue to the consignor/consignee a note only after receipt of goods for dispatch stating therein the weight, nature of goods, destination, approximate distance over which the goods are to be carried, the freight charge, the service charge, if any, such as for local transport insurance while in his custody and labour charge for loading and unloading provided that the service charge shall be reasonable and proof of its reasonableness established, if required by the licensing authority;
 - (d) not deliver the goods to the consignee without receiving the consignee's note or any such note issued by the office which received the goods for dispatch or if the note is lost or misplaced an indemnity bond covering the value of goods;
 - (e) issue a copy of every note issued to the consignor or consignee to the driver of the goods vehicle transporting the goods and shall not allow any consignment to be loaded without handing over a copy of the note in respect thereof to the driver;
 - (f) maintain proper record of collection, dispatch or delivery, as the case may be, of goods, the registration mark of the vehicle in which goods are carried for transport and make the same available for inspection by the licensing authority or by any person duly authorised by it in this behalf;

- (g) maintain proper account of the commission charged by him to every operator of goods vehicles engaged by him;
- (h) maintain a weighing device in good condition and capable of weighing at a time not less than 250 kgs.;
- (i) not refuse to accept goods for transport without valid reasons; and
- (j) comply with the provisions of Rule 117.

- (iv) The licensing authority may order the forfeiture in whole or in part of the security furnished by the licensee under sub-rule (1) of Rule 114;

Provided that no such forfeiture shall be made unless the licensee is given an opportunity of being heard.

- (v) In the event of forfeiture of a security deposit or part thereof by the licensing authority the licence shall cease to be valid if the licensee fails to make payment to bring the security furnished by him to its original value within fifteen days of the receipt of the order of forfeiture.

Date:

Signature of Licensing Authority

RENEWALS

Renewed on.....from.....to.....

Signature of Licensing Authority

Renewed on.....from.....to.....

Signature of Licensing Authority

*Strikeout whichever is not applicable.

FORM SR-39

[See Rule115(1)]

*Application for the renewal of agent's licence engaged in the
business of collecting, forwarding and distributing goods
carried by goods carriages*

To,

Regional Transport Authority,

I/We hereby apply for the renewal of my/our licence which is attached, and particulars of which are as follows:

(a) Licence No

(b) Date of issue

(c) Kind of the licence

(d) Name of the licensee
(In block letters)

(e) Address—

(a) Permanent

(b) Present

If the licence is not attached with the application reasons why it is not being attached.....

If the application for renewal is not made 30 days before the date of expiry of the licence, reasons for the delay

The prescribed fee of Rs..... has been deposited vide Receipt No..... dated

I, hereby declare that there is no such change in the circumstances in which the licence was issued to me/us as disqualified me/us from continuing to hold this licence.

Place and Date:

Signature of the applicant/applicants.

FORM SR-40

[See Rule 117(v)]

Annual return for the period

From 1st April to 31st March

To,

The Secretary,
Regional Transport Authority.

1. Licence No
2. Date of its grant or last renewal
3. Total number of goods carriages owned by the agent
4. Total number of goods carriages under control of the agent
5. Number of goods carriages which were actually used during the year
 - (a) For more than six months in the year
 - (b) For more than nine months in the year
 - (c) For more than ten months in the year
6. Tonnage of goods collected, delivered and forwarded.
Note— In case the space given above under item No. 6 is not sufficient, attach a separate sheet.
7. Total tonnes of the goods collected, forwarded and delivered by the agent.....
8. Minimum and maximum distances for which the goods were forwarded from the forwarding point to the delivering point.....

S. No.	Distance	Total Tonnes
(a)	Distance not exceeding 80 kilometres	
(b)	Distance exceeding 80 kilometres but not exceeding 160 kilometres	
(c)	Distance exceeding 160 kilometres but not exceeding 240 kilometres	
(d)	Distance exceeding 240 kilometres but not exceeding 320 kilometres	
(e)	Distance exceeding 320 kilometres but not exceeding 400 kilometres	
(f)	Distance exceeding 400 kilometres but not exceeding 480 kilometres	
(g)	Distance exceeding 480 kilometres,	

9. In respect of the entry made in item No.8(g).....above specify the nature of the goods (*e.g.* fruits, glass, household effects, corn, coal *etc.*)

10. Total length of journeys performed by the goods vehicles mentioned in item Nos. (3) and (4) above in kilometres
11. Maximum time taken in delivering a consignment from the date of its booking -

Time	Tonnes of the consignment	Distance from the forwarding point to the delivering point
1	2	3

12. Claims received and settled -

Number of claims pending from previous year	Number of claims received during the year	Compensation claimed during the year	Number of claims settled during the year	Compensation paid during the year	Number of claims pending at the end of year
1	2	3	4	5	6

13. Freight and commission -

Total freight realised in respect of the vehicle mentioned at item No. (3) above	Total freight realised in respect of the vehicles mentioned at item No. (4) above	Total freight realised and paid to other operators	Total of commission realised
1	2	3	4

14. Total amount of the premium paid to the insurance companies for insurance of the goods.....
15. Total amount realised from the insurance companies in respect of claims for loss or damage of goods.....

Date:

Signature of the agent

FORM SR-41

[See Rule 124(2)]

Agent's licence for sale of tickets for travel by Public Service Vehicle

Agent's licence no.....

1. Name.....

2. Father's name.....

3. Present address.....

.....

4. Permanent address.....

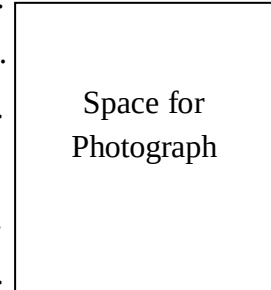
.....

5. Licensed as an agent for (Name of Service)

at/on (Place and Route) and

has been issued on agent's badge No

This licence is issued on and is valid upto



Secretary,
Regional Transport Authority

RENEWALS

Renewed from.....to.....

Secretary,
Regional Transport Authority

FORM SR-42

[See Rule 124(v)]

*Application for an agent's licence for sale of tickets for
travel by Public Service Vehicle.*

To,

The Regional Transport Authority,

.....Region

In accordance with the provisions of sub-section (1) of Section 93 of the Motor Vehicles Act, 1988, 1, the undersigned hereby apply for a licence to work as an agent for sale of tickets to the passengers of public service vehicles in the State of Uttar Pradesh.

1. Name (Full)
2. Father's/Husband's name
3. Age
4. Present address
5. Permanent address
6. Educational qualification
7. I have not previously hold an agent's licence.....

I have previously hold an agent's licence No.....
Issued byand that it was
not suspended/cancelled/renewed.

8. I, hereby declare that I am not less than 18 years of age and that the above statements are true. I attach two copies of recent photograph of myself.

Dated:

Signature of applicant

FORM SR-43
[See Rule 124(13)]
Agent's Badge

Name.....
Licence No.....
Agent for sale of ticket.....
Place.....

Badge to be rectangular in shape (6.5 cm. x 4.0 cm.)

¹[FORM SR-43-A

[See Rule 124-B]

*Bank Guarantee for Performance Guarantee
(On banks letter head with adhesive stamp)*

To,

Transport Commissioner, Uttar Pradesh
Parivahan Bhawan, Tehri Kothi, MG Marg,
Lucknow-226001.

Know all men by these presents that we.....
of..... (Name and address of Bank) having
our registered office at (Hereinafter called "the bank")
are bound unto, Transport Commissioner, Uttar Pradesh (hereinafter called "the
Regulator") in the sum of Rs lakhs (Rupees.....lakhs only)
for which payment will and truly to be made to the said Regulator, the Bank binds itself, its
successors and assigns by these present.

Where as a Letter of Indent No.....dated.....has been issued by
STA to..... (Name of the operator) (Hereinafter called "the operator")
for execution of the Radio Taxi permits.

AND WHEREAS the operator is required to furnish a Bank Guarantee for the sum of
Rs.....lakhs (Rupees lakhs only) towards
Performance Guarantee.

AND WHEREAS..... (Name of Bank)
have, at the request of the operator, agreed to give this guarantee as hereinafter contained
without demur.

2. We further agree as follows -

- (a) That the guarantee hereinbefore contained shall not be affected by any
change in the constitution of our Bank or in the constitution of the
operator.
- (b) That any account settled between the Regulator and the Operator shall be
conclusive evidence against us of the amount due hereunder and shall not
be questioned by us.
- (c) That this guarantee commences from the date hereof and shall remain in
force for a period of five years extendable by five years.
- (d) That the expression 'the operator' and 'the Bank' herein used shall, unless
such an interpretation is repugnant to the subject or context, include their
respective successor and assigns.

3. The conditions on this obligation are -

- (i) If the operator fails to refuses to induct the radio taxi within the time limit
specified in the Letter of Indent;

1. Form SR-43-A to 43-E, substituted by Notification No.1237/xxx-4-2013-346-95TC, dated
10th July, 2013 (Fourteenth Amendment) Rules, 2013 Published in U.P. Gazette, Extra., Part 4,
Section (Ka), dated 10th July, 2013 (w.e.f. 10.07.2013)

- (ii) If the Operator fails to perform its obligations under the radio taxi scheme.

We undertake to immediately pay to the Regulator at Lucknow in Uttar Pradesh the above amount upon receipt of his first written demand, without the Regulator having to substantiate his demand provided that in his demand the Regulator will note that the amount claimed by him is due to him owing to the occurrence of any one or more of the conditions (i) and (ii) mentioned above, specifying the occurred condition or conditions.

SIGNATURE OF THE WITNESS

SIGNATURE OF AUTHORISED
OFFICIAL OF THE BANK

NAME OF THE WITNESS

NAME OF OFFICIAL.....

.....

.....

ADDRESS OF THE WITNESS.....

DESIGNATION.....

.....

.....

STAMP/SEAL OF THE BANK

FORM SR-43-B

[See Rule 124-D]

*Application for grant or issue or renewed of letter of
intent/permit under radio taxi*

To,

The State Transport Authority Uttar Pradesh, Lucknow

I/We, the undersigned, hereby apply for a permit for radio taxi.

1. Full Name.....
2. Name of the Father/Husband, in the case of an individual and in the case of a cooperative Society or company, the name of the Secretary or the Managing Director, as the case may be.....
3. Status of the applicant (whether individual association of individuals, Co-operative Society or company etc.).....
4. Full address:
 - (i) Permanent.....
 - (ii) Present.....(To be supported by attested copy of ration card, electricity bill or any other valid documentary proof to the satisfaction of the STA in the case of an individual and in the case of company or cooperative society certified copy of the Registration)
5.
 - (i) Registration Mark of the Vehicle
 - (ii) Model.....
 - (iii) Chassis Number.....
 - (iv) Engine Number.....
 - (v) Class of Vehicle.....
 - (vi) Number of passengers to be carried.....
 - (vii) Name of Financier, if any, with whom the vehicle is under Hire purchase agreement.....
6. Route/Area for which permit is valid.....
7. Whether specifications are complete as radio taxi.....
8. Whether fitted with taxi-metre/GPS/GPRS.....
9.
 - (a) Experience in management of transport business.....
 - (b) Number of radio taxi held with in the name of applicant.....(To be supported by the attested copy of Registration Certificates issued by the registering authority concerned)
10. Particulars of permit, if already held.....
11.
 - (a) Place where the applicant has his main office with detailed address.....
 - (b) Place where the applicant has his branch office with detailed address.....
 - (c) The number of radio taxi to be stationed in each branch office.....
12. Nature and extent of financial resources of the applicant.....

13. Whether the applicant has furnished the Bank guarantee for performance guarantee (if yes, the details thereof)
14. Whether the operator is conversant with the conditions for carrying the business under the Radio Taxi scheme.....
15. Whether the operator has submitted the induction schedule of the vehicles to be inducted within a year from the date of issue of Letter of Intent (LOI). (If yes, enclose the same)
16. Details of prescribed fee.....
17. I hereby declare that to the best of my knowledge and belief the particulars given above are correct and true.....

*I/We, therefore, request to the Authority for issue the Letter of Intent as per supplied induction schedule so that the vehicle may be arranged accordingly for grant/issue of permits.

Signature of the Applicant

**Note*— Strike out if is in applicable.

FORM SR-43-C
[See Rule 124-E (1)]
Transport Department Uttar Pradesh
Letter of Intent

No..... Date.....
To,
Mr/Mrs.

With reference to your application dated regarding grant of Letter of Intent for purchasing/arranging the radio taxies, letter of intent is being issued for inducting the vehicles as per following induction schedule.

It is being clarified that on failure to induct the radio taxies as per above approved schedule, shall be liable to result in forfeiture of bank guarantee for performance guarantee.

Secretary
State Transport Authority,
Uttar Pradesh

FORM SR-43-D

[See Rule 124-E (4)]

Permit in respect at Radio Taxi

Permit Number

1. Name of the operator.....
2. Name of the Father/Husband, in the case of individual and in the case of Co-operative Society or company, the name of its Secretary or Managing Director, as the case may be.....
3. Address.....
4. Main place of business.....
5. (i) Registration mark of the vehicle
- (ii) Model.....
- (iii) Chassis Number.....
- (iv) Engine Number.....
- (v) Class of Vehicle
- (vi) Number of passengers to be carried.....
- (vii) Name of Financier, if any, with whom the vehicle is under Hire Purchase agreement.....
6. Route/Area for which permit is valid.....
7. Date of issue of the permit.....
8. Date of expiry of the permit.....
9. Date of replacement of vehicle.....
10. Whether specification are complete as radio taxi.....
11. Nature of goods to be carried.....
12. Conditions of permit are enclosed.....

Secretary
State Transport Authority,
Uttar Pradesh

Renewal

Renewed from.....to.....

Secretary
State Transport Authority,
Uttar Pradesh

FORM SR-43-E
[See Rule 124-F(l)(d)]
Complaint Book
(With pages serially numbered in Triplicate)

1. Name of Complainant.....
2. Full address.....
3. The name and address of the Operator.....
4. Permit number and authority which issued the permit.....
5. The date and time of hiring the vehicle and date and time whom the vehicle was returned.....
6. Vehicle number.....
7. Complaint in brief.....

Date:

Place:

Signature

Copy to—

1. The STA, U.P. Lucknow by registered post(duplicate copy)
2. The complainant.....(Triplicate copy)

Order by,
B.S. Bhullar
Secreatry]

FORM SR-44

[See Rule (126)]

Whereas the State Government is of opinion that for the purpose of providing an efficient, adequate, economical and properly co-ordinated road transport service, it is necessary in the public interest that road transport services in relation to the area or route or portion thereof mentioned in clause (b) of the annexed proposal should be run and operated upon by the Uttar Pradesh State Road Transport Corporation to the exclusion, complete or partial, of other persons or otherwise.

Now, therefore, in exercise of the powers under Section 99 of the Motor Vehicles Act, 1988 (Act 59 of 1988) the State Government has prepared a scheme hereto annexed in respect of the Road Transport Services and publishes the same with a view to inviting objections in respect thereof.

Any person may, within thirty days of the date of publication of the proposed scheme in the Official Gazette, file objections, if any, before the hearing authority in accordance with the procedure laid down in Rule 127 of the Uttar Pradesh Motor Vehicles Rules, 1998.

PROPOSAL REGARDING SCHEME FOR ROAD TRANSPORT SERVICE

- (a) The Uttar Pradesh Road Transport Corporation shall commence to operate road transport services from and onward.....
- (b) The Road Transport Service by the Uttar Pradesh State Road Transport Corporation shall be provided on (route/area/portion of the route) of region.
- (c) The nature and extent of the road transport service to be provided on the area/route of the portion thereof mentioned in clause (b) above shall be as follows;
- (d) The provision of transport services otherwise than under the scheme is prohibited/restricted to;
- (e) No person, other than the Uttar Pradesh Road Transport Corporation shall be permitted to provide road transport services on the route or the portion thereof specified in clause (b), above;
- (f) Road transport service will subject to the provisions made in the subsequent clauses provided by the Uttar Pradesh State Road Transport Corporation exclusively or in conjunction with;
- (g) The transport vehicles which may be used in the area /route/portion thereof mentioned in clause (b) above shall be of type and their carrying capacity shall be;
- (h) The permit/No./Nos.....which has/have been granted to.....under Chapter V of the Act shall be cancelled/modified to the extent that a permit, which has been left over from being specified in this clause shall be cancelled.
- (i) The number of transport vehicles of private operators at present plying on the area/route/portion thereof mentioned in Clause (b) above shall be reduced to.
- (j) The following convenience and amenities shall be provided to the passengers;

I.....herein give consequential or incidental matter necessary or expedient for the purpose of the scheme.

Secretary to the Government of
Uttar Pradesh Transport
Department

FORM SR-45

[See Rule 129]

Notification

Whereas the State Government had in pursuance of Section 99 of the Motor Vehicles Act, 1988 (Act 59 of 1988) published a proposal regarding Road Transport Service of Uttar Pradesh State Road Transport undertaking in the Official Gazette under notification No.....dated.....

And, whereas the objections received thereto have been duly considered and parties heard/and whereas the period allowed for filing objections has expired and no objection has been filed.

Now, therefore, in exercise of the powers conferred by sub-section (3) of Section 100 of the aforesaid Act, the State Government hereby publishes the Scheme duly approved/modified as follows:

Scheme for Road Transport Service of Uttar Pradesh State Road Transport Undertaking.

By order
Secretary to the Government of
U.P. Transport Department

FORM SR-46

[See Rule 130(1)]

Form for the application under sub-section (1) of Section 103 for stage carriage permit, or a goods carriage permit or a contractr carriage permit

To,

Regional Transport Authority,

..... Region/State/Transport Authority.

1. Area/route or portion thereof in respect of which permit/permits is/are sought.....
2. Scheme in pursuance of which the permit/permits is/are sought (Mention the notification No. and date together with the date of publication of scheme in the Official Gazzette).
3. Type of permit sought that is to say stage carriage permit, goods carriage permit or contract carriage permit.
4. Details of vehicles proposed to be used.
5. Seating capacity and payload of the said vehicle.

It is hereby that the pearticulars mentioned above are correct.

Date:

Signature and Designation

FORM SR-47

[See Rule 130(3)]

Permit in respect of State Transport Undertaking Vehicles

PART-A

Permit No.....

- (1) Name and designation of the authority to whom the permit has been issued.....
- (2) Date of issue.....
- (3) No. of vehicle.....

Registration No. of individual vehicle	Seating capacity /payload	Particulars of notified route or area covered by this permit and the details of permit and registration number
1	2	3

Designation and official Seal
of the Issuing Authority

PART-B

(To be kept with the vehicle)

Permit No.....

- (1) Name and designation of the authority to whom the permit has been issued.....
- (2) Date of issue.....
- (3) Route or area covered by this permit.....

Designation and official Seal
of the Issuing Authority

FORM SR-48

[See Rule 204(1)]

Application For Compensation
(Other wise than under Section 163-A)

To,

The Motor Accidents/Claims Tribunal

.....

I,son/daughter/widow of.....
residing at..... having been
injured and/or suffered damage to property in a motor vehicle accident hereby apply for the
grant of compensation for the injury sustained and/or damage suffered. Necessary
particulars in respect of the injury /damage to property, vehicle etc., are given below:

I,son/daughter/widow of.....
residing at.....hereby apply as
a legal representative/agent, for the grant of compensation on account of death of/injury
sustained and/or damage suffered by Sri/Kumari/Srimati.....
son/daughter/wife/widow.....of Sri/Srimati.....
who died/was injured and/or damage suffered in a Motor Vehicle Accident. Necessary
particulars of the person dead/injured/and/or suffering damage to property and the vehicles
involved in the accident etc. are hereunder—

1. Name with Father/Husband's name of the person dead/injured and/or suffering damage to property.
2. Full address of the person dead/injured and/or suffering damage to property.
3. Age of the person injured/dead.
4. Occupation of the person injured/dead.
5. Name and address of the employer of the deceased, if any.
6. Monthly income of the person injured/dead.
7. Name and age of each of the dependents of the deceased/injured indicating relationship with him, and also monthly average income of the deceased/injured and the source of such income.
8. Details of the property damaged and the extent of damage caused.
9. Does the person in respect of whom compensation is claimed pay income-tax (to be supported by documentary evidence).
10. Place, date and time of the accident.
11. Name and address of police station in whose jurisdiction the accident took place or FIR was registered.
12. Was the person in respect of whom compensation is claimed, travelling by the vehicle involved in the accident. If so, give the names of places of starting of journey and destination.
13. Nature of injuries sustained.
14. Name and address of the Medical Officer/Practitioner, if any, who attended on the injured /dead.

15. Period of treatment and expenditure, if any, incurred thereon (to be supported by documentary evidence).
16. Registration number and the type of the vehicle involved in accident.
17. Name and address of the owner of the vehicle.
18. Name and address of the insurer of the vehicle.
19. Has any claim been lodged with the owner/insurer; if so, with what result.
20. Relationship with the deceased.
21. Title to the property of the deceased.
22. Amount of compensation claimed.
23. Any other information that may be necessary or helpful in the disposal of the claim.

I,solemnly declare that the particulars given above are true and correct to the best of my knowledge.

Signature or thumb-impression
of the applicant

¹[**FORM SR-48-A**

[See Rule 203-A]

Report of Investigating Police Officer

To,

.....

.....

Sir,

The requisite report regarding accident is submitted here in as below—

1. Name of the Police Station:
2. Case Crime No/Traffic Accident Report/FIR No. (Copy to be annexed):
3. Date, time and place of the accident:
4. Name and full address of the injured/deceased:
5. Name of the Hospital to which he/she was removed:
(Copy of X-ray report Medico-legal report/Post-mortem report to be annexed):
6. Registration No. of vehicle and type of the vehicle (Copy to be annexed):
7. Driving license particulars (Copy to be annexed):
 - (a) Driving licence no. and date of expiry:
 - (b) Name and address of the driver:
 - (c) Address of the issuing authority.
 - (d) Badge No, (in case of public service vehicle)
8. Name and address of the owner of the vehicle at the time of accident:
9. Name and address of the Insurance Company with whom the vehicle was insured and the particulars of the Divisional Office of the said Insurance Company (Copy of cover note/certificate of Insurance Policy/receipt to be annexed):
10. No. of insurance policy/insurance certificate and the date of validity of the Insurance Policy/Insurance Certificate:
11. Registration particulars of the vehicle (Class of the vehicle):
 - (a) Registration No.
 - (b) Engine No.
 - (c) Chassis No.
12. Route permit particulars (Copy to be annexed):
13. Report about verification of driving license, Insurance policy, registration certificate and permit etc. (Copy of the documents to be annexed):
14. Names and addresses of the witnesses found or present at the time of accident:
15. Action taken, if any, and the result thereof (copy of report under Section 173 of the Code of Criminal Procedure, 1973, presented to be annexed)

Enclosures: (Give details)

Date:

Station Officer/Investigating.
Police Officer.....
Police Station.....

1. Form SR-48-A, inserted by Notification No.777/xxx-4-2011-4(3)-2010, dated 26th September, 2011 (Eleventh Amendment) Rules, 2011 Published in U.P. Gazette, Extra., Part 4, Section (Ka), dated 26th September, 2011 (w.e.f. 26.09.2011)

Verified that the contents of above report are correct as per investigation done by the Police Station.

Station Officer/Investigating.
Police Officer.....

FORM SR-49

[See Rule 204(1)]

Application for compensation under Section 163-A

To,

The Motor Accidents/Claims Tribunal

.....

I,son/daughter/widow of.....
residing at..... having been
injured and/or suffered damage to property in a motor vehicle accident hereby apply for the
grant of compensation for the injury sustained and/or damage suffered. Necessary
particulars in respect of the injury /damage to property, vehicle etc., are given below:

I,son/daughter/widow of.....
residing at.....hereby apply as
a legal representative/agent, for the grant of compensation on account of death of/injury
sustained and/or damage suffered by Sri/Kumari/Srimati.....
son/daughter/wife/widow.....of Sri/Srimati.....
who died/was injured and/or damage suffered in a Motor Vehicle Accident. Necessary
particulars of the person dead/injured/and/or suffering damage to property and the vehicles
involved in the accident etc. are hereunder—

1. Name with Father/Husband's name of the person dead/injured and/or suffering damage to property.
2. Full address of the person dead/injured and/or suffering damage to property.
3. Age of the person injured/dead.
4. Occupation of the person injured/dead.
5. Name and address of the employer of the deceased, if any.
6. Monthly income of the person injured/dead.
7. Name and age of each of the dependents of the deceased/injured indicating relationship with him, and also monthly average income of the deceased/injured and the source of such income.
8. Details of the property damaged and the extent of damage caused.
9. Does the person in respect of whom compensation is claimed pay income-tax (to be supported by documentary evidence).
10. Place, date and time of the accident.
11. Name and address of police station in whose jurisdiction the accident took place or FIR was registered.
12. Was the person in respect of whom compensation is claimed, travelling by the vehicle involved in the accident. If so, give the names of places of starting of journey and destination.
13. Nature of injuries sustained.
14. Name and address of the Medical Officer/Practitioner, if any, who attended on the injured /dead.

15. Period of treatment and expenditure, if any, incurred thereon (to be supported by documentary evidence).
16. Registration number and the type of the vehicle involved in accident.
17. Name and address of the owner of the vehicle.
18. Name and address of the insurer of the vehicle.
19. Has any claim been lodged with the owner/insurer; if so, with what result.
20. Relationship with the deceased.
21. Title to the property of the deceased.
22. Amount of compensation claimed.
23. Any other information that may be necessary or helpful in the disposal of the claim.

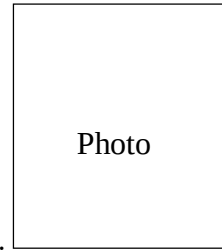
I have not filed any other application for compensation.

I,therefore, request that the amount of compensation in respect of the aforesaid accident may be determined in accordance with the Second Schedule of the Motor Vehicles Act, 1988 and the owner/insurer may be directed to make payment of the compensation so determined, to me, which shall be full and final compensation in respect of the aforesaid accident, I shall not file any other claim in respect thereof under Section 140 and under Section 163-A of the Motor Vehicles Act, 1988.

I,solemnly declare that the particulars given above are true and correct to the best of my knowledge.

Signature or thumb-impression
of the applicant

FORM SR-50
[See Rule 227(2)]
Transport Department
IDENTITY CARD



Serial No.....

Name.....

Designation.....

Age at the time of issue of this card.....

Specimen Signature of the holder.....

Signature, name and
designation of the Issuing Officer